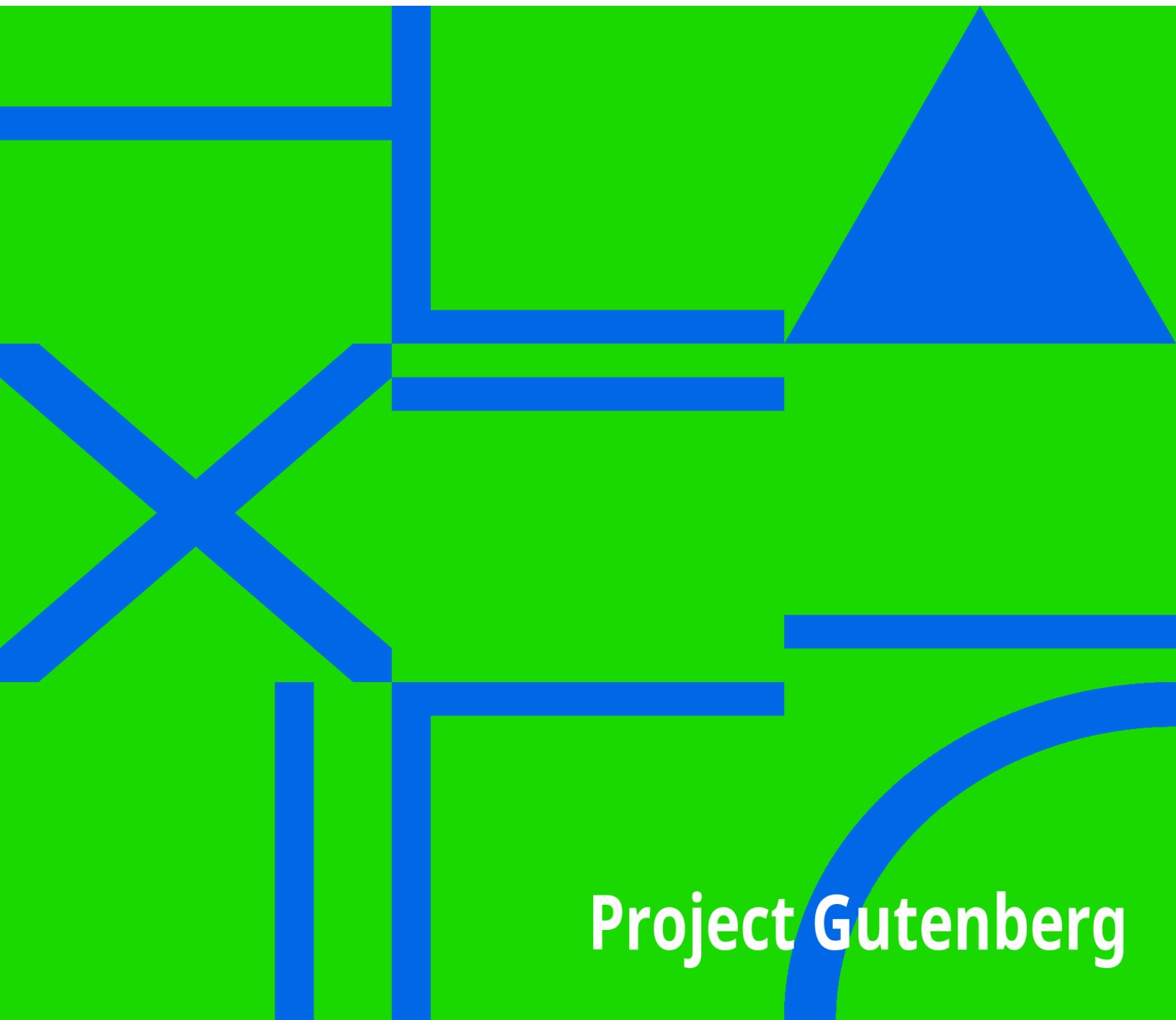


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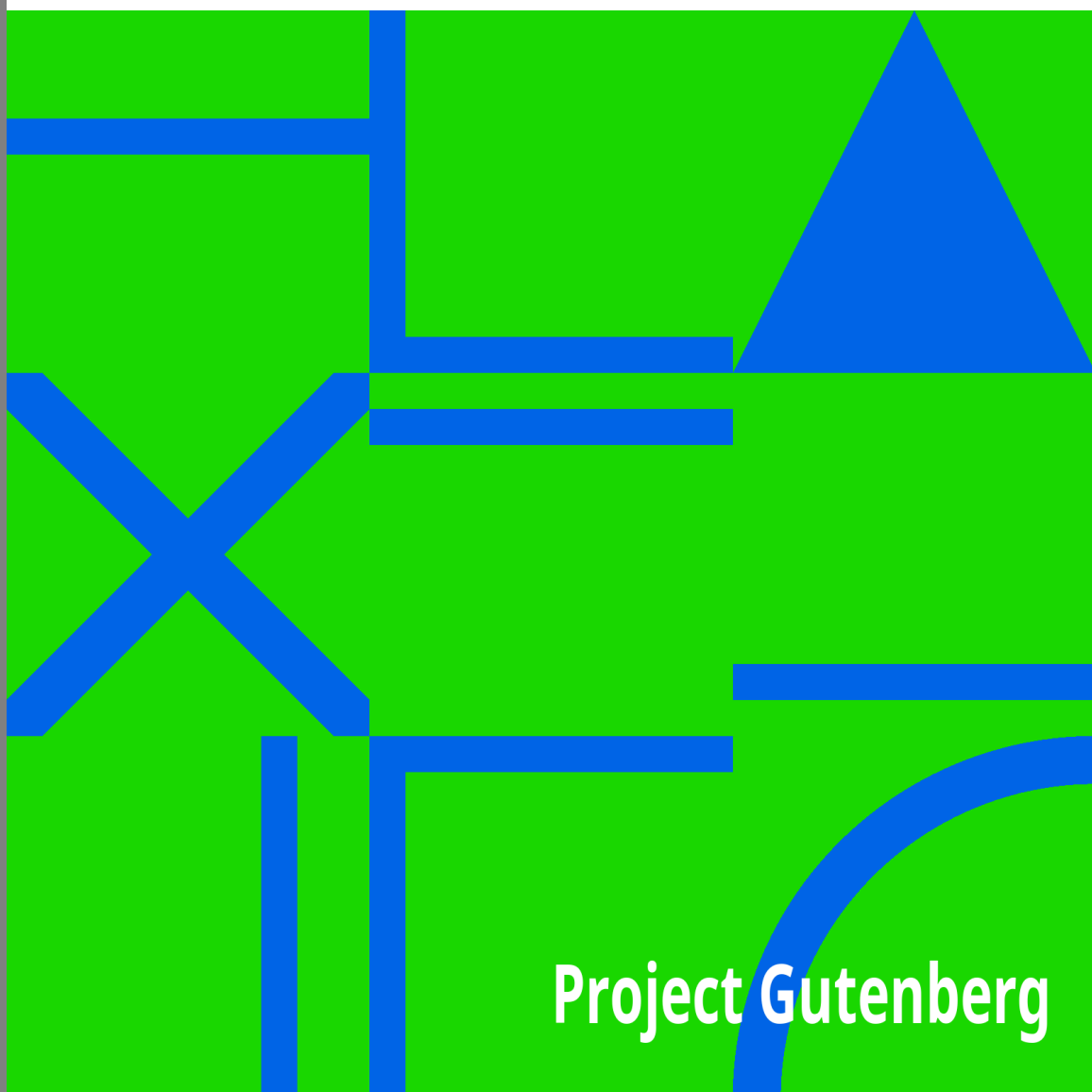
Mowbray Morris



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Claverhouse

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Title: Claverhouse

Author: Mowbray Morris

Release date: April 25, 2006 [eBook #18254]

Language: English

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CLAVERTHOUSE

English Worthies

EDITED BY ANDREW LANG

CLAVERHOUSE

BY

MOWBRAY MORRIS

NEW YORK
D. APPLETON AND COMPANY
1887

A LIST OF AUTHORITIES FOR THE LIFE OF CLAVERHOUSE.

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CLAVERTHUSE.

CHAPTER I.

John Graham, Viscount of Dundee, best known, perhaps, in history by his territorial title of Claverhouse, was born in the year 1643. No record, indeed, exists either of the time or place of his birth, but a decision of the Court of Session seems to fix the former in that year—the year, as lovers of historical coincidences will not fail to remark, of the Solemn League and Covenant.^[1]

He came of an ancient and noble stock. The family of Graham can be traced back in unbroken succession to the beginning of the twelfth century; and indeed there have been attempts to encumber its scutcheon with the quarterings of a fabulous antiquity. Gram, we are told, was in some primeval time the generic name for all independent leaders of men, and was borne by one of the earliest kings of Denmark. Another has surmised that if Graham be the proper spelling of the name, it may be compounded of Gray and Ham, the dwelling, or home, of Gray; but if Grame, or Græme, be the correct form, then we must regard it as a genuine Saxon word, signifying fierce, or grim. Such exercises are ingenious, and to some minds, possibly, interesting; but they are surely in this case superfluous. A pedigree, says Scott laughingly as he sits down to trace his own, is the national prerogative of every Scottishman, as unalienable as his pride and poverty; but he must be very poor or very proud who cannot find his account in the legitimate pedigree of the House of Montrose.

The first of the branch of Claverhouse, which took its name from a small town in Forfarshire a few miles to the north of Dundee, was John, son of John Graham of Balargus in the same shire. Graham of Balargus was the son of another John, who was the second son of Sir Robert Graham of Fintrey, the eldest son of Robert Graham of Strathcanon, son and heir of Sir William Graham of Kincardine, by his wife the Lady Mary Stuart, widow of George first Earl of Angus and daughter of King Robert the Third—the unhappy king of "The Fair Maid of Perth." The grandson of John Graham was Sir William Graham of Claverhouse, the chosen friend of his cousin, the gallant and unfortunate Marquis of Montrose. By his wife Marion,

daughter of Thomas Fotheringham of Powrie, Sir William had two sons, George and Walter, of whom the latter was the ancestor of those Grahams of Duntroon who at a later period assumed the title of Dundee. George left one son, another Sir William, who married Lady Jean Carnegie, daughter of the first Earl of Northesk, and by her had four children—two daughters, Margaret and Anne, and two sons, John and David. David is, as will be seen, not unrecorded in the annals of his country; but his name has been completely eclipsed by that of his elder brother, the "bloody Claver'se" of the Whigs, the "bonnie Dundee" of the Jacobites, one of the most execrated or one of the most idolised characters in the history of this kingdom, according to the temper and the taste of the writers and readers of history.

The register of that year shows that the two brothers matriculated at Saint Leonard's College in the University of Saint Andrews, on February 13th, 1665. Before this date all is a blank. Of John's boyish years history and tradition are equally silent. Long after his death, indeed, some idle stories became current, as their fashion is, of prophecies and prodigies in that early time. His nurse is said to have foretold that a river taking its name from a goose would prove fatal to him, and to have lamented that her child's career of glory had been frustrated because he had been checked in the act of devouring a live toad. This last story sounds much like a popular version of the Grecian fable of Demophoön, as told in the Homeric hymn to Demeter. But, as a matter of fact, it was a legend current of the infancy both of the Regent Morton and of Montrose himself before it was given to Claverhouse; and possibly of many other youthful members of the Scottish aristocracy, who happened to make themselves obnoxious to a class of their countrymen whose piety seems to have added no holy point to their powers of invective. There is an ingenious fancy, and, at least, as much reason as is generally displayed in mythological researches, in the surmise that this particular legend may have owed its origin to the French connection with Scotland, a connection which would naturally have found little favour in the eyes of the followers of John Knox.

Claverhouse seems to have neglected neither the studies nor the discipline of the University. He has, indeed, in our own time been denied enough even of the common intellectual culture of his day to save him from ridicule as a blockhead. But there is no reason for this contemptuous statement. His own contemporaries, and others, who if not exactly contemporaries have at least

as good right to be heard as a writer of our own time, have left very different testimony. Burnet, who, though connected by marriage with Claverhouse and at one time much in his confidence, was the last of men to praise him unduly, has vouched both for his abilities and virtues. Dalrymple, who was certainly no Jacobite, though censured by the Whigs for his indulgence to James, has described him as from his earliest youth an earnest reader of the great actions recorded by the poets and historians of antiquity. More particular testimony still is offered by a writer whose work was not, indeed, undertaken till nearly fifty years after the battle of Killiecrankie, but whose pictures of those men and times have all the freshness and colour of a contemporary. The author of those memoirs of Lochiel of which Macaulay has made such brilliant use, has credited Claverhouse with a considerable knowledge of mathematics and general literature, especially such branches of those studies as were likely to be of most use to a soldier. Lastly, Doctor Munro, Principal of the College of Edinburgh, when charged before a Parliamentary Commission with rejoicing at the news of Killiecrankie, denied at least that he had rejoiced at the death of the conqueror, for whom he owned "an extraordinary value," such as, in his own words, "no gentleman, soldier, scholar, or civilised citizen will find fault with me for."^[2]

It would be as foolish to take these witnesses too literally, as it is foolish to call Claverhouse a blockhead because he could not spell correctly. For many years after his death men of position and abilities far more distinguished and acknowledged than his, were not ashamed to spell with a recklessness that would inevitably now entail on any fourth-form boy the last penalty of academic law. Scott says that Claverhouse spelled like a chambermaid; and Macaulay has compared the handwriting of the period to the handwriting of washerwomen. The relative force of these comparisons others may determine, but it is certain that in this respect at least Claverhouse sinned in good company. The letters of even such men as the Lord Advocate, Sir George Mackenzie, and the Dalrymples,—letters written in circumstances more favourable to composition than the despatches of a soldier are ever likely to be—are every whit as capricious and startling in their variations from the received standard of orthography. If it is impossible quite to agree with his staunch eulogist, Drummond of Bahaldy, that Claverhouse was "much master in the epistolary way of

writing," at least his letters are plain and to the purpose; and the letters of a soldier have need to be no more.

It is, of course, unlikely that he could have been, even for those days, a cultivated man. The studies of youth are but the preparation for the culture of manhood; and after his three quiet years at Saint Andrews were done, his leisure for study must have been scant indeed. But all we know of his character, temperament, and habits of life forbid the supposition that he wasted that precious time either in idleness or indulgence. His bitterest enemies have borne witness to his singular freedom from those vices which his age regarded more as the characteristics than the failings of a gentleman. The most scurrilous of the many scurrilous chroniclers of the Covenanters' wrongs has owned in a characteristic passage that his life was uniformly clean.^[3] Gifted by nature with quick parts, of dauntless ambition and untiring energy both of mind and body, he was not the man to have let slip in idleness any chance of fortifying himself for the great struggle of life, or to have neglected studies which might be useful to him in the future because they happened to be irksome in the present. It is only, therefore, in reason to suppose that he managed his time at the University prudently and well, and this may easily be done without assuming for him any special intellectual gifts or graces.

But, as a matter of strict fact, from the date of his matriculation to the year 1672 nothing is really known of Claverhouse or his affairs. It has, however, been generally assumed that, after the usual residence of three years at the University, he crossed over into France to study the art of war under the famous Turenne. As the practice was common then among young men of good birth and slender fortune, it is not unlikely that Claverhouse followed it. A large body of English troops was a few years later serving under the French standard. In 1672 the Duke of Monmouth, then in the prime of his fortune, joined Turenne with a force of six thousand English and Scottish troops, amongst whom marched John Churchill, a captain of the Grenadier company of Monmouth's own regiment. But the military glory Claverhouse is said to have won in the French service cannot have been great: his studies in the art of war must have been mainly theoretical. In the year 1668, the year in which Claverhouse is said to have left Scotland for France, Lewis had been compelled to pause in his career of conquest. The Triple Alliance had in that year forced upon him the peace of Aix-la-Chapelle. He had been

compelled to restore Franche Comté, though he still kept hold of the towns he had won in the Low Countries. But the joy with which all parties in England welcomed this alliance had scarcely found expression when Charles, impatient of the economy of his Parliament and indifferent to its approval, opened those negotiations which, with the help of his sister the Duchess of Orleans, and that other Duchess, Louisa of Portsmouth, resulted in the secret treaty of Dover. We are not now concerned to examine the particulars of a transaction which even Charles himself did not dare to confide entirely to his ministers, familiar as the Cabal was with shameless deeds. It is enough for our present purpose to remember that, in return for a large annual subsidy and the promise of help should England again take up arms against her king, Charles bound himself to aid Lewis in crushing the rising power of Holland and to support the claims of the House of Bourbon to the throne of Spain. Supplies were obtained for immediate purposes by closing the Exchequer, an act which ruined half the goldsmiths in London. As a set-off against this, a royal proclamation, arrogating to itself powers only Parliament could rightly exercise, suspended the laws against Nonconformists and Catholics. The latter were, indeed, allowed to say Mass only within their private houses, but to dissenters of every other class was granted the freest liberty of public worship.

The declaration of war followed close on the declaration of indulgence. The immediate result of the latter was the release of John Bunyan from an imprisonment of twelve years, and the publication of the "Pilgrim's Progress." A more important and lasting result was the Revolution of 1688. Both declarations were unpopular, but the Declaration of Indulgence was the most unpopular of the two. It was unpopular with the zealous Churchman for the concessions it made both to Papist and Puritan. It was unpopular with the Puritan because he was compelled to share it with the Papist. It was unpopular with the Papist because it was less liberal to him than to the Puritan. It was unpopular with all classes of patriotic Englishmen alike, because it directly violated that prerogative of the Legislature for which so much English blood had been already shed. It was soon, indeed, repealed, and its repeal was soon followed by the dissolution of the Cabal, the passing of the Test Act, and peace with Holland. But though the fears of the nation were thus laid to rest for a time, it now first became clear to those who could look beyond the passing day, and whose

vision was sharpened by the memory of what had been, how surely England was moving under the son back again to a state of things which had cost the father his crown and his life.

But to return to the declaration of war. Lewis received, and probably expected to receive, but little support from his English allies, and in a furious action fought off the coast of Suffolk De Ruyter more than held his own against the combined fleets of France and England. But on land the French King carried all before him. Led by Condé and Turenne, the ablest captains of the age, a vast host poured across the Rhine. The Dutch were waked from the vain dreams of a French alliance, into which they had been lulled by the chiefs of the great merchant class which had risen to power on the fall of the House of Orange, only to find themselves helpless. Town after town opened its gates to the invader: three out of the seven provinces of the Federation were already in his hands: his watch-fires were seen from the walls of Amsterdam. In the first mad paroxysm of their despair the people rose against their leaders. De Ruyter, who had borne their flag to victory on many a hard fought day, was insulted in the public streets: the Grand Pensionary, John De Witt, and his brother Cornelius were brutally murdered before the palace of the States-General at the Hague. The office of Stadtholder was re-established; and the common voice called back to it a prince of that House which twenty years ago had been excluded for ever from the affairs of a State which had never existed without it.

William Henry, great-grandson of the founder of the Dutch Republic, hereafter to be known as William the Third of England, was then in his twenty-second year. The heroic spirit of William the Silent lived again in the frail body of his descendant. Without a moment's hesitation he accepted the hard and thankless task imposed upon him. With wise counsel and brave words he calmed and revived the drooping hearts of his countrymen. He rejected with scorn the offers both of Charles and Lewis to seduce him from his allegiance. He replied to Buckingham's remonstrances on the folly of a struggle which could only mean ruin to the Commonwealth, that he would fight while there was a ditch left for him to die in. His courage spread. The Dutch flew to arms: without a regretful voice they summoned to their aid their last irresistible ally: the dykes were cut, and soon the waters, destroying to save, spread over all that trim and fertile land. The tide of invasion was checked, and with the next spring it began to roll slowly

backward. The great princes of the Continent became alarmed at this new prospect of French ambition. The sluggish Emperor began to bestir himself. Spain, fast dwindling to the shadow of that mighty figure which had once bestrode two worlds, sent some troops to aid a cause which was, indeed, half her own. By sea the Dutch could do no more than keep their flag flying, but it says much for their sailors that they could do that against a foe their equal in skill and courage, and almost always their superior in numbers. On land they were more successful. The Bishop of Munster was driven back from the walls of Groningen: Naerden and Bonne were retaken: before the summer was over the whole electorate of Cologne was in the hands of William and his allies. The campaign of 1674 was less fortunate to the young general. Charles had, it is true, been compelled by his Parliament to make a peace more favourable than the Dutch could have hoped for; but in almost every direction Lewis made good again the ground he had lost in the previous year. William, indeed, took Grave, but he was compelled to raise the siege of Oudenarde. A large force of Germans under the Elector of Brandenburg was driven out of Alsace across the Rhine by Turenne, who had a short while before completely routed the Imperial troops under the Duke of Lorraine at Sintzheim. Franche Comté was reconquered in a few weeks. But the most notable action of the year was the battle of Seneff, fought near Mons on August 11th between William and Condé. It was long, bloody, and indecisive; but it raised William's reputation for courage and ability to the highest pitch, and drew from his veteran opponent one of those compliments a brave soldier is always glad to pay a foeman worthy of his steel. "The Prince of Orange," said Condé, "has acted in everything like an old captain, except in venturing his life too like a young soldier."

The battle of Seneff has for us, too, a particular importance. It gives us, according to some of his biographers, the first glimpse of Claverhouse as a soldier. The story goes that, at an early period of the fight, William with a handful of his men was closely beset by a large body of French troops. In making his way back to his own lines the Prince's horse foundered in some marshy ground, and he would inevitably have been either killed or made prisoner had not Claverhouse, who was of the party, mounted him on his own charger and brought him safe out of the press. For this service William gave the young soldier (who was, however, the Prince's senior by seven years) a captain's commission in his own regiment of Horse Guards,

commanded by the Count de Solmes who led the English van on the day of the Boyne. This story has been contemptuously rejected by Macaulay as a Jacobite fable composed many years after both actors in the scene were dead. The story may not be true, but Macaulay's reasons for rejecting it are not quite exact. Reports of Claverhouse's gallantry at Seneff were certainly current during his lifetime. It is mentioned, for example, in a copy of doggerel verses addressed to Claverhouse by some nameless admirer on New Year's Day 1683.^[4] And there is yet more particular testimony, though, like the former, it is of that nature which a historian will always feel himself at liberty to reject if it does not match with the rest of his case, and which counsel on the opposite side are accordingly at equal liberty to make use of. In the memoirs of Lochiel mention is made of a Latin poem written by a certain Mr. James Philip of Amryclos, in Forfarshire, who bore Dundee's standard at Killiecrankie. Lochiel's biographer does not quote the Latin text, but gives translations of certain passages. The original manuscript, bearing the date 1691, is now in the Advocates' Library at Edinburgh. Napier had seen this "Grameis," as the work is called, and compared it with the translations, which he declares to be very imperfect, as, from the specimens he gives, they undoubtedly are. Macaulay, who never saw the Latin text, owns to have taken a few touches from the passages quoted in the memoirs for his inimitable picture of affairs in the Highlands during the days immediately preceding Killiecrankie; but the passage recording the early gallantry of the conqueror at Killiecrankie he did not take.^[5]

It is unfortunate that the tale of these early years should assume so controversial a tone. But where all, or almost all, is sheer conjecture, it is inevitable that the narrative must rest rather on argument than fact. The precise moment when Claverhouse transferred his services from the French to the Dutch flag is, in truth, no more certain than the date of his birth is certain, or his conduct at Saint Andrews, or, indeed, than it is certain that he ever at any time served under Lewis. The tale of those English services under the French King is in the last degree confused and doubtful. If it is so in the case of such a man as Marlborough, small wonder that it is so in the case of such a man as Claverhouse, whose name was practically unknown till ten years before his death. That he did, however, at one time bear arms in the Dutch ranks seems as indisputable as any part of the scanty story of

the first two-and-thirty years of his life can be said to be. But beyond this it is impossible to go.

In 1677 he left William's service and returned to Scotland. An idle story was circulated some years afterwards of a brawl with one of William's officers who had received the regiment promised to Claverhouse, of a reprimand from William, and an indignant vow never to serve again under a prince who had broken his word. The judicial weight that has been brought to demolish this slender fabric is unnecessary. The story itself is not consistent with the characters of either men. It is very possible that the young soldier, like another young man of those days, may have grown "tired with knocking at preferment's door;" but, in truth, a reason to account for their parting is very easily found. With the campaign of 1677 all fighting on the Continent was stayed for a time. Claverhouse's profession was fighting. After the peace of Nimeguen in 1678 Scotland was the only European country then offering a chance of employment to a soldier of fortune. In 1677, accordingly, he resigned his commission in the Dutch service and crossed over into England, taking with him a reputation for courage and ability that at once recommended him to the King and Duke of York for a man likely to be useful in such affairs as they had then on hand. Indeed, the character that it is clear he brought back with him from Holland is alone sufficient to disprove the story of the quarrel in the courtyard at Loo.^[6]

FOOTNOTES:

^[1] Fountainhall's "Historical Notices;" Napier's "Memorials of Dundee," i. 183. The decision in question is dated July 24th, 1687, and certainly appears to prove that Claverhouse did not attain his majority till 1664, which would fix his birth in the year above given.

^[2] The "Memoirs of the Life of Sir Ewan Cameron of Lochiel" were printed for the Abbotsford Club in 1842. They are believed to have been written between 1730 and 1740 by John Drummond of Bahaldy, a grandson, or great-grandson, of Lochiel. Several copies of the manuscript are in existence, of which the best is said by the editor to be the one then in the possession of Mr. Crawford of Cartburn. It is written in a clear hand upon small quarto paper, and bound in two volumes. On the fly-leaf of the first volume is written "Aug. 7. 1732, Jo. Drummond." See also Burnet's "History of My Own Time," ii. 553; Dalrymple's "Memoirs of Great Britain and Ireland," i. 344; Burton's "History of Scotland," vii. 360; Napier's "Memorials of Viscount Dundee," i. 16-32, and 178-9. Burnet married Lady Margaret Kennedy, daughter of the Earl of Cassilis and aunt of

Lady Dundee. In point of style and arrangement, of taste and temper—in everything, in short, which helps to make literature, Napier's book is perhaps as bad as it is possible for a book to be. But his industry is unimpeachable; and, through the kindness of the late Duke of Buccleuch, he was able to publish no less than thirty-seven letters written in Claverhouse's own hand to the first Duke of Queensberry, not one of which had been included in the collection printed for the Bannatyne Club in 1826, nor was, in fact, known to be in existence by anyone outside the family of Buccleuch. His book includes also the fragment of a memoir of Dundee and his times, left in manuscript by Charles Kirkpatrick Sharpe, of Hoddam, Walter Scott's friend. The memoir was thrown up, it is said, in despair on the appearance of "Old Mortality." Some idea of the extent to which Napier suffered from the *Lues Boswelliana* may be gathered from the fact that he regards even the Claverhouse of that incomparable romance as a libel.

[3] "The Hell wicked-witted, bloodthirsty Graham of Claverhouse hated to spend his time with wine and women."—"Life of Walter Smith," in Walker's "Biographia Presbyteriana."

[4]

"I saw the man who at St. Neff did see
His conduct, prowess, martial gallantry:
He wore a white plumach that day; not one
Of Belgians wore a white, but him alone
And though that day was fatal, yet he fought,
And for his part fair triumphs with him brought."

Laing's "Fugitive Scottish Poetry of the Seventeenth Century."

[5] The passage occurs in the fifth book. Dundee, retreating before the forces of the Convention, is represented as musing over his camp-fire on the ingratitude of the Prince whose life he had once saved.

"Tu vero, Arctoæ gentis prædo improbe, tanti
Fons et origo mali, Nassovi, ingrate virorum,
Immeritum quid me, nunc Cæsar's arma secutum,
Prosequeris toties, et iniquo Marte fatiges?
Nonne ego, cum lasso per Belgia stagna caballo
Agmina liligeri fugeres victricia Galli,
Ipse mei impositum dorso salientis equi te
Hostibus eripui, salvumque in castra reduxi?
Hæcne mihi meriti persolvis præmia tanti?
Proh scelus! O Soceri rapti nequissime sceptri!"

The translation, which is certainly, as Napier calls it, both imperfect and free, is to this effect:

"When the fierce Gaul through Belgian stanks you fled,
Fainting, alone, and destitute of aid,
While the proud victor urged your doubtful fate,
And your tired courser sunk beneath your weight;
Did I not mount you on my vigorous steed,

And save your person by his fatal speed?
For life and freedom then by me restored
I'm thus rewarded by my Belgick Lord.
Ungrateful Prince!"

[6] The stories of Claverhouse's conduct at Seneff, and of the quarrel at Loo, are told in the "Life of Lieut.-General Hugh Mackay," by John Mackay of Rockfields, and in the "Memoirs of the Lord Viscount Dundee," published in 1714, and professing to be written by an officer of the army. This little book is remarkable chiefly as being the first recorded attempt at a biography of Dundee. The writer was possibly not an officer, nor personally acquainted with Dundee. But he had certainly contrived to learn a good deal about him and his affairs; and as later research has either corroborated or, at least, made probable, much of his information, it seems to me quite as fair to use it for Dundee, as to use the unsupported testimony of the Covenanters against him. According to his biographer, Mackay himself was Claverhouse's successful rival. According to the earlier writer, the man was David Colyear, afterwards Lord Portmore, and husband of Catherine Sedley, Lady Dorchester, James's favourite and ugliest mistress.

CHAPTER II.

It will be necessary now to review the condition of Scotland at the time when Claverhouse began first to be concerned in her affairs, and of the causes political and religious—if, indeed, in Scottish history it be ever possible to separate the two—which produced that condition. Without clearly understanding the state of parties which then distracted that unhappy country, it will not be possible clearly to understand the position of Claverhouse; and without a clear understanding of his position, it will certainly not be possible to form a just estimate of his character. It is by too readily yielding to the charm of a writer, who had not then for his purpose the impartial estimate of a human character so much as the embellishment of a political principle, that public opinion has been for many years content to accept a savage caricature in place of a portrait. It would be impertinent to say that Macaulay did not understand the circumstances into which Claverhouse was forced, and the train of events which had caused them; but it would not have suited his purpose so clearly and strictly to have explained them that others might have traversed the verdict he intended to be established. He heard, indeed, and he determined to hear, only one side of the case: indeed, at the time he wrote, there was not much to be heard on the other; and on the evidence he accepted the verdict was a foregone conclusion. It is impossible altogether to acquit Claverhouse of the charges laid to his account, nor will any attempt here be made to do so; but even the worst that can be proved against him, when considered impartially with the circumstances of his position and the spirit of the time, will, I think, be found to take a very different complexion from that which has been somewhat too confidently given to them.^[7]

When Charles the Second was restored to the throne of his fathers he was hailed in Scotland with the same tumultuous joy that greeted him in England. The Scottish nation was indeed weary of the past. It was weary alike of the yoke of Cromwell and of the yoke of the Covenant. The first Covenant—the Covenant of 1557—had been a protest against the tyranny of the Pope: the Covenant of 1643 was a protest against the tyranny of the Crown. It was the Scottish supplement, framed in the religious spirit and

temperament of the Scottish nation, to the English protest against ship-money. The voice, first sounded among the rich valleys and pleasant woods of Buckinghamshire, was echoed in the churchyard of the Grey Friars at Edinburgh. Six months later the triumph of Presbyterianism was completed, when in the church of Saint Margaret's at Westminster the Commons of England ratified the Solemn League and Covenant of Scotland. Over the wild time which followed it will be unnecessary for our purpose to linger. The work was done: then followed the reaction. In both countries the oppressed became in turn the oppressors. The champions of religious liberty became as bigoted and intolerant as those whose intolerance and bigotry had first goaded them into rebellion. The old Presbyterian saw the rise of new modes of worship with the same horror that he had shown at the ritual of Laud. Milton protested that the "new Presbyter is but old Priest writ large." Within only four years of the outbreak of the civil war no less than sixteen religious sects were found existing in open defiance of the principles of faith which that war was pledged to uphold. One common bond, indeed, united these sects in sympathy: one and all repudiated with equal energy the authority of the Church to prescribe a fixed form of worship: a national Church was, in their eyes, as odious and impossible a tyranny as the divine right of kings. But this common hatred of the interference of a Mother Church could not teach them tolerance for each other. Cardinal Newman has described the enthusiasm of Saint Anthony as calm, manly, and magnanimous, full of affectionate loyalty to the Church and the Truth. "It was not," he says, "vulgar, bustling, imbecile, unstable, undutiful." The religious enthusiasm of the two nations at this time, though at heart sincere and just, was unfortunately in its public aspect the exact opposite of Saint Anthony's. There was the essential great meaning of the matter, to borrow Carlyle's words, but there were also the mean, peddling details. It was the misfortune of many, of three kings of England among the number, that the latter should seem the most vital of the two. Presbyterian and Independent, Leveller and Baptist, Brownist and Fifth Monarchy Man, one and all stood up and made proclamation, crying, "Look unto me, and be ye saved, all the ends of the earth; for I am God, and there is none else." Well might Cromwell adjure them in that war of words which followed the sterner conflict on the heights of Dunbar, "I beseech you, in the bowels of Christ, think it possible you may be mistaken."

Though the number and variety of the dissentients in England were far greater than in Scotland, where the bulk both of the people and the clergy stood firmly within the old Presbyterian lines, yet in the latter country the separation was far more bitter and productive of far more violent results. In the former the strong hand of Cromwell, himself an Independent, but keen to detect a useful man under every masquerade of worship, and prompt to use him, kept the sects from open disruption. Quarrel as they might among themselves, there was one stronger than them all, and they knew it. The old Committee of Estates, originally appointed by the Parliament as a permanent body in 1640, was not strong enough to control the spirit it had helped to raise: it was not even strong enough to keep order within its own house. The new Committee was but a tool in the hands of Argyle. The old Presbyterian viewed with equal dislike the sectaries of Cromwell, the men of the Engagement which had cost Hamilton his head, and the Malignants who had gathered to the standard of Montrose. The Resolutioner, who wished to repeal the Act of Classes, was too lukewarm: the Remonstrant was too violent. It was by this last body that the troubles we have now to examine came upon Scotland.

After the collapse of Hamilton's army at Uttoxeter in August 1648, a body of Covenanters assembled at Mauchline, in Ayrshire, to protest against the leniency with which the Engagement had been treated in the Estates, where, indeed, a considerable minority had been inclined openly to countenance it. Their leader was at first the Earl of Eglinton, a staunch Covenanting lord; but as they gathered strength Argyle joined them with his Highlanders, and the command soon passed into his hands. The Protesters marched upon Edinburgh. In an attempt to take Stirling Castle they were defeated by Sir George Monro with a division of Hamilton's army which had not crossed the border; but Argyle had better tools to work with than the claymores of his Highlanders. He opened negotiations with Cromwell, who led an army in person into Scotland, renewed the Covenant, laid before the Estates (the new Estates of Argyle and his party) certain considerations, as he diplomatically called them, demanding, among other things, that no person accessory to the Engagement should be hereafter employed in any public place or trust. The Committee were only too willing to have the support of Cromwell to what they themselves so vehemently desired. Two Acts were quickly passed: one reversing many of the acts of its predecessors and

confirming the considerations: the other, known in history as the Act of Classes, defining the various misdemeanours which were to exclude men from sitting in Parliament or holding any public office, for a period measured by their offences, and practically to be determined by the judicatories of the Kirk.

This Mauchline Convention was popularly known at the time as the Whiggamores' Raid, a name memorable as the first introduction into history of a word soon to become only too familiar, and still a part of our political vocabulary.^[8] Its immediate result was to throw the direction of affairs still more exclusively into the hands of the clergy: indirectly, but no less surely, it was the cause of the Pentland Rising and the savage persecution which followed, of the murder of Archbishop Sharp, of the battles of Drumclog and Bothwell Bridge, and of those terrible years still spoken of in Scotland as the "killing-time." It was, in short, like the wrath of Achilles, the spring of unnumbered woes.

Then followed the execution of Charles. Against this the whole body of Presbyterians joined in protesting. The hereditary right of kings was, indeed, as much a principle of the Covenant as their divine right was opposed to it; and the execution at Whitehall on January 30th, 1649, was regarded with as much horror by the Presbyterians of England as by the Presbyterians of Scotland.

The first act of the Estates was to proclaim the Prince of Wales king of Great Britain, their next to send a deputation to Holland to invite him to take possession of his kingdom. It had been better both for Charles and for Scotland that the invitation had never been accepted. The terms on which alone the Scots would see the son of Charles Stuart back among them as crowned king were such as only the direst necessity could have induced him to accept: they were such as it seems now amazing that even the most bigoted and inexperienced could really have believed that the son of his father, or, indeed, any man in his position, would keep one moment longer than circumstances compelled him. But his advisers, led on by Wilmot and Buckingham, bid him sign—sign everything, or all would be lost. He signed everything. First he put his hand to the Solemn League and Covenant: then to a second declaration promising to do his utmost to extirpate both Popery and Prelacy from all parts of his kingdom: finally, he

consented to figure as the hero of a day of public fasting and humiliation for the tyranny of his father and the idolatry of his mother. And while he was acquiescing to each fresh demand with a shrug of his shoulders and a whispered jest to Buckingham, and in his heart as much hatred for his humiliators as he was capable of feeling for anybody, he was all the while urging on Montrose to strike that wild blow for his crown which was to lead the brave marquis to the scaffold. The deaths of Hamilton and Huntly had preceded the death of Montrose by a few weeks: a few more weeks and Charles was in Scotland, a crowned king in name, virtually a prisoner. Within little more than a year the fight at Dunbar, and the "crowning mercy" of Worcester, had bitterly taught him how futile was all the humiliation he had undergone.

It will be enough to briefly recall the main incidents of the years which intervened between the battle of Worcester and the Restoration. After the establishment of the Protectorate an Act of Indemnity was passed for the Scottish people. From this certain classes were excepted. All of the House of Hamilton, for instance, and some other persons of note, including Lauderdale: all who had joined the Engagement, or who had not joined in the protestation against it: all who had sat in Parliament or on the Committee of Estates after the coronation of Charles at Scone: all who had borne arms at the battle of Worcester. From this proscribed list, however, Argyle managed to extricate himself. He had fortified himself at Inverary, and summoned a meeting of the Estates to which the chiefs of the Royalist party had been bidden. To conquer him in his own stronghold would have been difficult, perhaps impossible, to English soldiers unused to such warfare. Cromwell wisely preferred to negotiate, and Argyle was not hard to bring to terms. He bound himself to live at peace with the Government, and to use his best endeavours to persuade others to do so. In return he was to be left unmolested in the free enjoyment of his estates, and in the exercise of religion according to his conscience.

The politicians were now silenced; but a noisier and more troublesome body had still to be reckoned with. In July, 1653, the General Assembly was closed, and Resolutioners and Remonstrants were sent to the right about together. Some measures, however, had to be taken to prevent them, not from cutting each other's throats, which would have suited the Government well enough, but from stirring up a religious war, which they would

inevitably have done if left to the free enjoyment of their own humours. It was necessary so to strengthen the hands of one of the two parties that the other should be compelled to refrain at least from open hostilities. The Resolutioners, as the most tolerant and the mildest-mannered, would have been those Cromwell would have preferred to see in the ascendancy. But the Resolutioners had acknowledged Charles, and were, after their own fashion, in favour of the royal title. The Remonstrants were accordingly preferred. They, indeed, denied the authority of the Commonwealth over spiritual matters, but they also denied the authority of Charles; and it was felt that at such a crisis the civil allegiance was of more value than the religious. A law was accordingly established dividing Scotland into five districts, in each of which certain members of the Remonstrant clergy were empowered to ordain ministers, as it were, to the exercise of their functions. At the same time it was not the object of Cromwell to exalt one party at the expense of the other so much as to strike a balance between the two; and in doing this he was much served by the tact and good sense of James Sharp, whose name now first begins to be heard in Scottish history. He was on the side of the Resolutioners, but he so managed matters as to be favourably regarded by the Government as a person likely to be of service to them in the event of any open disruption between the two bodies, without losing the confidence of his own party. The Court of Session was the next to go, and in its place rose the Commission of Justice, of which James Dalrymple, afterwards Lord Stair, the first Scottish lawyer of his day, was the most conspicuous member. In 1654 the Act for incorporating the Union between England and Scotland was passed by the Commonwealth. With that Commonwealth disappeared the Union, but the few years of its existence were fruitful of at least one great boon to Scotland. In those years was established free-trade between the two countries: a boon for Scotland which she never properly appreciated till she lost it by the Navigation Act of the Restoration: an alleged grievance to England which had its share in bringing that Restoration to pass; for it was then, and for long after, a fixed principle in the philosophy of English commerce that free-trade between the two countries meant pillaging Englishmen to enrich Scotchmen. A regular postal service was also established. The abortive rising known as Glencairn's Expedition was the only act of open hostility that broke those few years of comparative tranquillity; and the lenient terms granted by Monk to the Highland leader tended more than anything to show how

weary of the long rule of disorder and bloodshed all the best of the two nations were growing. On September 3rd, 1658, Oliver Cromwell died, and in November of the following year Monk began his famous march to London. On May 25th, 1660, Charles the Second landed at Dover.

Though the Remonstrants had won the upper hand for a time, the bulk of the Scottish nation had been all along on the side of the Resolutioners. Much as the character and religious views of Charles were to their distaste, the principle of the Covenant was for a king, and it was by the principle of the Covenant that the Scottish nation stood. The stern and narrow bigotry of the Remonstrants, whom their short taste of power had made of course more fanatical and more quarrelsome than ever, had almost succeeded in forcing the more moderate Presbyterians into the arms of the Royalists. A little tolerance, a little tact on the English side would probably have cemented the alliance. But it was not to be.

It is important to remember this. The extreme party with which Claverhouse had to deal no more represented the Scottish nation than the Irishmen who follow Mr. Parnell's call in the House of Commons represent their nation now, or than men like Napper Tandy and Wolfe Tone represented it a century ago. It seems still a common belief that Claverhouse and his troopers were sent to force upon a sober, patient, God-fearing nation a religion and a king that they abhorred. Nothing could be farther from the truth. The large majority of the Scottish nation was as eager to welcome Charles as the old squires who had lost their fortunes for his father, or the young bloods who hoped to find fortunes under the son. The narrow and blatant form of religion professed by the extreme party was as repulsive to the bulk of their countrymen as to the King himself.

These men were a remnant of the old Remonstrants of the Mauchline Convention. They had originally, as we have seen, looked to Argyle as their leader; but when Argyle ranged himself on the side of the young King there were some among them who would not follow him. These maintained, and so far they were unquestionably right, that the "young man Charles Stuart" was, for all his protestations and oaths, as much at heart a Malignant as his father; and that those who pretended to believe him were playing the Kirk and the Covenant false. When Cromwell marched into Scotland to win the battle of Dunbar these men had formed themselves into a separate party

under Colonel Archibald Strachan, an able soldier who commanded that division of Leslie's army which had defeated Montrose in Rossshire. Strachan's design seems to have been to stand aloof for the present from either side; but from some not very intelligible cause he fell into disgrace with his party, and this is said to have so preyed upon his mind as to have caused his death. From that time the Wild Westland Whigs, as they began now to be called, had no ostensible leader. They withdrew sullenly to their own homes, contenting themselves during the remaining years of the Commonwealth with protesting against everybody and everything outside their own narrow circle. They must not be confounded with the general body of the Remonstrants, between whom and the Resolutioners Cromwell had to keep the balance. They were a people apart. Throughout the wild hill-districts of the Western Lowlands they preached their fierce crusade against all who were not prepared to stand by the spirit of the Covenant as they chose to interpret it. The toleration they demanded they would not give. No man should be free to worship God as he pleased: every man must worship Him in the way which seemed good to them, and in that way only. The moderate Presbyterians were as hateful to them as Charles himself and all his bishops; and they in their turn were as obnoxious to the majority of the Scottish nation as to the English Government. Cleric and layman alike was weary of the unending squabbles that had distracted the Church of Scotland since the days of Knox. They wished for peace; and no peace was possible so long as an ignorant and noisy minority would suffer it only at their own price.

One other point should also be remembered. It has been the custom to excuse the cruelties of the Covenanters, when they could not be denied, as the acts of men goaded into madness by years of persecution. This excuse will hardly serve. It might, indeed, serve to explain the murder of Sharp and the savage deeds of such men as Hamilton and Burley; but long before that time the Scottish fanatic had proved himself a match in ferocity for the bloodiest Malignant of them all. After Philiphaugh one hundred Irish prisoners were shot in cold blood, while a minister of the Covenanting Church stood by, reiterating in savage glee, "The wark goes bonnily on." About the same time eighty women and children were in one day flung over the bridge at Linlithgow for the crime of having been followers of the camp of Montrose. In 1647 three hundred of the Macdonalds who held a fortified

post on a hill in Kintyre surrendered at discretion to David Leslie. It is said that Leslie would have let them go but for his chaplain, John Nave. Borrowing the words of Samuel, "What meaneth then this bleating of the sheep in mine ears, and the lowing of the oxen which I hear?" in a long and fiery harangue this man of God exhorted the conquerors to finish their work, and threatened their captain with the curse of Saul who spared the Amalekites. The prisoners were butchered to a man.^[9]

If, then, it be but a delusion of later times that Scotland could at the Restoration have been conciliated into accepting a moderate form of Episcopacy, it is at least clear that there was at that time a strong party in the country anxious for a compromise between the two Churches, and willing to make all reasonable advances towards one. Unfortunately the first move on both sides was of a nature to make all chances of a compromise impossible.

Charles had conceived a violent dislike to Presbyterianism, and with his experiences of it the dislike was not unnatural. It was not, he told Burnet, a religion for gentlemen, and he found few among his court to contradict him. Scarcely had he settled himself in his capital when the Presbyterians were upon him. Sharp had already been some months in London as ambassador of the moderate party, the party of the old Resolutioners. But an easy way of reconciling Sharp's conscience was soon found. It is not precisely clear when the bargain was struck which was to convert the chosen champion of the Presbyterian Church into an archbishop, but struck it was, and in no long time. He had by Monk's advice visited Charles at Breda, and some suppose that the first interview completed the transformation. If so, he managed to delude his party very skilfully. His letters to the Assembly, though the light of subsequent events enables us to translate them more clearly than was possible at the time, were full of wise counsel, of apparently honest confessions of the many difficulties he foresaw in the way, and of protestations of fidelity and firmness which were no less implicitly believed. "I told him," said his colleague Robert Douglas, a man of very different stamp, when Sharp went up to London later for his ordination, "I told him the curse of God would be on him for his treacherous dealing; and that I may speak my heart of this man, I profess I did no more suspect him in reference to Prelacy than I did myself."^[10]

Meanwhile the extreme party had not been idle. It will be perhaps most convenient henceforth to distinguish them as Covenanters: to call them Whigs, as Burnet and other historians of the time call them, would not convey to modern ears the significance it had for their contemporaries. Even those stern and unbending Tories of whom Mr. Gladstone was once the spokesman have long ceased to regard the men who are still sometimes called Whigs as the most fanatical members of the body politic. It would be no mere fanciful application of modern terms to distinguish the two parties of the Scottish Church as Liberals and Radicals; but it will for many reasons be best henceforth to write of them as Presbyterians and Covenanters.

The Covenanters, then, had not been idle. Shortly after the Restoration they had, through a deputation of their elders and ministers, called upon their brethren of the Church to unite with them in an address to the King, praying him, as a member of the Covenant with themselves, to remember his obligations to that sacred institution and zealously to prosecute its blessed work in all his three kingdoms. Toleration in things religious was especially denounced as a vast mischief disguised under the specious pretence of liberty for tender consciences. Schismatics were to be stamped out as sternly as Papists and Prelatists; and by Schismatics were meant all men, members of their own Church no less than of others, who ventured to differ from them on any point of doctrine whatsoever.

The Committee of Estates, which had resumed its sittings, did not like the job. They called the deputation a private meeting of some protesting ministers, and clapped the leaders into prison.

A government had now been formed for Scotland. Middleton was Lord High Commissioner, a soldier of fortune who had been raised to the peerage for the occasion. He was also named commander-in-chief of the forces and governor of Edinburgh Castle. With him were associated Glencairn as Lord Chancellor, Lauderdale as Secretary of State, Rothes as President of the Council, and Crawford as Lord Treasurer. The first proceeding of this Parliament, known in the gossip of the time as the Drunken Parliament from the too frequent condition of its chiefs, was to pass a Rescissory Act, repealing all measures that had become law since the year 1633, including even those passed by the Parliament professing the authority of Charles himself. This was followed by an Act "concerning religion and Church

government," in which, after some pious but vague protestations of the royal design to "encourage the exercise of religion both public and private, and to suppress all profaneness and disorderly walking," it was promised that the administration by sessions, presbyteries, and synods would not for the present be interfered with. That present, however, soon passed. On May 27th, two days before the anniversary of the Restoration of the Monarchy, the Act for the Restoration of Episcopacy was made law. A previous Act had ordained May 29th to be kept holy; and the opposition taken to this by those who objected to all holidays as idolatrous had in turn produced a measure which practically marks the beginning of that system of vague bullying, as Dr. Burton has happily called it, which was in no long time to pass into a persecution anything but vague. On December 15th, in Westminster Abbey, Sharp was consecrated Primate of Scotland, and at the same time Fairfoul was raised to the see of Glasgow, Hamilton to the see of Galloway, and the good and gentle Leighton to the see of Dunblane.

Meanwhile the English Parliament had by its Navigation Act crushed for the time the short-lived hopes of Scottish commerce, and was now busy with an Act of Indemnity. This had been practically one of the conditions of the Restoration, but Scotland had not been included in the bargain. Argyle was the first to suffer from the omission. He had gone up to London to pay his court to the new King, but had been refused an audience. He was arrested, and, after a short sojourn in the Tower, sent back to Edinburgh to stand his trial for high treason before the Estates. He was found guilty and beheaded in the High Street on May 27th, 1661, two days after the anniversary of the more shameful death which he had helped to bring upon Montrose. As he had been expressly pardoned during the King's short reign in Scotland for all acts committed by him against the Crown up to the year 1657, and as his accusers could find no evidence of communications with the Parliament after that time, he must have been acquitted had it not been for Monk, who at the last moment produced certain letters written by Argyle to him when acting for Cromwell. Johnstone of Warriston was another victim, whom, like Argyle, it was no hard matter for judges who had a mind that way to bring within the compass of the law of treason. He, however, managed to get across to the Continent before he could be arrested. He was tried and condemned in his absence. After two years of painful shifts and wanderings he was tracked down in France by a man

known as Crooked-back Murray, and sent back to his fate. A third victim was James Guthrie, the most vehement and active of the Covenanters, the framer of the original Remonstrance and author of a seditious pamphlet called "The Causes of the Lord's Wrath." With him would probably have suffered Samuel Rutherford, a minister as zealous as Guthrie, but of more education and manners. Fortunately for him, he died before the reign of punishment began; and the Government was forced to content itself with ordering his book "Lex, Rex," to be burned by the hangman at the Cross of Edinburgh and at the gate of the University of Saint Andrews, where he had been Professor of Divinity. In 1662, an Act of Indemnity was made law, by which future punishment for the past was adjusted by a scale of fines.

Close on the heels of the Act of Indemnity followed one demanding from all persons holding any office of public trust a public abjuration of the Covenant, and another requiring all clergymen who had been appointed since 1649 to receive collation from the bishop of their diocese. Those who did not obey were, after a short respite, expelled from their parishes. Those who obeyed were regarded by their congregations as backsliders and self-seekers. Three hundred and fifty ministers were driven with their families from their homes in the depth of winter; and to supply their places new ministers were appointed, popularly known as the King's Curates. Another Act required attendance at the parish church on penalty of a fine graduated according to the rank of the absentee. Finally, to crown all, the Solemn League and Covenant was publicly burned at the market-cross of Edinburgh; and an aggravated copy of the English Five-mile Act against Non-jurors, known as the Mile Act, was passed, prohibiting all recusant clergymen from residing within twenty miles of their old parishes, within six miles of Edinburgh or any cathedral town, and within three miles of any royal burgh. The punishment for transgressing this law was to be the same as that for sedition.

Enough has now been said to show the nature of the bullying adopted by the Government. Over the years which still lie between us and the entry of Claverhouse on the stage I must pass more rapidly.

In 1663 Rothes succeeded Middleton as commissioner. The latter had been rash enough to measure his strength with Lauderdale, and had been signally worsted. To complete the legislative machinery a Conventicle Act was

passed this year, declaring all assemblies of more than five persons, besides members of the family, unlawful and seditious. As most of their congregations had followed the expelled ministers into the wilderness, this new law so mightily increased the labours of the authorities that it was found necessary to institute a new tribunal of justice for the especial treatment of ecclesiastical offences. This was no less than a renewal of that old Court of High Commission which had been abolished by the Long Parliament twenty years before to the joy of the whole nation. To strengthen its hands a body of troops was sent down into the western shires, now the stronghold of the Covenant, to impose and exact the fines ordained by the Commission. Their leader was Sir James Turner, a man of some education, but rough and brutal. He had served on the Continent under Gustavus Adolphus, had fought under Leslie in the Presbyterian ranks, and had accompanied Hamilton with the Engagers into England. Turner, in his own memoirs, declares that he not only did not exceed his orders, but was even lenient beyond his commission. When, a few years later, in a momentary fit of indulgence, his acts were called in question by the Privy Council, the evidence hardly served to establish his assertion.

At length the West rose. On November 13th, 1666, four countrymen came into the little village of Dalry, in Galloway, in search of refreshment. There they found a few soldiers, driving before them a body of peasants to thresh out the corn of an old man who would not pay his fines. There was an argument and a scuffle: a pistol was fired and a soldier fell: the rest yielded. It was now too late to go back. Turner was posted at Dumfries with a considerable sum of money in his charge. It was determined to seize him. The four champions had now been joined by some fifty horsemen and a large body of unmounted peasants. Turner was made prisoner; and the money restored to the service of those from whose pockets it had been originally drawn.

The number of the insurgents had now risen to three thousand. They determined to march on Edinburgh, thinking to gather recruits on the way; but when they came within five miles of the city their hearts failed them. The weather was bitterly cold: provisions and arms were scarce: the peasantry of the more cultivated districts had proved either lukewarm to the cause or openly hostile: no recruits had come in, and their own ranks were growing daily thinner. At length they turned on their tracks and made once

more for their western fastnesses. But they had now to reckon with a more dangerous foe than Turner.

The garrison in Edinburgh was commanded by Thomas Dalziel, a ferocious old soldier who had learned his trade in the Russian wars. His dress was as uncouth as his manners, and he wore a long white bushy beard that no steel had been suffered to touch since the death of the first Charles.^[11] With all the regulars he could muster Dalziel was quickly after the fugitives. He came up with them on Rullion Green, a ridge of the Pentland Hills. Though now numbering scarce a thousand men, the Covenanters were strongly posted, and defended themselves bravely. The royal troops were twice driven back before they could carry the ridge, and night had fallen before the insurgents were fairly broken. The slaughter was not great; and it is significant of the unpopularity of their cause that the fugitives suffered more from the Lothian peasantry than from the victorious soldiers.

The Government could now assume the virtue of those who are summoned to quell an open rebellion. Dalziel was put in command of the insurgent districts, and his little finger was indeed found thicker than Turner's loins. Twenty men were hanged on one gibbet in Edinburgh and many others in various parts of the country: crowds were shipped off to the plantations: torture was freely applied, and the ingenious devices of the boot and the thumbkin were in daily requisition.^[12] Dalziel was in his element. A prisoner reviled him at the council board for "a Muscovy beast who roasted men." The old savage struck the man with the hilt of his sword so fiercely in the mouth that the blood gushed out.

At length there came a lull. Weary of the useless butchery, which, hitherto, they had not perhaps fully realised, the English Government determined to see if indulgence could persuade where persecution was powerless to force. Orders to that effect were sent up to Edinburgh. The soldiers were withdrawn from the western shires. Sharp was bidden to retire to his see. Lauderdale took the place of Rothes as commissioner.

The character of Lauderdale is one of the most curious problems of the time. In his youth he had been as zealous for the Covenant as he now appeared to be zealous for Episcopacy. Hence some have supposed that his real design was by favouring the intolerance of the bishops to bring them to

discomfiture, and to re-establish on their ruin the old Presbyterian Church, for which, despite the profligacy of his life and conversation, he was still believed to entertain as much veneration as he was capable of feeling for any form of religion. But whatever may have been his regard for the old Covenant of his youth, he was set as a rock against the men who were now as much opposed to any moderate observance of Presbyterian worship as the most inveterate Malignant at Whitehall.

The first Indulgence was passed in 1669, in favour of the ministers whom the Act of 1662 had driven from their parishes. Such as had since that time kept from open violation of the law were now to be reinstated in their livings where vacant. The manse and the glebe were to be theirs as formerly, but the stipend was not to be renewed. These terms were accepted by some forty or fifty clergymen. By the advice of the gentle Leighton, who almost alone among his brethren seems at this time to have dared, or to have been even willing, to counsel tolerance, a deputation, nicknamed "the Bishop's Evangelists," was sent into the West to preach the doctrine of this Indulgence. The pious crusade was in vain. The failure of the Pentland rising and its terrible sequel had turned those stubborn hearts to madness. Their weaker brethren were now classed with the apostate Sharp and the butcher Dalziel; and the Indulgence was declared a snare for the soul far more deadly than any torture the Government could devise for the body. Nor, if time could have strengthened Leighton's hands, was time allowed him. Following close upon the Indulgence came a fresh Act, now making not only all field-preaching a capital offence, but even laying heavy penalties on any exercise of the Presbyterian worship except under an Indulged minister. This again was soon followed by a fresh law against Intercommuning—that is to say, against all who should offer even the simplest act of common charity to a Covenanter—and promising large rewards to all who should give information against them or their protectors. By this law it is said that thousands of both sexes, including many persons of rank, suffered severely; and from it sprang a curious incident in the miserable history of this time.

An order was issued to the landed gentry of Renfrew and Ayr, the shires where the disaffection was strongest, requiring them to give bail that their servants and tenants should not only abstain from personal attendance at conventicles, but also from all intercourse with intercommuned persons.

The gentry answered that such assurance was impossible. It was not, they said, within the compass of their power to do this thing. The reply from Edinburgh was short and conclusive: if the landlords could not keep order in their districts, order must be kept for them. A body of English troops had already been moved up to the border and an Irish force collected at Belfast; but a more ingenious mode of punishment was now devised. Since the barbarous excesses of the Highland clans under Montrose, it had become an acknowledged breach of the rules of civilised warfare to employ men who, like the Red Indians used in our own American wars, were amenable to no discipline and recognised no principles of humanity. Eight thousand of these savages were now let loose on the disobedient Lowlanders. The result was, indeed, not all that had been anticipated at Edinburgh. The Council had naturally enough expected that the descent of these plaided barbarians would be the signal for a general insurrection, which would relieve them of their troubles as certainly and much more conveniently than Dalziel's dragoons and Perth's thumbkins. While Highlander and Lowlander were cutting each other's throats, Lauderdale and his colleagues would have ample leisure to decide on the apportionment of the booty.^[13] In this, however, they were disappointed. No armed resistance was offered. During the two months these marauders lived at free quarters, without any distinction between friend and foe, on a land which, compared with their own barren moors and mountains, was a paradise flowing with milk and honey, only one life was lost, and that the life of a Highlander. At length the scandal became too great even for Lauderdale. Hamilton, who, like his brother before him, had always stood by the Crown, went up to London with several gentlemen of rank to protest against a tyranny which they vowed was that of Turks rather than Christians. According to one account, the King would not see them: according to another, he admitted Hamilton to an interview, and, after hearing his protest, owned that many bad things had been done in Scotland, but none, so far as he could see, contrary to his interests. It was clear, however, that in this matter Lauderdale had gone too far. The Highlanders were ordered to return to their homes. They returned accordingly, laden with spoil such as they had never dreamed of, and of the use of a large part of which they were as ignorant as a Red Indian or a negro.^[14]

The departure of the Highland host leaves the stage free for Claverhouse. It was at this crisis he returned to Scotland, and here this summary of one of the most miserable chapters in British history may fitly end.

FOOTNOTES:

[7] This is, perhaps, the best place to disclaim all intention of scoffing at this great writer and historian. It is a common impertinence of the day in which I have no wish to join. It is not, I hope, an impertinence to say that only those who have, for their own purposes, been forced to follow closely in his tracks can have any just idea of the unwearying patience and acuteness with which he has examined the confused and so often conflicting records of that time, or of the incomparable skill with which he has brought them into a clear continuous narrative. To glean after Macaulay is indeed a barren task. So far, then, from affecting to cavil at his work, I must acknowledge that without his help this little book would have been still less. Yet I do think he has been hard upon Claverhouse. Perhaps the scheme of his history did not require, or even allow him, to examine the man's character and circumstances so closely as a biographer must examine them. It is still more important to remember that the letters discovered by Napier in the Queensberry Archives were not known to him. Had he seen them, I am persuaded that he would have found reason to think less harshly of their writer.

[8] "The south-west counties of Scotland have seldom corn enough to serve them round the year; and the northern parts producing more than they need, those in the west come in the summer to buy at Leith the stores that come from the north; and from a word 'whiggam,' used in driving their horses, all that drove were called the 'whiggamores,' and shorter, the 'whiggs.' Now in that year, after the news came down of Duke Hamilton's defeat, the ministers animated the people to rise and march to Edinburgh; and they came up, marching on the head of their parishes, with an unheard-of fury, praying and preaching all the way as they came. The Marquis of Argyle and his party came and headed them, they being about 6,000. This was called the Whiggamores' Inroad: and even after that all that opposed the Court came in contempt to be called Whiggs: and from Scotland the word was brought into England, where it is now one of our unhappy terms of distinction."—Burnet, i. 58. See also Scott's "Tales of a Grandfather," ch. xii. Mr. Green, however, thought the word *whig* might be the same as our *whey*, implying a taunt against the "sour-milk faces" of the fanatical Ayrshiremen.—"History of the English People," iii. 258.

[9] Sharpe's notes to Kirkton's "History of the Church of Scotland," pp. 48-9. See also Wishart's "Memoirs of Montrose."

[10] "The Lauderdale Papers." The most important passages in Sharp's letters will be found in Burton's history, vii. pp. 129-146.

[11] "Memoirs of Captain John Creichton," pp. 57-9.

[12] The torture of the thumbkin is said to have been introduced into Scotland by Lord Perth, who had seen it practised in Russia. But, according to Fountainhall, something very like it had been previously known under the homely name of "Pilliwinkles," or "Pilliwinks."

[13] "Duke Lauderdale's party depended so much on this that they began to divide, in their hopes, the confiscated estates among them, so that on Valentine's Day, instead of drawing mistresses they drew estates."—Burnet, ii. 26.

[14] "When the Highlanders went back one would have thought they had been at the sacking of some besieged town, by their baggage and luggage. They were loaded with spoil. They carried away a great many horses and no small quantity of goods out of merchants' shops, whole webs of linen and woollen cloth, some silver plate bearing the names and arms of gentlemen. You would have seen them with loads of bedclothes, carpets, men and women's wearing clothes, pots, pans, gridirons, shoes and other furniture whereof they had pillaged the country."—Wodrow, ii. 413.

CHAPTER III.

Claverhouse was not left long in idleness. In 1664, the year of the first Indulgence, it had been determined to withdraw the regular troops altogether from Scotland, leaving their place to be supplied by the local militia, which was now practically raised to the condition of a standing army and, contrary to immemorial law, placed under the immediate authority of the Crown. But the bishops and their clergy had demurred. They had little fancy for being left with no other protection than a half-disciplined rabble, who, ready as they might be to act against their troublesome countrymen, had no more respect for a lawn sleeve than for a homespun jerkin. A few troops of regular cavalry were therefore retained, and one regiment of Foot Guards. The former were commanded by Athole, the latter by Linlithgow. Towards the end of 1677 a fresh troop of cavalry was raised, and the command given to the young Marquis of Montrose, grandson to him who had died on the scaffold and kinsman to Claverhouse.

Claverhouse applied to him for employment, and it appears from Montrose's answer that the application had been warmly backed by the Duke of York. "You cannot imagine," runs the letter, "how overjoyed I should be to have any employment at my disposal that were worthy of your acceptance; nor how much I am ashamed to offer you anything so far below your merit as that of being my lieutenant; though I be fully persuaded that it will be a step to a much more considerable employment, and will give you occasion to confirm the Duke in the just and good opinion which I do assure you he has of you." The writer goes on to say that he himself was expecting instant promotion, and to promise his kinsman a share in whatever fortune might befall him: none but gentlemen, he adds, are to ride in his troop. The offer was accepted, and the promotion was not long delayed.

The Indulgence had failed, as by some at least of those who had countenanced it it had been expected to fail. The Opposition, led at Edinburgh by Hamilton and Argyle, and backed in London by Monmouth and Shaftesbury, which had for some time past been working openly against

Lauderdale, had also for the moment failed. The Commissioner's hands were strong. With the King and the Duke of York at his back, and, in Edinburgh, Sharp, Burnet, and the majority of the Episcopalian clergy, together with all the needy nobles who loved best to fish in troubled waters, Lauderdale could afford, as he thought then, to laugh at all opposition. To assume that his design had been from the first to goad the West into open rebellion affords, indeed, a simple explanation of a policy that in its persistent unwisdom and brutality seems strangely irrational and monstrous, even for such times and men. But it is rash to take any policy as certain in those dark and crooked councils, unless it be—as probably in Lauderdale's case it was, and as it assuredly was in the case of most of his creatures—the policy of personal aggrandisement. At any rate, after the failure of the Indulgence had been made clear even to those hopeful spirits who still, with Leighton, had believed it possible to efface years of wrong by a few grudging concessions, the cruel game was renewed with fresh vigour. The Highlanders, indeed, had gone, but their place was now to be filled by a more dangerous because a more disciplined foe. Orders were given to raise three new troops of cavalry for special service in Scotland. The Earls of Home and Airlie were chosen by Lauderdale to command two of these troops: the third was, at the King's express desire, given to Claverhouse. At the same time, Athole, who was now in opposition with Hamilton and Argyle, was superseded by Montrose, and Linlithgow named commander-in-chief of all the royal forces in Scotland.

Claverhouse now for the first time steps in his own person on the stage of Scottish history. Eleven years later, in 1689, he passes off it for ever. It is with the tale of that brief time, so crowded with action, so variously recorded, that we shall be from this point concerned.

He was now in his thirty-fifth year. Confused and conflicting as the witnesses of his life and character may be, of the man himself as he looked to the eyes of his contemporaries there is the clearest testimony. Over the mantelpiece of Scott's study in Castle Street hung the only picture in the room—a portrait of Claverhouse. An original portrait Lockhart calls it, but which of the five portraits engraved in Napier's volumes it may have been, if any of them, I cannot tell. All these engravings, with a unanimity not common in the portraiture of the time, show the same face: a face of delicate, almost feminine beauty, framed in the long full love-locks of the

period.^[15] The eyes are large and dark, the figure small but well made, and the general expression of the countenance one of almost boyish smoothness and simplicity. His manners were gentle and courteous, though reserved: his habit of life was, as has been already said, singularly decorous: he was scrupulous in the observance of all religious ordinances. After his death an old Presbyterian lady, who had lodged below him in Edinburgh, told Lochiel's biographer how astonished she had been to find one of his profession so regular in his devotions. In truth, one of the most curious, and at the same time one of the most indisputable, points in the life of this singular man is the contrast between those public actions which have had so large a share in moulding the popular impression, and his private character and conduct. And not less curious is the contrast between the reality of his personal appearance and the counterfeit presentment likely to be fostered by a too liberal adherence to that impression. It would be difficult to imagine a more complete surprise than awaits those who turn for the first time from the stern, brutal, and profane soldier of the historian's page to the high-bred and graceful gentleman of the painter's canvas.

Claverhouse seems to have received his commission in the autumn of 1678. The earliest of his letters extant is dated from Moffat, a small town in the north of Dumfriesshire, on December 28th. It is addressed to Lord Linlithgow, and contains this significant passage: "On Tuesday was eight days, and Sunday there were great field-conventicles just by here, with great contempt of the regular clergy, who complain extremely when I tell them I have no order to apprehend anybody for past misdemeanours."^[16] And this scrupulous observance of his orders, at a time when a little excess of zeal was unlikely to be regarded as a very serious blunder, is yet more strikingly illustrated in his next letter, written a week later from Dumfries. In that town, at the southern end of the bridge over the Nith, the charity of some devout Covenanting ladies had lately set up a large meeting-house. The clergy, as wild against the Covenanters as Lauderdale himself, were very importunate with Claverhouse to demolish this hotbed of disaffection; but he, though he confessed privately to his chief his annoyance at seeing a conventicle held with impunity "at our nose," answered all importunities with a calm reference to his orders. The southern end of the bridge was in Galloway, and in Galloway his commission did not run. The authority of the Deputy-Sheriff of the shire was therefore called into play, and with his

countenance the offending building was quickly razed to the ground. In his report of this business Claverhouse writes:—"My Lord, since I have seen the Act of Council, the scruple I had about undertaking anything without the bounds of these two shires is indeed frivolous, but was not so before. For if there had been no such act, it had not been safe for me to have done anything but what my order warranted; and since I knew it not, it was to me the same thing as if it had not been. And for my ignorance of it, I must acknowledge that till now, in any service I have been, I never inquired further in the laws than the orders of my superior officers." This will not be the only occasion on which Claverhouse will be found keeping strictly within the lines of his commission, instead of, as he has been so frequently charged with doing, wantonly and savagely exceeding it.

This Deputy-Sheriff (or Steward, as the phrase then ran) needs a word to himself, both on his own account, as representing a certain phase of character unfortunately too common to the time, and as the real author of many of the cruel deeds of which Claverhouse so long has borne the blame. Sir Robert Grierson of Lag was regarded in his own district with an energy of hatred to which even the terror inspired by Claverhouse gave place, and which has survived to a time within the memory of men still living. In the early years of this century the most monstrous traditions of his cruelty were still current, and are not yet wholly extinct. In a vaulted chamber of the house in which he lived, on the English road some three miles south of Dumfries, is still shown an iron hook from which he is said to have hung his Covenanting prisoners; and a hill in the neighbourhood is still pointed out as that down which he used, for his amusement, to send the poor wretches rolling in a barrel filled with knife-blades and iron spikes,—an ingenious form of torture, commonly supposed to have been invented by the Carthaginians two thousand years ago for the particular benefit of a Roman Consul. The dark and mysterious legend of Sir Robert Redgauntlet, with which Wandering Willie beguiled the way to Brokenburn-foot, was a popular tradition of Sir Robert Grierson, or Lag (as, in the familiar style of the day he was more commonly called) in Scott's own lifetime: the fatal horseshoe, the birth-mark of all the Redgauntlet line, was believed to be conspicuous on the foreheads of every true Grierson in moments of anger; and it was a grandson of old Lag himself who sat to Scott for the portrait of the elder Redgauntlet, the rugged and dangerous Herries of Birrenswark.

Within the last fifty years it was a custom of Halloween in many of the houses in Dumfriesshire and Galloway to celebrate by a rude theatrical performance the evil memory of the Laird of Lag.^[17]

Born of a family which had held lands in Dumfriesshire since the fifteenth century, and had figured at various times on the troubled stage of Scottish history, Lag was undoubtedly a man of some parts and capacity for public affairs, but coarse, cruel and brutal beyond even the license of those times. The Covenanting historians charge him with vices such as even they shrank from attributing to Claverhouse; and, careful as it is always necessary to be in taking the evidence of such witnesses, it is abundantly clear that even these ingenious romancists would have been hard put to it to stain the memory of Lag. Later historians have been sometimes less careful in distinguishing between the two men. At least in one striking instance, the misdeeds of this ruffian have been circumstantially charged to the account of his more famous and important colleague.

It will be remembered that in the picture Macaulay has drawn of Claverhouse the soldiers under his command, and by implication Claverhouse himself, figure as relieving their sterner duties by a curious form of relaxation. They would call each other, he says, by the names of devils and damned souls, mocking in their revels the torments of hell. The authority for this surprising statement is Robert Wodrow, who was not born when Claverhouse returned to Scotland, and whose history of the Scottish Church was not published till more than thirty years after the battle of Killiecrankie.^[18] Wodrow's work is very far from being the contemptible thing some apologists for Claverhouse would have us believe; but he is not a witness whose unsupported testimony it is always safe to take for gospel-truth. He wrote at a time when the naturally romantic imagination of the Scottish peasantry, stimulated by the memories of old men who had known the evil times, had largely embellished the facts he set himself to chronicle; and following the fashion of his day (indeed, as one may say, the fashion of many historians who cannot plead Wodrow's excuse), he was not always careful to separate the romance from the reality, even where the latter might have better served his turn. But considering all the circumstances—the circumstances of the time, of his subject, and of his own prepossessions, he is a writer whom it is impossible to disregard; and, indeed, compared with the other Covenanting chroniclers he stands apart as the most sober and

impartial of historians. Where he got the story that has been so ingeniously fashioned into an indictment against Claverhouse is not clear. The passage runs as follows:—"Dreadful were the acts of wickedness done by the soldiers at this time, and Lag was as deep as any. They used to take to themselves, in their cabals, the names of devils and persons they supposed to be in hell, and with whips to lash one another, as a jest upon hell. But I shall draw a veil over many of their dreadful impieties I meet with in papers written at this time." This is not exactly the sort of evidence any judge but a hanging judge would allow, though it would serve well enough the turn of a prosecutor. It is at any rate evidence which no one, with any experience of the sort of gossip the annalists of the Covenant were content to call history, would care to take seriously. But whatever its value may really be, so far as it goes it is evidence not against Claverhouse but against Lag. It is clear from Wodrow that the story refers not to the royal soldiers but to the local militia; and a writer a little later than Wodrow makes it still more clear that the men supposed thus to have disported themselves in their cups were those commanded by Lag. John Howie, an Ayrshire peasant and a Cameronian of the strictest sect, who was not born till fourteen years after Wodrow had published his history, has given Lag a particular place in the Index Expurgatorius of his "Heroes for the Faith." There we may read how this "prime hero for the promoting of Satan's kingdom" would, "with the rest of his boon companions and persecutors, feign themselves devils, and those whom they supposed in hell, and then whip one another, as a jest upon that place of torment." Claverhouse, as has been already shown, was himself singularly averse to all rioting and drunkenness, as well as to profane amusements of every kind; and, as he was indisputably one of the sternest disciplinarians who ever took or gave orders, it is unlikely that he would have countenanced any such unseemly revels in the men under his command, with whom, moreover, he was in these years thrown into unusually close personal contact. But, in truth, the story, so far as he is concerned, is too foolish to need any solemn refutation. It has been only examined at this length as furnishing a signal instance of the recklessness with which the misdeeds of others have been fathered on him. ^[19]

The work Claverhouse now found to do must have been singularly distasteful to one who had seen war on a great scale under such captains as William and Condé. It was at once undignified and dangerous; and though

danger was all to his taste, it was one thing to risk one's life in open battle with enemies worthy of a soldier's steel, and another and very different thing to run the chance of a stray bullet from behind a haystack or through a cottage window. The line of country he had to patrol (for his work was really little more than that) was all too large for the forces at his disposal. The enemies with whom he had mostly to deal were either old men or women, for the Covenanters were well supplied with intelligence, and generally had ample warning of his movements, quick and indefatigable as they were. "If your lordship give me any new orders, I will beg they may be kept as secret as possible, and sent for me so suddenly as the information some of the favourers of the fanatics are to send may be prevented."^[20] And again:

"I obeyed the orders about seizing persons in Galloway that very night I received it, as far as it was possible; that is to say, all that was within forty miles, which is the most can be ridden in one night; and of six made search for, I found only two, which are John Livingston, bailie of Kirkcudbright, and John Black, treasurer there. The other two bailies were fled, and their wives lying above the clothes in the bed, and great candles lighted, waiting for the coming of the party, and told them, they knew of their coming, and had as good intelligence as they themselves; and that if the other two were seized on, it was their own faults, that would not contribute for intelligence. And the truth is, they had time enough to be advertised, for the order was dated the 15th, and came not to my hands till the 20th. I laid the fellow in the guard that brought it, so soon as I considered the date, where he has lain ever since, and had it not been for respect to Mr. Maitland [Lauderdale's nephew] who recommended him to me I would have put him out of the troop with infamy."^[21]

The letters written during the first months of his commission are full of warnings of this sort. And he had other complaints to make, which must have been still more against the grain. He was so inadequately supplied with money by the Council that he found it a hard matter to pay his men, and harder still to pay the country people for the necessary provisions and forage; for, so far from quartering his men at large upon the peasantry, he seems, at any rate in those first months, to have been scrupulous to pay at

the current rates for all he required to a degree that matches rather with the niceties of modern warfare than the customs of those rough times.

In March Claverhouse was appointed Deputy-Sheriff of Dumfriesshire by a particular warrant from Whitehall, and Andrew Bruce of Earlshall, one of his lieutenants, was nominated with him. This step gave great offence to Queensberry, who, as Sheriff of the shires of Dumfries and Annandale, by law held all such patronage in his own hand, and marks the beginning of the petty jealousy which from this time forward he seems to have shown to Claverhouse whenever he dared, and which rose afterwards, as we shall see, to a serious height. But Queensberry was no match for Lauderdale; and Claverhouse was duly settled in his new office, which, while strengthening his hands and enabling him to dispense with many tedious formalities, at the same time considerably increased his labours.

And so winter passed into spring, and still Claverhouse found no work more worthy of him than patrolling the country, arranging for his men's quarters, examining suspected persons, and endeavouring to persuade the Government to leave him not entirely penniless. More than once he sent word to Edinburgh that he believed something serious was afoot. "I find," he writes to Linlithgow on April 21st, "Mr. Welsh is accustoming both ends of the country to face the king's forces, and certainly intends to break out into open rebellion." This Welsh is a famous figure in Covenanting history. Grandson to a man whose name was long held in affectionate memory by his party as that of the "incomparable John Welsh of Ayr," and great-grandson to no less a hero than John Knox himself, he was on his own account a memorable man. He had inaugurated the first conventicle, and had ever since been zealous in promoting them and officiating at them among the wild hills and moorlands of the western shires, till his name had become a byword among the soldiers for his courage in braving and his skill in evading them. But though one of the most resolute and indefatigable of the ministers of the Covenant, he was also one of the most moderate and sensible. Had no one among them been more eager than he to carry the war into the enemy's country there had been no Bothwell Bridge. And, indeed, we shall find him seriously taken to task by the more extreme of the party as a backslider from the good cause for his endeavour to avert that disastrous affair.

Yet Claverhouse was right. Something very serious was soon to be afoot. During the last few weeks the Covenanters had been notoriously growing bolder. They did not always now, as hitherto, content themselves with evading the soldiers: they became in their turn the aggressors. More than once an outlying post of Claverhouse's men had been fired upon; and on one occasion a couple of the dragoons had been savagely murdered in cold blood. Even Wodrow found himself forced to own that about this time "matters were running to sad heights among the armed followers of some of the field meetings." But the trouble did not arise through John Welsh. It came through a servant of the Crown who had been a sorer plague to his countrymen than a myriad of disaffected ministers.

On May 5th, Lord Ross^[22] from Lanark, and on the 6th Claverhouse from Dumfries, sent in their despatches to the commander-in-chief at Edinburgh as usual. It is clear that neither of them had at that time heard any rumour of an event which had happened a few days previously at no very great distance from their quarters. On May 2nd the Primate of Scotland had been dragged from his carriage as he was driving across an open heath three miles out of Saint Andrews, and murdered in open day before the eyes of his daughter.

James Sharp, Archbishop of Saint Andrews, was at that time probably the best-hated man in Scotland. Like all renegades he was in no favour even with his own party, though Lauderdale found after trial that he could not dispense with his support. Even the moderate Presbyterians, who regarded the uncompromising Covenanters as the real cause of their country's troubles, looked askance upon Sharp, as the man whom they had chosen out of their number to save them and who had preferred to save himself. By the Covenanters themselves he was assailed with every form of obloquy as the Judas who had sold his God and his country for thirty pieces of silver, and who had hounded on the servants of the King to spill the blood of the saints. Yet his murder was but an accident. Eleven years before an attempt had, indeed, been made upon his life by one Mitchell, a fanatical and apparently half-witted preacher, who was after a long delay put to the torture and finally executed on a confession which he had been induced to make after a promise from the Privy Council that his life should be spared. It is said that Lauderdale would have spared him, but Sharp was so vehement for his death that the Duke dared not refuse.

The chief promoters of the Archbishop's murder were Hackston of Rathillet, Russell of Kettle, and John Balfour of Burley, or, more correctly, of Kinloch. These three men were typical of the class who at this time began to come to the front among the Covenanters, and by their incapacity, folly, and brutality discredited and did their best to ruin a cause whose original justice had been already too much obscured by such parasites. It is impossible to believe that they, or such as they, were inspired by any strong religious feelings. Hackston and Balfour were men of some fortune, who had been free-livers in their youth, and were now professing to expiate those errors by a gloomy and ferocious asceticism. Both had a grudge against Sharp. Balfour had been accused of malversation in the management of some property for which he was the Archbishop's factor, and Hackston, his brother-in-law, had been arrested as his bail and forced to make the money good. Russell, who has left a curiously minute and cold-blooded narrative of this murder,^[23] was a man of headstrong and fiery temper. They had all those dangerous gifts of eloquence which, coarse and uncouth as it sounds to our ears, was, when liberally garnished with texts of Scripture, precisely such as to inflame the heated tempers of an illiterate peasantry to madness. It is important to distinguish men of this stamp from the genuine sufferers for conscience' sake. The latter men were, indeed, often wrought up by their crafty leaders to a pitch of blind and brutal fury which has done much to lessen the sympathy that is justly theirs. But they were at the bottom simple, sincere, and pious; and they can at least plead the excuse of a long and relentless persecution for acts which the others inspired and directed for motives which it would be difficult, perhaps, to correctly analyse, but assuredly were not founded on an unmixed love either for their country or their faith. Stripped of the veil of religious enthusiasm which they knew so well how to assume, men of the stamp of Sharp's murderers were in truth no other than those brawling and selfish demagogues whom times of stir and revolution always have brought and always will bring to the front. There need, in these days, be no difficulty in understanding the characters of men who dress Murder in the cloak of Religion and call her Liberty.

Every child knows the story of the tragedy on Magus Moor. It will be enough here to remind my readers, once more, that it was no preconcerted plan, but a pure accident—or, as the murderers themselves called it, a gift

from God. The men I have named, with a few others, were really after one Carmichael, who had made himself particularly odious by his activity in collecting the fines levied on the disaffected. But Carmichael, who was out hunting on the hills, had got wind of their design and made his way home by another route. As the party were about to separate in sullen disappointment, a messenger came to tell them that the Archbishop's coach was in sight on the road to Saint Andrews. The opportunity was too good to be lost. Hackston was asked to take the command, but declined, alleging his cause of quarrel with Sharp, which would, he declared, "mar the glory of the action, for it would be imputed to his particular revenge." But, he added, he would not leave them, nor "hinder them from what God had called them to." Upon this, Balfour said, "Gentlemen, follow me;" and the whole party, some nine or ten in number, rode off after the carriage, which could be seen in the distance labouring heavily over the rugged track that traversed the lonely expanse of heath. How the butcher's work was done: how Sharp crawled on his knees to Hackston, saying, "You are a gentleman—you will protect me," and how Hackston answered, "Sir, I shall never lay a hand on you": how Balfour and the rest then drew their swords and finished what their pistols had begun; and how the daughter was herself wounded in her efforts to cover the body of her father—these things are familiar to all.

From May 6th to 29th no letters from Claverhouse have survived; but on the latter date he sent a short despatch from Falkirk, announcing his intention of joining his forces with Lord Ross to scatter a conventicle of eighteen parishes which, he had just received news, were about (on the following Sunday) to meet at Kilbryde Moor, four miles from Glasgow. The following Sunday was June 1st, on which day Claverhouse was indeed engaged with a conventicle; but in a fashion very different from any he had anticipated.

FOOTNOTES:

[15] It is said that he used to tend these curls with very particular care, attaching small leaden weights to them at night to keep them in place,—a custom which, I am informed, has in these days been revived by some dandies of the other sex.

[16] This very much bears out Burnet's complaint against the Episcopal clergy in Scotland, which has been so strenuously denied by Creichton. "The clergy used to speak of that time as the poets do of the golden age. They never interceded for

any compassion to their people; nor did they take care to live more regularly, or to labour more carefully. They looked on the soldiery as their patrons; they were ever in their company, complying with them in their excesses; and, if they were not much wronged, they rather led them into them than checked them for them."—"History of My Own Time," i. 334.

[17] "The Laird of Lag," by Lieut.-Col. Fergusson, pp. 7-11.

[18] His "History of the Sufferings of the Church of Scotland" was first published in 1721.

[19] This confusion was first pointed out by Aytoun in an appendix to the second edition of his "Lays of the Scottish Cavaliers."

[20] Claverhouse to Linlithgow, December 28th, 1678. These letters are all quoted from Napier's book. I have thought it better to give the date of the letter than the reference to the page.

[21] Claverhouse to Linlithgow, February 24th, 1679.

[22] George, eleventh Lord Ross, was joined with Claverhouse in the command of the western shires. He had married Lady Grizel Cochrane, daughter of the first Earl of Dundonald, and aunt of the future Lady Dundee.

[23] Printed in Sharpe's edition of Kirkton's "History of the Church of Scotland." It differs in some, but not very important, points from the account printed in the same volume from Wodrow's manuscripts.

CHAPTER IV.

The die was now fairly cast. In a general rising lay the only hope of safety for Sharp's murderers. Desperate themselves, they determined to carry others with them along the same path, and by some signal show of defiance commit the party to immediate and irretrievable action. The occasion for this was easily found. May 29th, the King's birthday, had been, as already mentioned, appointed as a general day of rejoicing for his restoration. This had from the first given offence as well to those members of the Presbyterian Church who saw in his Majesty's return no particular cause for joy, as to those more ascetic spirits who objected on principle to all holidays. May 29th was therefore hailed as the day divinely marked, as it were, for the purpose on hand, a crowning challenge to the King's authority.

The business was put in charge of Robert Hamilton, a man of good birth and education, but violent and rash, without any capacity for command and, if some of his own side may be trusted, of no very certain courage. With him went Thomas Douglas, one of the fire-breathing ministers, Balfour and Russell and some seventy or eighty armed men. Glasgow had been originally chosen for the scene of operations; but a day or two previously a detachment of Claverhouse's troopers had marched into that city from Falkirk, and the little town of Rutherglen, about two miles to the west of Glasgow, was chosen instead.

On the afternoon of the 29th Hamilton and his party made their appearance in Rutherglen. They first extinguished the bonfire that was blazing in the King's honour; and, having then lit one on their own account, proceeded solemnly to burn all the Acts of Parliament and Royal Proclamations that had been issued in Scotland since Charles's return. A paper was next read, containing a vigorous protest against all interferences of the English Government with the Presbyterian religion, and especially those subsequent to the Restoration. This paper, which was styled the Declaration and Testimony of some of the true Presbyterian party in Scotland, was then nailed to the market-cross of the little town, and the party withdrew. All this, be it remembered, was done within only two miles of the royal forces,

some of whom, it is said, were actually spectators of the whole affair at scarce musket-shot's distance. It was fortunate for the party that Claverhouse was not in Glasgow at the time.

He was then in Falkirk, from which place he had, as we have seen, written to Linlithgow on the very day of the Rutherglen business of a rumour he had heard of some particular gathering appointed for the following Sunday, June 1st. Though he did not believe it, he thought it well to join forces with Ross in case there might be need for action. This was done at Glasgow on Saturday; and at once Claverhouse set off for Rutherglen to inquire into the affair of the 29th. As soon as he had got the names of the ringleaders he sent patrols out to scour the neighbourhood for them. A few prisoners were picked up, and among them one King, a noted orator of the conventicles, formerly chaplain to Lord Cardross, whose service he had left, it is said, on account of a little misadventure with one of the maid-servants. The troops halted for the night at Strathavon, and early next morning set off with their prisoners for Glasgow. On the way Claverhouse determined on "a little tour, to see if we could fall upon a conventicle," which, he ingenuously adds, "we did, little to our advantage."

During his search for the Rutherglen men he had heard more of the plans for Sunday. It was clear something was in the air, and report named Loudon Hill as the place of business, a steep and rocky eminence marking the spot where the shires of Ayr, Lanark, and Renfrew meet. To Loudon Hill accordingly Claverhouse turned his march, and soon found that rumour had for once not exaggerated.

Two miles to the east of the hill lies the little hamlet and farm of Drumclog, even now but sparsely covered with coarse meadow-grass, and then no more than a barren stretch of swampy moorland. South and north the ground sloped gently down towards a marshy bottom through which ran a stream, or dyke, fringed with stunted alder-bushes. On the foot of the southern slope, across the dyke, the Covenanters were drawn up; and the practised eye of Claverhouse saw at a glance that they had gathered there not to pray but to fight. "When we came in sight of them," he wrote to Linlithgow, "we found them drawn up in battle upon a most advantageous ground, to which there was no coming but through mosses and lakes. They were not preaching, and had got away all their women and children."^[24]

They were ranged in three lines: those who had firearms being placed nearest to the dyke, behind them a body of pikemen, and in the rear the rest, armed with scythes set on poles, pitchforks, goads and other such rustic weapons. On either flank was a small body of mounted men. Hamilton was in command: Burley had charge of the horse; and among others present that day was William Cleland, then but sixteen years old, and destined ten years later to win a nobler title to fame by a glorious death at the head of his Cameronians in the memorable defence of Dunkeld.

As usual, it is impossible to estimate with any exactness the strength of either side. According to one of their own party, who was present, the Covenanters did not exceed two hundred and fifty fighting men, of whom fifty were mounted and the same proportion armed with guns. These numbers have been accepted, of course, by Wodrow, and also by Dr. Burton. But within a week this handful had, on Hamilton's own testimony, grown to six thousand horse and foot; and though, no doubt, the success at Drumclog would have materially swelled the Covenanting ranks, if they were only two hundred and fifty on that day, the most liberal calculation can hardly accept the numbers said to have been gathered on Glasgow Moor six days later. Probably, if we increase the former total and diminish the latter, we shall get nearer the mark; but it is impossible to do more than conjecture. Sharpe, in the fragment printed by Napier, rates Hamilton's force at six hundred. Claverhouse's own estimate was "four battalions of foot, and all well armed with fusils and pitchforks, and three squadrons of horse." His experience was more likely to serve him in such matters than the untrained calculations of men who were, moreover, naturally concerned to magnify the defeat of the King's troops as much as possible; while it is clear from the tone of his own despatch, which is singularly literal and straightforward, that he had no wish, and did not even conceive it necessary, to excuse his disaster. But here again the estimate helps us little, owing to the vague use of the terms battalion and squadron. For the same reason we can but guess at the strength of the royal force. In the writings of the time Claverhouse's command is indiscriminately styled a regiment and a troop. It is certain that he was the responsible officer, so that, whatever its numerical strength, he stood to the body of men he commanded in the relation that a colonel stands to his regiment. But it is probable that his regiment, with those commanded by Home and Airlie, were practically considered as the

three troops of the Royal Scottish Life Guards of whom the young Marquis of Montrose was colonel. From a royal warrant of 1672, it appears that a troop of dragoons was rated at eighty men, exclusive of officers, and that a regiment was to consist of twelve troops. But it is hardly possible that this strength was ever reached. From a passage in the third chapter of Macaulay's history it does not seem as if the full complement of a regiment of cavalry can have much exceeded four hundred men; but, I repeat, the indiscriminate use of the terms troop and regiment, battalion and squadron, makes all calculations theoretical and vague.^[25] Scott puts the King's forces at Drumclog at two hundred and fifty men; and, as a detachment had been left behind in garrison with Ross's men at Glasgow, this is probably not over the mark, if Macaulay's estimate of a regiment be correct. He also, in the report Lord Evandale makes to his chief, rates the Covenanters at near a thousand fighting men, which would probably tally with Claverhouse's estimate. But, whatever the strength of either side may have been, it is tolerably certain that the advantage that way was on the side of the Covenanters.

The description of the fight in "Old Mortality" is an admirable specimen of the style in which Scott's genius could work the scantiest materials to his will. All contemporary accounts of the fray are singularly meagre and confused; and, indeed, the art of describing a battle was then very much in its infancy. It is difficult, from Claverhouse's own despatch, to get more than a general idea of the affair, which was probably after the first few minutes but an indiscriminate *mêlée*. No doubt it was his consciousness of some lack of clearness that inspired his apologetic postscript: "My Lord, I am so wearied and so sleepy that I have written this very confusedly." The flag of truce, which in the novel Claverhouse sends down under charge of his nephew Cornet Graham to parley with the Covenanters, was of Scott's own making, though it seems that a couple of troopers were despatched in advance to survey the ground. Nor does Claverhouse mention any kinsman of his, or any one of his name, as having fallen that day: the only two officers he specifies are Captain Blyth and Cornet Crafford, or Crawford, both of whom were killed by Hamilton's first fire. But though Claverhouse mentions no one of his own name, others do. By more than one contemporary writer one Robert Graham is included among the slain. It is said that while at breakfast that morning in Strathavon he had refused his

dog meat, promising it a full meal off the Whigs' bodies before night; "but instead of that," runs the tale, "his dog was seen eating his own thrapple (for he was killed) by several." Another version is, that the Covenanters, finding the name of Graham wrought in the neck of the shirt, savagely mangled the dead body, supposing it to be that of Claverhouse himself.^[26]

But to come from tradition to fact. The affair began with a sharp skirmish of musketry on both sides. To every regiment of cavalry there were then joined a certain proportion of dragoons who seem to have held much the position of our mounted infantry, men skilled in the use of firearms and accustomed to fight as well on foot as in the saddle. A party of these advanced in open order down the hill to the brink of the dyke and opened a smart fire on the Covenanters, who answered with spirit, but both in their weapons and skill were naturally far inferior to the royal soldiers. Meanwhile, some troopers had been sent out to skirmish on either flank, and to try for a crossing. This they could not find; but, unable to manœuvre in the swampy ground, found instead that their saddles were emptying fast. Then Hamilton, seeing that his men were no match at long bowls for the dragoons, and marking the confusion among the cavalry, gave the word to advance. By crossings known only to themselves Burley led the horse over the dyke on one flank, while young Cleland followed with the bulk of the foot on the other. Claverhouse thereupon called in his skirmishers, and, advancing his main body down the hill, the engagement became general. But in that heavy ground the footmen had all the best of it. The scythes and pitchforks made sad work among the poor floundering horses. His own charger was so badly wounded that, in the rider's forcible language, "its guts hung out half an ell;" yet the brave beast carried him safely out of the press.^[27] The troopers began to fall back, and Burley, coming up on sound ground with his horse, flung himself on them so hotly that the retreat became something very like a rout. Claverhouse, to whose courage and energy that day his enemies bear grudging witness, did all that a brave captain could, but his men had now got completely out of hand. "I saved the standards" (one of which had been for a moment taken) "and made the best retreat the confusion of our people would suffer." So he wrote to Linlithgow, but he made no attempt to disguise his defeat. He owns to having lost eight or ten men among the cavalry, besides wounded; and the dragoons lost many more. Only five or six of the Covenanters seem to have fallen, among whom was one of

Sharp's murderers. This does not speak very well for their opponents' fire; but then we have only the testimony of their own historians to go by. Claverhouse himself could say no more than that "they are not come easily off on the other side, for I saw several of them fall before we came to the shock."

Pell-mell went the rout over the hill and across the moorland to Strathavon, through which the Life Guards had marched but a few hours before in all their bravery. As their captain passed by the place where his prisoner of the morning, John King, was now lustily chanting a psalm of triumph, the reverend gentleman called out to him, with audacity worthy of Gabriel Kettledrummle, "to stay the afternoon sermon." At Strathavon the townspeople drew out to bar their passage, but the fear of their pursuers lent the flying troopers fresh heart: "we took courage," writes Claverhouse, "and fell to them, made them run, leaving a dozen on the place." Through Strathavon they clattered, and never drew rein till they found themselves safe in Glasgow among their own comrades.

Fortunately the pursuit had slackened, or it might have gone ill with the garrison in Glasgow. Claverhouse's men had no doubt fine tales to tell of the fury of the Whig devils behind them; and had Hamilton been strong enough in cavalry to enter the town at the heels of the flying troopers it is not likely that he would have met with much opposition. The pursuit, however, did not follow far. Thanksgivings had to be made for the victory, and the prisoners to be looked to. All these, according to Wodrow, were let go after being disarmed; but Hamilton himself tells a very different tale. His orders had been strict that there should be no quarter that day; but on his return from the pursuit he found that his orders had been disobeyed. Five prisoners had been dismissed, and were already out of his reach: two others were waiting while their captors debated on their fate. Then Hamilton, furious that any of "Babel's brats" should be let go, slew one of these with his own hand, to stay any such unreasonable spirit of mercy, "lest the Lord would not honour us to do much more for him."^[28]

That night the Covenanting captains stayed at Lord Loudon's house, where, though the master had deemed it prudent to keep out of the way, they were hospitably entertained by her ladyship. The next morning they continued their march to Glasgow.

Claverhouse was ready for them. The town was too open a place to be properly barricaded, but he had caused some sort of breastwork to be raised near the market-cross as cover for his men, and patrols had been out since daybreak to watch Hamilton's movements. That worthy was reported to be dividing his men into two bodies, one of which presently marched on the town by the Gallowgate bridge, while the other took a much longer route by the High Church and College. It was thus possible to deal with the first before the latter could come to its assistance. This was very effectually done. About ten in the morning the attack was made by way of the bridge, led by Hamilton in person.^[29] But the welcome which met them from the barricades was too warm for the Covenanters. They broke and fled at the first fire, Claverhouse and Ross at the head of their men chasing them out of the town. Meanwhile, their comrades, descending the hill on the other side, saw what was going on, and, having no mind for a similar welcome, turned about and made off by the way they had come. The two parties joined and halted for a while at the place they had occupied on the previous night; but when they heard Claverhouse's trumpets sounding again to horse they fell back to Hamilton Park, where it was not thought prudent to follow them.

FOOTNOTES:

[24] Claverhouse to Linlithgow, June 1st, 1679. This is the famous despatch which Scott says was spelled like a chambermaid's. The original is now among the Stow Manuscripts in the British Museum.

[25] Cannon's "Historical Records of the British Army" (Second Dragoons): Macaulay's History, i. 305-8.

[26] Russell's account of Sharp's murder, Kirkton, p. 442. See also Creighton's Memoirs, though the captain was not present at the fight, having remained in garrison at Glasgow. In a Latin poem, "Bellum Bothuellianum," by Andrew Guild, now in the Advocates' Library at Edinburgh, are the following lines:

"Tum rabiosa cohors, misereri nescia, stratos
Invadit, laceratque viros: hic signifer, eheu!
Trajectus globulo, Græmus, quo fortior alter
Inter Scotigenas fuerat, nec justior ullus:
Hunc manibus rapuere feris, faciemque virilem
Fœdarunt, lingua, auriculis, manibusque resectis
Aspera diffuso spargentes saxa cerebro."

The passage is quoted at length in the notes to "Old Mortality." Sharpe, in his notes to Kirkton, says, on the authority of Wodrow, that Cornet Graham was shot

by one John Alstoun, a miller's son, and tenant of Weir of Blackwood. This is not correct. There was a Cornet Graham so killed, but not till three years after Drumclog.

[27] "With a pitchfork they made such an openeing in my rone horse's belly." Sir Walter, following tradition, has mounted Claverhouse on a coal-black charger without a single white hair in its body, a present, according to the legends of the time, from the Devil to his favourite servant. See also Aytoun's fine ballad "The Burial March of Dundee":

"Then our leader rode among us
On his war-horse black as night;
Well the Cameronian rebels
Knew that charger in the fight."

[28] Kirkton, 444, note.

[29] It was reported by some of his own party that as his men entered the town Hamilton withdrew into a house at the Gallowgate to wait the issue. But it would be no more fair to take this report for truth than it would be to assume that Claverhouse really forbad burial to the dead Whigs, that the dogs might eat them where they lay in the streets. There was too much quarrelling in the Covenanting camp to allow us to take for granted all their judgments on each other when unfavourable; and at Drumclog Hamilton seems by all accounts to have borne himself bravely enough, whatever he may have done subsequently.

CHAPTER V.

There is no letter from Claverhouse in this year, 1679, later than that reporting the defeat at Drumclog. There was, indeed, no occasion for him to write. As soon as the news of his defeat and the attack on Glasgow had reached the Council, orders were at once sent for the forces to withdraw from the latter place and join Linlithgow at Stirling. After Bothwell Bridge had been won he was sent again into the West on the weary work that we have already seen him employed on. But during the intervening time his independent command had ceased. At the same time there is no reason to suppose that he was in any disgrace for the defeat at Drumclog. He had committed the fault, not uncommon, as military history teaches, with more experienced leaders than Claverhouse, of holding his foe too cheaply: he had committed this fault, and he had paid the penalty. There is some vague story of a sealed commission not to be opened till in the presence of the enemy, and when opened on the slope of Drumclog containing strict orders to give battle wherever and whenever the chance might serve. But the story rests on too slight authority to count for much. His own temperament would have made him fight without any sealed orders; and, indeed, he had not long before written to Linlithgow that he was determined to do so on the first occasion, and had warned his men to that effect. The wisdom of his resolve is clear. Disgusted with their work, discontented with the hardness of their fare and the infrequency of their pay, in perpetual danger of their lives from unseen enemies, his soldiers were getting out of hand. Claverhouse was the sternest of disciplinarians; but the discipline of those days was a very different thing from our interpretation of the word. It was more a recognition by the soldier of the superior strength and possibilities of his officer, than trained obedience to an inevitable law. When they once had satisfied themselves that their captain was unable to bring the enemy to book, was unable even to provide them with proper rations and pay, no love for the flag would have kept them together for another hour. It was essential for Claverhouse to show them that he and they were more than a match for their foes whenever and in whatever form the opportunity came.

Unfortunately for him it came in the form of Drumclog, and the proof had still to be given.

But it is abundantly clear that no stain was considered to rest either on his honour or his skill. The only ungenerous reference to his discomfiture came a few years later in the shape of a growl from old Dalziel against the folly of splitting the army up into small detachments at the discretion of rash and incompetent leaders. Claverhouse was removed from his independent command only because the circumstances of the moment made it necessary. When it was found necessary to despatch a regular army against the insurgents (as, for all their provocation, they must after Drumclog be styled), he took his proper place in that army as captain of a troop in the Royal Scottish Life Guards. When the brief campaign had closed at Bothwell Bridge, and, worst fortune for him, affairs had resumed their original complexion, he went back to his old position.

It will be necessary, then, to supply this gap in Claverhouse's correspondence by a brief review of the state of things from the battle of Drumclog to the date of his new commission.

The garrison of Glasgow had, as we have seen, joined Linlithgow at Stirling. There they lay for a day or two till orders were received from the Council for the whole army, which only numbered about eighteen hundred men in all, to fall back on Edinburgh. In the capital the greatest consternation reigned. The first proceeding of the Council was to proclaim the rising "an open, manifest, and horrid rebellion," and all the insurgents were summoned to surrender at discretion as "desperate and incorrigible traitors." Having thus satisfied their diplomatic consciences they wisely proceeded to more practical measures. The militia was called out, horse and foot, in all the Lowlands, save in the disaffected shires. For those north of the Forth the rendezvous was at Stirling, for those south on the links of Leith. Each man was to bring provisions with him for ten days. The magistrates were ordered to remove all the powder and other munitions of war they could find in the city to the Castle. An armed guard was stationed night and day in the Canongate, and another in the Abbey. Finally, a post was sent to London on Linlithgow's advice to urge the instant despatch of more troops, and two shillings and sixpence a day of extra pay was promised to every foot soldier.

They were not disturbed in their preparations. The Covenanters were too busy with their own affairs to take much heed what their enemies might be doing. They did, indeed, march into Glasgow, but beyond shooting a poor wretch whom they vowed they recognised as having fought against them on the 2nd, and possibly indulging in a little looting, they did nothing. They did not stay long in the town. Plans they seem to have had none, nor any settled organisation or discipline. Moving restlessly about the neighbourhood from village to village and from moor to moor, their preachers exhorted and harangued as much against each other as against Pope or Prelate, and their leaders quarrelled as though there were not a King's soldier in all Scotland, nor Claverhouse within a dozen miles of them eager for the moment to strike. There was no lack of arms among them, and their numbers seem at this time to have been not far short of eight thousand. But no men of any position or influence in the country had joined them with the exception of Hamilton; and his authority, whether the story of his cowardice at Glasgow be true or not, was not what it had been at Rutherglen and Drumclog. The preachers seemed to have exercised the only control over the rabble; and such control, as was natural, seems rarely to have lasted beyond the length of their sermons, which, indeed, were not commonly short. As the Covenanters (to keep to the distinguishing name I have chosen) were an extreme section of the Presbyterians, so now the Covenanters themselves were divided into a moderate and an extreme party. The chiefs of the former, or Erastians as their opponents scornfully termed them, were John Welsh and David Hume. Of Hume there is no particular account, but Welsh we have met before. Though he had been under denunciation as a rebel ever since the Pentland rising (in which he had, indeed, borne no part), he had never given his voice for war; and, though assuredly neither a coward nor a trimmer, had always kept from any active share in the proceedings of his more tumultuous brethren. His plan, and the plan of the few who at that time and place were on his side, was temperate and reasonable. They asked for no more than they were willing to give. Against the King, his government, and his bishops they had no quarrel, if only they were suffered to worship God after their own fashion. Though they themselves had not accepted the Indulgence, they were not disposed to be unduly severe with those who had. In a word, they were willing to extend to all men the liberty they demanded for themselves. Had there been more of this wise mind among the Covenanters—among the Presbyterians,

one may indeed say—though it is hardly possible to believe that Lauderdale and his crew would not still have found occasion for oppression, it would be much easier to find sympathy for the oppressed.

On the other side, Hamilton himself, Donald Cargill, and Thomas Douglas were the most conspicuous in words, while Hackston, Burley, and the rest of Sharp's murderers were, of course, with them. Hamilton and Douglas we know. Cargill, like Douglas, was a minister: he had received a good education at Aberdeen and Saint Andrews, but had soon fallen into disgrace for the disloyalty and virulence of his language. In a sermon on the anniversary of the Restoration he had declared from his pulpit that the King's name should "stink while the world stands for treachery, tyranny, and lechery."^[30] In this party all was confused, extravagant, fierce, unreasoning. What they wanted, what they were fighting to get, from whom they expected to get it, even their own historians are unable to explain, and probably they themselves had no very clear notions. They talked of liberty, by which they seem to have meant no more than liberty to kill all who on any point thought otherwise than they did: of freedom, which meant freedom from all laws save their own passions: of the God of their fathers, and every day they violated alike His precepts and their practice. To slay and spare not was their watchword; but whom they were to slay, or what was to be gained or done when the slaying was accomplished, no two men among them were agreed. For the moment the current of their fury seems to have set most strongly against the Indulgence and those who had accepted its terms. A single instance will show pretty clearly the state of insubordination into which those unhappy men had fallen. It was announced that one Rae, a favourite expounder on the moderate side, was about to preach on a certain day in camp. Hamilton, who still retained the nominal command, sent him a letter bidding him not spare the Indulgence. To this Rae, who does not seem himself to have been in any position of authority, made answer that Hamilton had better mind what belonged to him, and not go beyond his sphere and station.^[31] It would not be difficult to draw a parallel between the condition of the Covenanting camp at that time and the so-called Irish Party of our own time. Indeed, if any body will be at the trouble to examine the contemporary accounts of Hamilton and his followers, and particularly their language, much of which has been

faithfully chronicled by their admirers, they will be surprised to find how closely the parallel may be pushed.

Meanwhile, on the other side preparations went briskly forward. A strong detachment of regular troops was at once despatched from London, with the young Duke of Monmouth himself in command. Great pains have been taken both by contemporary and later writers to explain the reason of this appointment. It was designed, they have said, to render him unpopular in Scotland. It is certainly possible that he might have been sent to Scotland to get him out of the way of his admirers in England, who just at that time were somewhat inconveniently noisy in their admiration. But the appointment does not seem to need any very subtle explanation. Monmouth was the King's favourite son. He had served his apprenticeship to the trade of war in the Low Countries, and under such captains as Turenne and William of Orange. He was popular with the people for his personal courage, his good looks, his pleasant manners, and above all for his Protestantism—a matter with him possibly more of policy than principle, but which served among the common people to gain him the affectionate nickname of The Protestant Duke, and to distinguish him in their eyes as the natural antagonist to the unpopular and Popish James. With all his faults Monmouth was no tyrant, and Charles himself was rather careless than cruel. This appointment, therefore, was taken in Scotland to signify a disposition on the King's part to employ gentle means if possible with the insurgents, and as such was not altogether approved of. Gentle means were not much to the taste of the presiding spirits of the Council-Board at Edinburgh, whose native ferocity had certainly not been softened by the fright and confusion of the last few days. It was particularly requested, therefore, that Dalziel might be named second in command, who might well be trusted to counteract any unseasonable leniency on Monmouth's part. Fortunately for the insurgents the old savage did not receive his commission till the day after the battle.

Monmouth left London on June 15th and reached Edinburgh on the 18th. He at once took the field. Montrose commanded the cavalry, Linlithgow the foot: Claverhouse rode at the head of his troop under his kinsman, and the Earls of Home and Airlie were there in charge of their respective troops: Mar held a command of foot. Many other Scotch noblemen and gentlemen of position followed the army as volunteers. Some Highlanders and a

considerable body of militia made up a force which has been put as high as fifteen thousand men, but probably did not exceed half that number.

The near approach of the royal troops only increased the quarrelling and confusion in the insurgent camp, which was pitched now at Hamilton. Some friends at Edinburgh had sent word to them that Monmouth might be found not indisposed to treat; and that it would be best for them to stand off for a while, and not on any account be drawn into fighting. But the idea of treating only inflamed the more violent. On the 21st a council was called which began in mutual recrimination and abuse, and ended in a furious quarrel. Hamilton drew his sword, vociferating that it was drawn as much against the King's curates and the minions of the Indulgence as against the English dragoons, and left the meeting followed by Cargill, Douglas and the more violent of his party. Disgusted with the scene, and convinced of the hopelessness of a cause supported by such men, many left the camp and returned to their own homes. Welsh and the moderate leaders resolved to take matters into their own hands. On the morning of the 22nd Monmouth had reached Bothwell. His advance guard held the little town about a quarter of a mile distant from the river: his main body was encamped on the moor. Shortly after daybreak he was surprised by a visit from Welsh, Hume and another of their party, Fergusson of Caitloch. Monmouth received them courteously, and heard them with patience while they read to him a paper (known in Covenanting annals as the Hamilton Declaration) they had drawn up detailing their grievances and their demands. The first were indisputable: the second were, as has been said, moderate. Monmouth was, however, forced to answer that he could not treat with armed rebels. If they would lay down their arms and surrender at discretion, he promised to do all he could to gain them not only present pardon but tolerance in the future. Meanwhile, he said, they had best return to their camp, report his message, and bring him back an answer within half an hour's time. They returned, only to find confusion worse confounded, and their own lives even in some danger from the furious Hamilton.

The half-hour passed, and no further sign of submission was made. Monmouth bid the advance be sounded, and the Foot Guards, commanded by young Livingstone, Linlithgow's eldest son, moved down to the bridge. Just at that spot the Clyde is deep and narrow, running swiftly between steep banks fringed on the western side with bushes of alder and hazel. The

bridge itself was only twelve feet wide, and guarded in the centre with a gate-house. The post was a strong one for defence, and had there been any military skill, or even unity of purpose, among the defendants, Monmouth would have had to buy his passage dear. Hackston of Rathillet had thrown himself with a small body of determined men into the gate-house, while Burley, with a few who could hold their muskets straight, took up his post among the alder-bushes. The rest stood idly by while their comrades fought. For about an hour Hackston held the gate till his powder was spent. He sent to Hamilton for more, or for fresh troops, but the only answer he received was an order to retire. He had no choice but to fall back on the main body, which he found at that supreme moment busily engaged in cashiering their officers, and quarrelling over the choice of new ones. The English foot then crossed the bridge: Monmouth followed leisurely at the head of the horse, while his cannon played from the eastern bank on the disordered masses of the Covenanters. A few Galloway men, better mounted and officered than the rest of their fellows, spurred out against the Life Guards as they were filing off the narrow bridge, but were at once ordered back by Hamilton. The rest of the horse in taking up fresh ground to avoid the English cannon completed the disorder of the foot—if, indeed, anything were wanted to complete the disorder of a rabble which had never known the meaning of the word order; and a general forward movement of the royal troops, who had now all passed the bridge, gave the signal for flight. Hamilton was the first to obey it, thus, in the words of an eye-witness, "leaving the world to debate whether he acted most like a traitor, a coward, or a fool."^[32] Twelve hundred of the poor wretches surrendered at discretion: the rest fled in all directions. Monmouth ordered quarter to be given to all who asked it, and there is no doubt that he was able considerably to diminish the slaughter. Comparatively few fell at the bridge, but four or five hundred are said to have fallen, "murdered up and down the fields," says Wodrow, "wherever the soldiers met them, without mercy." Mercy was not a conspicuous quality of the soldiery of those days; and the discovery of a huge gallows in the insurgents' camp, with a cartload of new ropes at the foot, was not likely to stay the hands of men who knew well enough that had the fortune of war been different those ropes would have been round their necks without any mercy. But it is clear that Monmouth was able to save many. When Dalziel arrived next day in camp and learned how things had gone, he rebuked the Duke to his face for betraying his command. "Had I come a day sooner," he

said, "these rogues should never have troubled his majesty or the kingdom any more."^[33]

There is no authority for attributing to Claverhouse himself any particular ferocity. We may be pretty sure that the Covenanting chroniclers would not have refrained from another fling at their favourite scapegoat could they have found a stone to their hand; but as a matter of fact, in no account of the battle is he mentioned, save by name only, as having been present with his troop in Monmouth's army. The fiery and vindictive part assigned to him by Scott rests on the authority of the most amazing tissue of absurdities ever woven out of the inventive fancy of a ballad-monger.^[34] He had no kinsman's death to avenge, and he was too good a soldier to directly disobey his chief's orders, however little they may have been to his taste.

There is, moreover, positive evidence to the contrary. Six years after the battle one Robert Smith, of Dunscore, who had been among the rebel horsemen at Bothwell, deposed that as they, some sixteen hundred in number, were in retreat towards Carrick, he saw the royal cavalry halted within less than a mile from the field, and this was considered by the fugitives to have been done to favour their escape. "For," he went on, "if they had followed us they had certainly killed or taken us all." It is clear, therefore, that whatever Claverhouse might have done had he been left to himself, or whatever he may have wished to do—what he did do was, in common with the rest of the army, to obey his superior's orders.

FOOTNOTES:

[30] "Lives of the Scots Worthies," p. 383.

[31] Wodrow, iii. 93.

[32] Wodrow, iii. 107.

[33] Creichton, pp. 37-8.

[34] See some doggrel verses on the battle in "The Minstrelsy of the Scottish Border," in which Claverhouse is represented as posting off to London from the field of battle and, by means of false witnesses, bringing Monmouth to the scaffold as a traitor who had given quarter to the King's enemies. Sir Walter, of course, knew very well what he was about; but it did not seem to him necessary to write fiction with the nice exactness of the historian; nor was he, happily for us, of that scrupulous order of minds which conceives that a cruel wrong has been done to the reputation of a man who has been in his grave for nearly a century and a half by employing the colours of tradition to heighten the pictures of fancy.

CHAPTER VI.

Could Monmouth's influence have lasted, their defeat at Bothwell Bridge might have turned out well for the Covenanters. As soon as he had led his army back into quarters, he hastened to London, where he so strongly represented the brutal folly and mismanagement of Lauderdale's government, that he prevailed upon the King to try once more the effect of gentler measures. An indemnity was granted for the past, and even some limited form of indulgence for the future. But the unexpected return of the Duke of York from Holland put an end to all these humane counsels. Monmouth was himself soon again in disgrace; and Lauderdale, though his power was now past its height, was still strong enough to mould to his own will concessions for which the time had now perhaps irrevocably gone.

The twelve hundred prisoners from Bothwell were marched in chains to Edinburgh, and penned like sheep in the churchyard of the Grey Friars, the building which barely forty years before had witnessed the triumphant birth of that Covenant which was, if ever covenant of man was, assuredly to be baptized in blood. Two of them, and both ministers, were immediately executed: five others, as though to appease the cruel ghost of Sharp, were hanged on Magus Moor: of the rest, the most part were set at liberty on giving bonds for their future good behaviour, while the more obstinate were shipped off to the plantations.

Claverhouse was now sent back to his old employment. Though none of his own letters of this time have survived, it is clear from an Order of the Privy Council that shortly after the affair at Bothwell he was again entrusted with the control of the rebellious shires. There is unfortunately no record of his own by which it is possible to check the vague charges of Wodrow, who wisely declines to commit himself to particulars on the ground that "multitudes of instances, once flagrant, are now at this distance lost," while not a few, he candidly admits, "were never distinctly known." In the rare cases in which he becomes more specific in his complaints, he does not make it clear that the offences were committed in Claverhouse's presence, nor even that they were always committed by soldiers of his troop—"the

soldiers under Claverhouse" seem to stand with him for all the royal forces then employed in the western shires. That what he calls "spulies, depredations, and violences" were committed on Claverhouse's authority may be freely granted: they were precisely such as a strict obedience to the letter (and no less to the spirit) of his commission would have enjoined—the levying of fines, the seizure of arms, horses, and other movable property from all suspected of any share in the rebellion who would not absolve themselves by taking the oath of abjuration, and from all reseters, or harbourers, of known rebels. It would be idle to refuse to believe that many unjust and cruel acts were not committed at this time, as we know they were committed subsequently, merely because they cannot be succinctly proved. It is unlikely that Claverhouse himself wasted over-much time on sifting every case that was brought in to him by his spies; and where he was not himself present—and it must be remembered that he was not the only officer engaged in this service, and also that his own soldiers were often employed under his lieutenants on duties he was personally unable to attend to—it is hard to doubt that much wild and brutal work went on. The whole case, in short, except in a very few instances (which will be examined elsewhere), is one solely of hearsay and tradition; and it is no more than common justice in any attempt to define Claverhouse's share in it, to give him the benefit of the doubt where it is not directly contrary to the proved facts and the evidence of his despatches. For Claverhouse, it should be also and always remembered, may be implicitly trusted to speak the truth in these matters, for the simple reason that he was not in the least ashamed of his work. We may well believe that it was not the work he would have chosen; but it was the work he had been set to do; and his concern was only to execute it as completely as possible. He was a soldier, obeying the orders of his superiors, for which they and they only were responsible. That their orders matched with his feelings, religious as well as political, for Claverhouse was as thorough in his devotion to the Church as he was in his devotion to the Crown, mattered nothing. The whole question was to him one of military obedience. Sorely as he may have chafed at the order, he halted his troopers on the banks of the Clyde when Monmouth's trumpets sounded the recall, with the same readiness and composure that he showed in leading them to the charge down the slopes of Drumclog; and he would have led them against his brothers-in-arms Ross or James Douglas, had they turned rebels, as straightly and keenly as he led them against Hamilton and

Burley. At the same time both his letters and his actions show that he did his best to discriminate between the ringleaders and the crowd: between the brawling demagogues or the meddling priests and the honest ignorant peasants, whose only crime was that they wished to worship God after a fashion the Government chose to discountenance. It is not necessary to assume that he was moved thereto by any softness of heart: common-sense, and a sense, too, of justice, would suffice to show him where to strike. And it will hereafter be seen that, where his commission was large enough, he more than once exercised a discretion not entirely to the taste of the more thorough-going zealots of the Edinburgh Council-board.

The only distinct evidence we have of him at this time is contained in the aforesaid Orders of Council. From these it appears that he had been charged by the Scottish Treasury with appropriating the public moneys to his use. He had been appointed for his services trustee to the Crown of the estate of one Macdowall of Freugh, an outlawed Galloway laird; and of this estate it was alleged that he would render no accounts, nor of the fines he had been commissioned to levy on the non-abjuring rebels. With characteristic fearlessness Claverhouse went straight to London, and in a personal interview satisfied Charles of his innocence, who forthwith ordered him to be reinstated in his commission and all the privileges belonging to it.^[35] It is clear, however, that during the greater part of the year 1680 Claverhouse was suspended from both his civil and military employments, and this will account for the duty of punishing the authors of the Sanquhar Declaration devolving not upon him, but upon his lieutenant, Bruce of Earlshall.

The prime mover of the Sanquhar Declaration was Richard Cameron, who had now become the head of the extreme party, henceforth to be known by his name—a name which still survives as that of a distinguished regiment of the British army. It was framed in much the same language and to much the same purpose as its predecessor of Rutherglen, though it would not be right to degrade Cameron to the level of Hamilton and his ruffianly associates. It took its title from having been fixed to the market-cross of Sanquhar, a small town in Dumfriesshire, on June 22nd, 1680. Exactly a month later Claverhouse's troopers (though, as I have said, not commanded by Claverhouse himself) came upon the Cameronians in a desolate spot among the wilds of Ayrshire, known as Aird's Moss. Richard Cameron was killed at the first charge: Donald Cargill and Hackston of Rathillet were

made prisoners. Both were taken to Edinburgh and executed, the latter with circumstances of needless barbarity.

Though Claverhouse was reinstated in his commission, he does not appear to have been actively employed during the year 1681, the second year of the Duke of York's administration in Scotland, and the year also of the Test and Succession Acts, which were destined to cost another Argyle his head. Early in 1682 the Duke of York returned to England, to which fact Wodrow attributes "a sort of respite of severities," notwithstanding that Claverhouse was once more commissioned for his old work in the West, and with even ampler authority than before. In addition to his military powers, he was appointed Sheriff of Wigtownshire and Deputy-Sheriff of Dumfriesshire and the Stewartries of Kirkcudbright and Annandale; and he was also specially invested with a commission to hold criminal courts in the first-named shire and to try delinquents by jury. His letters to Queensberry^[36] begin in February 1682, and from this time onward his actions become easier to follow. These letters give a very full and fair idea of his method of procedure, and in one of them is a passage worth quoting as evidence how far that method as yet deserved the hard epithets which have been so freely lavished on it. The despatch is dated from Newton in Galloway, March 1st, 1682.

"The proposal I wrote to your Lordship of, for securing the peace, I am sure will please in all things but one,—that it will be somewhat out of the King's pocket. The way that I see taken in other places is to put laws severely, against great and small, in execution; which is very just; but what effects does that produce, but more to exasperate and alienate the hearts of the whole body of the people; for it renders three desperate where it gains one; and your Lordship knows that in the greatest crimes it is thought wisest to pardon the multitude and punish the ringleaders, where the number of the guilty is great, as in this case of whole countries. Wherefore, I have taken another course here. I have called two or three parishes together at one Church, and, after intimating to them the power I have, I read them a libel narrating all the Acts of Parliament against the fanatics; whereby I made them sensible how much they were in the King's reverence, and assured them he was relenting nothing of his

former severity against dissenters, nor care of maintaining the established government; as they might see by his doubling the fines in the late Act of Parliament; and in the end told them, that the King had no design to ruin any of his subjects he could reclaim, nor I to enrich myself by their crimes; and therefore any who would resolve to conform, and live regularly, might expect favour; excepting only reseters and ringleaders. Upon this, on Sunday last, there was about three hundred people at Kirkcudbright Church; some that for seven years before had never been there. So that I do expect that within a short time I could bring two parts of three to the Church. But when I have done,—that is all to no purpose. For we will be no sooner gone, but in comes their Ministers, and all repent and fall back to their old ways. So that it is vain to think of any settlement here, without a constant force placed in garrison. And this is the opinion of all the honest men here, and their desire. For there are some of them, do what they like, they cannot keep the preacher from their houses in their absence, so mad are some of their wives."

His remedy was to raise a hundred dragoons for a permanent garrison: the Crown was to pay the soldiers, and the country would find maintenance for the horses, he bearing his own part as "a Galloway laird," which he was as trustee of Macdowall's estate. The command of this new force he was willing to undertake without any additional pay.

It does not seem that this remedy was ever sanctioned; but at any rate Claverhouse so managed matters that a month later he was able to report to the Council that all was "in perfect peace."

"All who were in the rebellion are either seized, gone out of the country, or treating their peace; and they have already so conformed, as to going to the Church, that it is beyond my expectation. In Dumfries not only almost all the men are come, but the women have given obedience; and Irongray, Welsh's own parish, have for the most part conformed; and so it is all over the country. So that, if I be suffered to stay any time here, I do expect to see this the best settled part of the Kingdom on this

side the Tay. And if these dragoons were fixed which I wrote your Lordship about, I might promise for the continuance of it.... All this is done without having received a farthing money, either in Nithsdale, Annandale, or Kirkcudbright; or imprisoned anybody. But, in end, there will be need to make examples of the stubborn that will not comply. Nor will there be any danger in this after we have gained the great body of the people; to whom I am become acceptable enough; having passed all bygones, upon bonds of regular carriage hereafter."^[37]

For these services Claverhouse was summoned to Edinburgh to receive the thanks of the Council, to whom he presented an official report of his proceedings which is no more than a summary of his letters to Queensberry.^[38]

It was not likely that a man so uniformly successful and of such high spirit would be able to steer clear of all offence to men, who probably felt towards him much as Elizabeth's old courtiers felt towards the triumphant and masterful Raleigh. Nor, conscious of his own powers and confident in the royal favour, is it probable that he was always at much pains to avoid offence, for, though neither a quarrelsome nor a wilful man, he had his own opinions, and was not shy of expressing them when he saw fit to do so. With all his constitutional regard for authority and his soldier's respect for discipline, Claverhouse would suffer himself to be browbeaten by no one. In those jealous intriguing days a man who could not fight for his own hand was bound to go down in the struggle. Claverhouse was now to give a signal proof that he both could and would fight for his when the need came.

The Dalrymples of Stair had been settled in Galloway for many generations. Sir James, the head of the house, was one of the first lawyers of the day, and had held the Chair of Philosophy in the University of Glasgow: the son, Sir John (afterwards to earn an undying name in history as prime mover in the Massacre of Glencoe), was heritable Baillie in the regality of Glenluce. There had been bad blood between them and Claverhouse for some time past. The father had not profited sufficiently by his studies either in law or philosophy to recognise the folly of a man in disgrace venturing to measure swords with one of fortune's favourites. And Sir James at the time of his quarrel with Claverhouse was in disgrace. At the

close of 1681 he had been dismissed from the office of President of the Court of Session for refusing the Test Act; and for some while previously he had been coldly regarded for his advocacy of gentler measures than suited Lauderdale and his creatures. The Dalrymples were strict Presbyterians; and though the men were too cautious to meddle openly with treasonable matters, their womenfolk were notoriously in active sympathy with the rebels. All through Claverhouse's letters of this time run allusions to some great personage whom it might be wise to make an example of, and he himself had taken an early opportunity of impressing on Sir James the necessity of caution.^[39] But the latter would not be warned. He set himself against Claverhouse at every opportunity, both openly and in secret. He wrote long querulous letters to Edinburgh, complaining of the latter's disrespect. Finally, when he found it prudent to leave the country for a while, his son carried the business to a height by bringing a formal charge against Claverhouse of extortion and malversation. The latter saw his opportunity, and at once carried the war into the enemy's country. He preferred a specific bill of complaint against Sir John, in the course of which it came out that he had been offered a bribe both by father and son not to interfere with their hereditary jurisdictions; and, notwithstanding the exertions of Sir George Lockhart and Fountainhall, the most eminent counsel of the Scottish bar, utterly defeated him on every point. The Court found that Sir John Dalrymple had been guilty of employing rebels and of winking at treasonable practices: of not exacting the proper fines by law ordained for such misdemeanours: of stirring up the country-folk against the King's troops; and, finally, of grossly misrepresenting Claverhouse to the Council. For these offences he was sentenced to pay a fine of five hundred pounds and the whole costs of the proceedings, and to be imprisoned in the Castle of Edinburgh till the money should be paid. Claverhouse, on his side, received not only a full and most complimentary acquittal from all his adversary's charges, but also a signal proof of the royal favour in the presentation to a regiment of cavalry raised especially for this purpose. His commission was dated December 25th, 1682, and in the following March he was sent into England with despatches from the Council to the King and the Duke of York, who was still nominally Commissioner for Scottish Affairs.^[40]

Hitherto Claverhouse may be said to have stood conspicuous among the men of his time for his persistent refusal to enrich himself at the public cost. He had certainly had many opportunities, as had a still more famous captain after him, of wondering at his own moderation, yet his enemies had been unable to bring home to him a single instance of malpractice. But we have now come to an episode in his life for which an extremely virtuous or an extremely censorious moralist might, were he so minded, find occasion to re-echo the popular epithet of rapacious. Claverhouse was in no sense of the word an avaricious man; but, like all sensible men, he had a strong belief in the truth of the maxim, the labourer is worthy of his hire. He had laboured long and successfully; and the time, he thought, had now come for his hire.

Lauderdale was dying, and from every side the vultures were flocking fast to their prey. In those days politicians looked for promotion mainly to the death or disgrace of their comrades, and the death of any powerful statesman generally meant the disgrace of his family. All parties were now busy in anticipation over the rich booty that was so soon to come into the market. His brother and heir, Charles Maitland of Hatton, was attacked before the breath was out of the old man's body. Among the many lucrative posts he enjoyed, the most lucrative was that of Governor (or General, as the style went) of the Scottish Mint. At the instigation of Sir George Gordon of Haddo, who had become in quick succession President of the Court of Session, Lord Chancellor, and Earl of Aberdeen, a Commission was appointed to inquire into the state of the coinage, with the result that Maitland (by this time Earl of Lauderdale, for the dukedom began and ended with his brother) was declared to have appropriated to his own use no less than seventy thousand pounds of the revenue. In the general division of spoil which this verdict gave signal for, Claverhouse saw no reason why he should go empty away. Eleven years previously, when the old statesman was at the height of his evil power, his brother had been appointed Constable of Dundee and presented with the estate of Dudhope, lying conveniently near to Claverhouse's few paternal acres. A bargain, which would have seemed in those days no disgraceful thing to any human being, was accordingly struck between Claverhouse and the various claimants for the dead man's shoes. Queensberry, though but lately advanced to a marquissate, had set his heart upon a dukedom: the Chancellor was in want of money to support his new honours. And there were other petitioners for

the good offices of the ambassador to Whitehall: Huntly and the Earl Marischal and Sir George Mackenzie had each marked his share of the general prize. To one and all Claverhouse promised his services; and they on their part were to advance by all means in their power his designs on the fat acres of Dudhope. All this, no doubt, sounds very contemptible to us now, who manage these matters so much more circumspectly; but it must be remembered that Lauderdale, though his offence was probably greatly exaggerated, and though a large part of the fine in which he had been originally cast was in fact remitted, had certainly been guilty of gross carelessness, if not of actual malversation; while Claverhouse on his part offered to pay, and did pay, whatever sum might be legally fixed as due for his share of the booty.^[41]

All these bargains were in time brought to a successful issue. Claverhouse was in England from the beginning of March to the middle of May. He was with the Court at Newmarket, Windsor, and London, always in high favour, but at the former place finding the King more eager for his company at the cockpit and race-course than in the council-chamber.^[42] Early in May he returned to Scotland, and shortly after his return he took his seat at Edinburgh as a Privy Councillor. This was his present reward: Dudhope and the Constabulary were to follow later, with Queensberry's and Huntly's dukedoms and the other honours. But Dudhope was not destined to drop into his lap. The Chancellor, whom he counted as his particular friend, had played him false. Lauderdale's fine had been reduced by Charles from seventy thousand pounds to twenty thousand, sixteen thousand of which were granted to the Chancellor and four thousand to Claverhouse. But should Lauderdale and his son agree to assign to the Chancellor under an unburdened title the lands and lordship of Dundee and Dudhope, then the whole sum was to be remitted, Lauderdale binding himself to discharge the fines inflicted on his subordinates. Power was also given to Claverhouse to redeem this property from the Chancellor at twenty years' purchase; and it seems also to have been privately agreed between them that the purchase-money was not to be exacted, on condition of the former buying certain other lands in the neighbourhood that the latter wished to dispose of. But the crafty Chancellor saw an easier and quieter way to get hold of his money. For the sum of eight thousand pounds he privately relinquished all his rights to Lauderdale, thus leaving the latter free to deal with

Claverhouse on his own terms. This bit of sharp practice was effected in August 1683; and it was not till the following March that the business was finally settled, after a long and tedious wrangle before the Court, in the course of which Claverhouse seemed to have found occasion to speak his mind pretty sharply to the Chancellor. On the question of the former's right to demand Dudhope on the terms of twenty years' purchase Lauderdale had to give way; but on the other question of clearing the title he was so difficult to deal with that the King himself had to interfere; and not till a peremptory order had gone down from Whitehall, cancelling the royal pardon till all the terms of the original agreement had been satisfactorily settled, was the affair finally closed, the title cleared, and Claverhouse established as master of the long-coveted estate.

It was not till the autumn of 1684 that Claverhouse found himself master of Dudhope and Constable of Dundee. Meanwhile one of the few domestic events of his life that have come down to us had taken place. On June 10th he had been married to the Lady Jean Cochrane, granddaughter to the old Earl of Dundonald.

This young lady was the daughter of William, Lord Cochrane, by Catherine, daughter of the Presbyterian Earl of Cassilis and sister to that Lady Margaret Kennedy whom Gilbert Burnet had married. Her father had died before Claverhouse came on the scene, leaving seven children, of whom Jean was the youngest. Her mother, whose notoriously Whiggish sympathies had brought both her husband and father-in-law into suspicion, was furiously opposed to the match; though worldly prudence may have touched her heart as well as religious scruple, for Claverhouse, though he had risen fast and was marked by all men as destined to rise still higher, was hardly as yet perhaps a very eligible husband for the pretty Lady Jean. But in truth it was a strange family for him to seek a wife in, and many were the whispered gibes the news of his courtship provoked at Edinburgh. Was this strong Samson, men asked, to fall a prey at last to a Whiggish Delilah? Hamilton, whose own loyalty was by no means unimpeachable, and who was no friend to Claverhouse, affected to be much distressed by the Lady Susannah's partiality for the young Lord Cochrane, and made great parade of his disinclination to give his daughter to the son of such a mother without the express consent of the King; and this Claverhouse chose to take as a hit at him, who had not thought it necessary to ask any one's permission to

choose his own wife. Affairs were still further complicated by the backslidings of Sir John Cochrane, Lady Jean's uncle, a notorious rebel who was then in hiding for his complicity with Russell and Sidney, and was even suspected of knowing something of that darker affair of the Rye House. Claverhouse was furious at the gossip. "My Lord Duke Hamilton," he wrote to Queensberry,

"has refused to treat of giving his daughter to my Lord Cochrane, till he should have the King and the Duke's leave. This, I understand, has been advised him, to load me. Wherefore I have written to the Duke, and told him that I would have done it sooner, had I not judged it presumption in me to trouble his Highness with my little concerns; and that I looked upon myself as a cleanser, that may cure others by coming amongst them, but cannot be infected by any plague of Presbytery; besides, that I saw nothing singular in my Lord Dundonald's case, save that he has but one rebel on his land for ten that the lords and lairds of the south and west have on theirs; and that he is willing to depone that he knew not of there being such. The Duke is juster than to charge my Lord Dundonald with Sir John's crimes. He is a madman, and let him perish; they deserve to be damned that own him. The Duke knows what it is to have sons and nephews that follow not advice. I have taken pains to know the state of the country's guilt as to reset; and if I make it not appear that my Lord Dundonald is one of the clearest of all that country, and can hardly be reached in law, I am content to pay his fine. I never pleaded for any, nor shall I hereafter. But I must say I think it hard that no regard is had to a man in so favourable circumstances—I mean considering others—upon my account, and that nobody offered to meddle with him till they heard I was likely to be concerned in him.... Whatever come of this, let not my enemies misrepresent me. They may abuse the Duke for a time, and hardly. But, or long, I will, in despite of them, let the world see that it is not in the power of love, nor any other folly, to alter my loyalty."

And again on the same day:

"For my own part, I look upon myself as a cleanser. I may cure people guilty of that plague of Presbytery by conversing with them, but cannot be infected. And I see very little of that amongst those persons but may be easily rubbed off. And for the young lady herself, I shall answer for her. Had she not been right principled, she would never, in despite of her mother and relations, made choice of a persecutor, as they call me."^[43]

The young lady seems to have been well-favoured, though it is not easy to learn much from the female portraits of those days, which are all very much of a piece. What else she may have been it is impossible to say. She is a name in her husband's history and nothing more, and in the few stormy years that were yet to run for him she could not well have been much more. However, she seems to have been well pleased with her handsome lover; and, in spite of her mother's opposition, the marriage was pushed briskly forward. The contract was signed at Paisley on June 10th, and on the following day the marriage was celebrated at the same place. Lady Catherine's is not among the signatures; but there is to be seen the almost illegible scrawl of the old grandfather and of Euphrame his wife, a daughter of Sir William Scott of Ardross. The bride's eldest brother, whose own marriage with the Lady Susannah Hamilton was soon to follow, and her cousin John, son of the outlaw of Ochiltree, were also among the witnesses; and for the bridegroom, his brother-in-arms Lord Ross^[44] and Colin Mackenzie, brother of the Lord Advocate, Sir George of Rosehaugh. The lady's jointure was fixed at five thousand merks Scots (something over two hundred and seventy pounds of English money), secured on certain property in Forfarshire and Perthshire; while she on her side brought her husband what in those days was reckoned a very comfortable fortune for a younger child.^[45]

The marriage was made under an evil star. Hardly had the blessing been spoken when word came down in haste from Glasgow that the Whigs were up. Since the Sanquhar Declaration and the deaths of Cameron and Cargill, the Covenanters had been comparatively quiet. The work of pacification had indeed not slackened, but rather taken a fresh departure in the appointment of a Court of High Commission, or Justiciary Circuit, which in the summer of 1683 was held in the towns of Stirling, Glasgow, Ayr,

Dumfries, Jedburgh, and Edinburgh. Claverhouse was expressly ordered to attend the justices in their progress as captain of the forces, except at places where the Commander-in-Chief would naturally be present. But though the discovery of the Rye House Plot had just then stirred the kingdom to its centre, and given fresh energies both to the Government and its enemies, only three men suffered during this circuit, of whom two were convicted murderers. In each town members of the gentry as well as of the common people flocked to take the Test; some to clear themselves of suspicion, others only to air their loyalty, but all, in the words of the report, cheerfully. Where time, moreover, was asked for consideration, it was granted on good security. But from the end of July, 1683, to the day of his marriage, Claverhouse seems to have been occupied almost entirely with his duties as Councillor at Edinburgh, and only to have left the capital for brief tours of inspection through the western garrisons.

But with the day of his marriage came a change. On the previous Sunday news had been brought to Glasgow of an unusually large and well-armed conventicle to be held at Blacklock, a moor on the borders of Lanarkshire and Stirlingshire. Dalziel (who was in church when the message came, but who did not suffer his duty towards God to interfere with his duty towards man) put the soldiers on the track at once; but for the next eight-and-forty hours the country from Hamilton northwards to the ford of Clyde was scoured in vain. The Covenanters marched fast, and the country folk, many of them probably still fresh from the Test, kept their secret well. Claverhouse was sent for in haste from Paisley. He was in the saddle and away before the bridal party could recover from their first shock of surprise. But even Claverhouse was foiled. His lieutenant, however, had better luck. Colonel Buchan, as he was returning to Paisley by way of Lismahago, came upon an ambuscade of two hundred Covenanters, whose advanced post fired on and wounded one of the soldiers.^[46] "They followed the rogues," wrote Claverhouse to Queensberry, "and advertised Colonel Buchan; but before he could come up, our party had lost sight of them. Colonel Buchan is yet in pursuit and I am just taking horse. I shall be revenged some time or other of this unseasonable trouble these dogs give me. They might have let Tuesday pass." This despatch was written from Paisley on the morning of the 13th, while fresh horses were being saddled. By noon he was off again, and for the next three days rode fast and far, leaving "no den, no knowl, no

moss, no hill unsearched." He could track his game from Aird's Moss to within two miles of Cumnock town, and thence on towards Cairntable. But there all traces of them had vanished.

"We could never hear more of them. I sent on Friday night for my troop from Dumfries, and ordered them to march by the Sanquhar to the Muirkirk, to the Ploughlands, and so to Streven. I sent for Captain Strachan's troop from the Glenkens, and ordered him to march to the old castle of Cumloch, down to the Sorne, and through the country to Kilbryde, leaving Mauchline and Newmills on his left, and Loudon-hill on his right. By this means they scoured this country, and secured the passages that way. Colonel Buchan marched with the foot and the dragoons some miles on the right of my troop, and I, with the Guards and my Lord Ross and his troop, up by the [Shaire?]. We were at the head of Douglas. We were round and over Cairntable. We were at Greenock-head, Cummer-head, and through all the moors, mosses, hills, glens, woods; and spread in small parties, and ranged as if we had been at hunting, and down to Blackwood, but could learn nothing of those rogues. So the troops being extremely harassed with marching so much on grounds never trod on before, I have sent them with Colonel Buchan to rest at Dalmellington, till we see where these rogues will start up. We examined all on oath, and offered money, and threatened terribly, for intelligence, but we could learn no more."^[47]

The "rogues" were to start up soon and with a vengeance. On a day in July (the date is not specified) a party of troopers were escorting sixteen prisoners to Dumfries. They were Claverhouse's men, but their captain was not with them. At Enterkin Hill, a narrow pass with a deep precipice on either side, a rescue was attempted by a considerable body of men,—English Borderers, it was whispered. Some of the prisoners escaped: others were killed in the scuffle or broke their necks over the precipice: only two were brought into Edinburgh: a few of the soldiers were also killed. This audacious affair spurred the Government on to new energies. The garrisons were increased through all the western shires. Claverhouse, with Buchan for his second in command, was put in charge of all the forces in Ayrshire and

Clydesdale, and a special civil commission was added to their military powers.

At length, towards the end of August, there was a lull, and the master of Dudhope was able at last to enjoy the society of his bride and the pleasures of a country life. But of the latter he soon grew weary. "Though I stay a few days here," he wrote to Queensberry on August 25th, "I hope none will reproach me of eating the bread of idleness." That, at least, is a reproach his worst enemies have never tried to fasten on him. To be doing something was, indeed, a necessity of his existence; and his duties as Constable soon furnished him with something to do. In the Tolbooth of Dundee lay a number of poor wretches whom the hard laws of the time had sentenced to death for various offences, the gravest of which did not rise above theft. It was within the Constable's power to order them at any moment for execution; and doubtless some of those who have meddled with his life, had they been aware of this circumstance in it, would have risked the conclusion that he did so. Yet, strange as it may seem, he exerted himself to save the prisoners. And he exerted himself so successfully that not only was the capital sentence reprieved to such milder punishment as he might order, but the same license was granted to him for dealing with all future criminals of the same class.^[48]

FOOTNOTES:

^[35] "We have spoken to him about it," runs the royal Order, "and he doth positively assert that while he was in Scotland he received not one farthing upon that account" (Napier, ii. 238). The two Orders are dated respectively February 3rd and 26th, 1681.

^[36] The Marquis of Queensberry was then Lord Treasurer, and practically, since Lauderdale's disgrace, first Minister of Scotland.

^[37] Claverhouse to Queensberry, April 1st, 1682.

^[38] A copy of this report was printed in the Aberdeen Papers (1851) from the original in Claverhouse's own hand: Napier, ii. 276.

^[39] "Here in the shire I find the lairds all following the example of a late great man, and still a considerable heritor here among them; which is, to live regularly themselves, but have their houses constant haunts of rebels and intercommuned persons, and have their children baptized by the same; and then lay all the blame

on their wives; condemning them, and swearing they cannot help what is done in their absence." Claverhouse to Queensberry, March 5th, 1682.

[40] Napier, ii. 285-309.

[41] "I must beg your Lordship's assistance in that business of the lands of Dudhope. My Lord Chancellor designs nothing but to sell it, and buy lands in the north, seeing he is to get Stirling Castle to dwell in. Wherefore I desire leave to ask the house of Dudhope, and the Constabulary, and other jurisdictions of Dundee belonging to my Lord Lauderdale; and I offer to buy forty chalders of victual from my Lord Chancellor lying about it [meaning the land bearing so much, at a valuation], though I should sell other lands to do it. I have no house, and it lies within half-a-mile of my land; and all that business would be extremely convenient for me, and signify not much to my Lord Chancellor, especially seeing I am willing to buy the land. I would take this for the greatest favour in the world, for I cannot have the patience to build and plant." Claverhouse to Queensberry, March 20th, 1683.

[42] "It is hard to get any business done here. I walked but nine miles this morning with the King, besides cock-fighting and courses." Claverhouse to Queensberry, Newmarket, March 9th, 1683.

[43] Both these letters were written from Edinburgh, May 19th, 1684.

[44] William, twelfth Lord Ross, son of the one previously mentioned.

[45] Napier, ii. 385-393. The contract was first printed in the volume of Claverhouse's letters edited by George Smythe for the Bannatyne Club in 1826. That volume contains also portraits of the bride and bridegroom, a drawing of which was made by Sharpe for Napier. The portrait of the latter is the one known as the Leven portrait, now in possession of Lady Elizabeth Cartwright. The portrait of Lady Jean is from a picture then belonging to the editor. There is also an engraving of a mourning ring belonging to the editor's grandmother, Catherine Cochrane, wife of David Smythe of Methven, said to have been given to her by her father, Lady Dundee's brother. The ring contains a lock of Dundee's hair, on which the letters V.D. are worked in gold, with a Viscount's coronet above. The motto is "Great Dundee for God and me. J. Rex." One child was born of the marriage in April 1689, and he died three months after his father fell at Killiecrankie. Lady Dundee married secondly William Livingstone, afterwards Lord Kilsyth, of whom mention will be made elsewhere. A son was born also of this marriage, but in the autumn of 1695 both mother and child were killed by the fall of a house in Holland. Lord Kilsyth was "out in the Fifteen," and died an outlaw at Rome in 1733, after which the title became extinct. Napier (iii., Appendix 2) gives a curious account of the opening of Lady Dundee's coffin more than a hundred years after her burial in the family vault at Kilsyth Church.

[46] "So when we came to Streven (Strathavon), I left the command to Colonel Buchan, and desired him to return the troops to their quarters; but, in his march, to search the skirts of the hills and moors on the Clydesdale side; which he did, and gave me an account that, going in by the Greenock-head, he met a man that lives down on Clydeside, that was up buying wool, who told him that on Liddburn, which is in the heart of the hills on the Clydesdale side, he had seen a great number of rebels in arms, and told how he had considered the commanders

of them. One of them, he said, was a lusty black man with one eye, and the other was a good-like man, and wore a grey hat. The first had on a velvet cap. But before he (Colonel Buchan) could come near the place, a party of foot, that he had sent to march on his right, fell accidentally on them. Four of our soldiers going before to discover, were fired on by seven that started up out of a glen, and one of ours was wounded. They fired at the rebels, who, seeing our party of foot making up, and the horse in sight, took the alarm, and gained the hills, which was all moss." Claverhouse to the Archbishop of Saint Andrews (Alexander Burnet), Paisley, June 16th, 1684.

[47] Claverhouse to the Archbishop, Paisley, June 16th, 1684.

[48] "Privy Council Register," Edinburgh, September 10th, 1684: Napier, ii. 410.

CHAPTER VII.^[49]

I propose now to examine, with more care than there has yet been occasion for, those charges of wanton and illegal cruelty which have for close upon two centuries formed the basis of the popular—I had almost written the historical—conception of the character of Claverhouse. I have used the words "illegal cruelty" because Claverhouse is not only commonly believed to have far surpassed all his contemporaries in his treatment of the Scottish Covenanters, but to have even gone beyond the sanction of a law little disposed to be illiberal in such matters. Some reason has, I trust, been already shown for at least reconsidering the popular verdict. But as we are now approaching that period of his life when, for a time all too short for his own reputation, Claverhouse at last found free play for those eminent abilities which none have denied him, it will be well, before passing into this larger field, to be finally rid of a most tiresome and distasteful duty. The controversial element is, I fear, inseparable from this part of the subject, but I shall endeavour to do with as little of it as possible.

Although the significant title of "the Killing Time" seems to have been occasionally used in Scotland during the subsequent century to cover the whole period from Lauderdale's administration to the Revolution, yet the phrase was originally and more properly applied to the years of James's reign alone. The most notorious of the acts attributed to Claverhouse were, as a fact, committed within that time; but it will be more convenient not to adhere too rigidly to chronological sequence, and to take the charges rather in order of their notoriety and of the importance of those who have assumed them to be true. Following this order, the two first on the list will naturally be the death, by Claverhouse's own hand, of John Brown, and the deaths, by drowning on the sands of Solway Firth, of the two women, Margaret Maclachlan and Margaret Wilson—popularly known as the Wigtown Martyrs.

An attempt has been made to prove that this last affair is a pure romance of Covenanting tradition. It has never been disputed that the women were tried for high treason (that is to say, for refusing to abjure the Covenant and to

attend Episcopal worship) and condemned to death; but it has been denied that the sentence was ever carried into effect, on the strength of a reprieve granted by the Council at Edinburgh before the day of execution. That a reprieve, or rather a remand, was granted is certain, as the pages of the Council register remain to this day to testify. But it is not so certain that the decision of the Council at Edinburgh ever reached the magistrates at Wigtown; and that, if it did reach them, they at least paid no attention to it, remained for upwards of a century and a half the fixed opinion of all writers and readers of history. The women were sentenced on April 18th, 1685: the remand is dated April 30th, but the period for which it was to run has been left blank, pending the result of a recommendation for full pardon with which it was accompanied: the sentence was executed on May 11th—in Wodrow's words, "a black and very remarkable day for blood in several places."

It will be sufficient to indicate where the arguments employed to discredit this affair may be found.^[50] They do not practically amount to more than this—that as a reprieve was certainly granted in the Council Chamber at Edinburgh, the execution could not possibly have taken place on the sands of the Solway. The case is indeed one which those who will accept nothing that cannot be proved with mathematical certainty will always find reasons for doubting; but at least they must have read the history of those times to little purpose if they can accept such an argument as conclusive. For the rest, it will be enough to say that the story first found its way into print in 1687, and that it was more circumstantially repeated in 1711, when the records of the Kirk Session of the parish of Penninghame were published by direction of the General Assembly. At that time Thomas Wilson, a brother of the younger sufferer, was still alive, with many others to whom the Killing-Time was something very much more than a tradition. In 1714 (possibly to a later date, but certainly in that year) a stone in Penninghame churchyard still marked the grave of Margaret Wilson, and told the story of her death.^[51] The ruins of the church may still be seen, but the stone has long ago gone to join the dust that was once the bones of Margaret; and an obelisk, raised within our own times on the high ground outside the busy little seaport, now serves in statelier, if less vital, fashion to recall to the traveller the memory of the Martyrs of Wigtown. It is difficult to believe that a story so well and widely recorded, and so firmly implanted in the

hearts of so many generations of men, can have absolutely no foundation in fact.^[52] It is indeed possible that time has embellished the bald brutality of the deed, though the graphic narrative of Macaulay is practically that which Wodrow took from the records of Penninghame. But that the two women were drowned in the waters of the Blednock on May 11th, 1685, is surely a fact as well authenticated as any in the martyrology of the Scottish Covenant.

There is, as I have said, an excellent reason for not dragging my readers through the obscure and barren mazes of this controversy; and like all good reasons it is a very simple one. Claverhouse was present neither at the trial nor the execution. He had, indeed, no more to do with the deaths of these two women than Cameron, who had been five years in his grave, or Wodrow, who was but five years old. It is true that one of his family was present, but this was his brother, David Graham, Deputy Sheriff of Galloway, and but lately made one of the Lords Justices of Wigtownshire. Macaulay does not directly name Claverhouse as concerned in this affair; but it is one out of five selected by the historian as samples of the crimes by which "he, and men like him, goaded the Western peasantry into madness"—a consummation which, it may be observed in passing, had been effected twelve years before Claverhouse had drawn sword in Scotland. It is not certain that Macaulay believed the Graham who sat in judgment on these women to have been John Graham of Claverhouse. But it is certain that the effect of his narrative has been, in the minds of most English-speaking men, to add this also to the long list of mythical crimes which have blackened the memory of the hero of Killiecrankie.^[53]

But over the other affair there rests no shadow of doubt. That Claverhouse, and he alone, is responsible for the death of John Brown stands on the very best authority, for it stands on his own. It is not, indeed, certain that he shot the man with his own hand. This is Wodrow's story, and as usual he gives no authority for it. "With some difficulty," he writes,

"he was allowed to pray, which he did with the greatest liberty and melting, and withal in such suitable and scriptural expressions, and in a peculiar judicious style, he having great measures of the gift as well as the grace of prayer, that the soldiers were affected and astonished; yea, which is yet more

singular, such convictions were left in their bosoms that, as my informations bear, not one of them would shoot him or obey Claverhouse's commands, so that he was forced to turn executioner himself, and in a fret shot him with his own hand, before his own door, his wife with a young infant standing by, and she very near the time of her delivery of another child. When tears and entreaties could not prevail, and Claverhouse had shot him dead, I am credibly informed the widow said to him, 'Well, sir, you must give an account of what you have done.' Claverhouse answered, 'To men I can be answerable, and as for God, I'll take him into my own hand.' I am well informed that Claverhouse himself frequently acknowledged afterwards that John Brown's prayer left such impressions upon his spirit that he could never get altogether worn off, when he gave himself liberty to think of it."^[54]

Patrick Walker, the pedlar, writing a very few years after Wodrow (whom he notices only to abuse for his inaccuracy and backsliding), and professing to have got his version from the wife, tells a different tale. "Claverhouse," he says, "ordered six soldiers to shoot him. The most part of the bullets came upon his head, which scattered his brains upon the ground." Of any refusal, or even disinclination, on the part of the soldiers to obey their orders there is not a word. Then we have Claverhouse's own report to Queensberry, written two days later from Galston, a village between Kilmarnock and Ayr.

"On Friday last, amongst the hills betwixt Douglas and the Ploughlands, we pursued two fellows a great way through the mosses, and in end seized them. They had no arms about them, and denied they had any. But being asked if they would take the abjuration, the eldest of the two, called John Brown, refused it; nor would he swear not to rise in arms against the King, but said he knew no king. Upon which, and there being found bullets and match in his house, and treasonable papers, I caused shoot him dead; which he suffered very unconcernedly. The other, a young fellow and his nephew, called John Brownen, offered to take the oath, but would not swear that he had not been at Newmills in arms, at rescuing of the prisoners. So I did not know what to do

with him. I was convinced that he was guilty, but saw not how to proceed against him. Wherefore, after he had said his prayers, and carabines presented to shoot him, I offered to him that, if he would make an ingenuous confession, and make a discovery that might be of any importance for the King's service, I should delay putting him to death, and plead for him. Upon which he confessed that he was at that attack of Newmills, and that he had come straight to this house of his uncle's on Sunday morning. In the time he was making this confession the soldiers found out a house in the hill, under ground, that could hold a dozen of men, and there were swords and pistols in it; and this fellow declared that they belonged to his uncle, and that he had lurked in that place ever since Bothwell, where he was in arms.... He also gives account of those who gave any assistance to his uncle; and we have seized thereupon the goodman of the uppermost Ploughlands, and another tenant about a mile below that is fled upon it.... I have acquitted myself when I have told your Grace the case. He has been but a month or two with his halbert; and if your Grace thinks he deserves no mercy, justice will pass on him; for I, having no commission of justiciary myself, have delivered him up to the Lieutenant-General, to be disposed of as he pleases."^[55]

It is singular that neither Wodrow nor Walker makes any mention of this nephew, whose presence on that day, taken in connection with his share in the affair at Newmills,^[56] puts the uncle in rather a different light. There happen also to be one or two affairs known about this John Brown which are worth noting. For instance, his name is found on a list of proscribed rebels and reseters of rebels, appended to a royal proclamation of May 5th, 1684, which will naturally account for his "having been a long time upon his hiding in the hills," as Wodrow ingenuously confesses. In other words, this Brown was an outlaw and a marked man. He was by profession a carrier—"the Christian carrier," his friends called him, for the fervour and eloquence of his preaching, which was remarkable even in a neighbourhood where the gift of tongues was not uncommon. A carrier is an extremely useful channel of communication; and, in fact, there can be really no doubt that Brown had been for some time engaged in practices which the most

iniquitous Government in the world could hardly be blamed for thinking inconvenient. It has been suggested that Claverhouse was at that time especially on the watch to intercept all communication between Argyle and Monmouth, and that Brown was employed in carrying intelligence between the rebel camps. Macaulay refuses this suggestion. He points out with perfect truth that both Argyle and Monmouth were at that time in Holland. But when he goes on to say that there was no insurrection in any part of our island, he goes rather too far. The western shires of Scotland had been in a state of insurrection ever since the Pentland rising, if there be any meaning in the word at all. And, though it is true that on May 1st (the day of Brown's death) Argyle was in Holland, it is no less true that on the second he had left Holland for Scotland; that since April 21st the Privy Council had been well informed of his designs; that measures had been taken for putting the whole kingdom in a state of defence against him; and that arrests had been already made on account of treasonable correspondence with him.^[57] But the question is not one of probabilities, and moreover against these probabilities it may be very fairly urged that Claverhouse's own despatch proves that the nephew's confession and the discovery of the underground armoury were not made till after the uncle's death. Nor is there any word in this despatch to show that Claverhouse had any previous knowledge of Brown or was acting on particular information. The real question, and the only question, is, was Claverhouse legally—not morally, that belongs to another part of the case—was he legally justified in ordering the man to be shot? To this there can be but one answer, so long as the phrase "legal justification" bears the meaning it has hitherto borne for those who use the English tongue: both by the spirit and the letter of his commission he was justified in what he did. By the law of the Government whose servant Claverhouse then was, the death of John Brown on that Ayrshire moor was as lawful an act as the death on the scaffold of any prisoner to-day found guilty by a jury of his countrymen. In October, 1684, the Covenanters had published a declaration, drawn up by Renwick, of their intention to do unto all their enemies whom they could lay hands on, civil no less than military, as their enemies had done and should do unto them; and the deliberate murder of two troopers of the Life Guards in the following month had shown (what, to be sure, can have needed very little proof) that this was no idle threat.^[58] An Act, therefore, was hastily passed to the effect that, "Any person who owns or will not disown the late treasonable declaration on oath, whether they have

arms or not, be immediately put to death, this being always done in the presence of two witnesses, and the person or persons having commission to that effect." With the severity, the folly, or the injustice of such a law we are not for the moment concerned. The fact remains that such was the law; and Claverhouse transgressed no jot of it in ordering John Brown to death. It was no question of form of religion: it was no question of previous misconduct. The man would not take the oath; and he was accordingly shot in the presence of the requisite number of witnesses by the order of a competent authority.

On the truth of the details given both by Wodrow and Walker it is impossible to form any conclusion. Wodrow gives no authority for his version. "I am well informed," he says, "I am credibly informed," and so on; but the sources of his information he nowhere gives. Walker is more communicative; he, as we have seen, professed to have learned his story from Brown's wife; but no statement of Walker's can be accepted for absolute truth, and his uncertainty about even the names of his witnesses does not add the stamp of conviction to their testimony.^[59] Beyond the bare fact that the man was shot in the presence of Claverhouse nothing is certain. On the rest of the story each must make up his mind as seems best to him.

With the death of Peter Gillies and John Bryce Claverhouse is not directly charged by Wodrow. Walker, however, quotes an epitaph said to have been inscribed on the grave of these men, who, with three others, were hanged, without trial, at Mauchline by

"Bloody Dumbarton, Douglas, and Dundee,
Moved by the devil and the Laird of Lee."

These lines must have been composed some years after the event, inasmuch as the men were hanged on May 6th, 1685, and the patent of Claverhouse's peerage bears the date November 12th, 1688. This proves, what indeed few people can have doubted, that the damning testimony of "The Cloud of Witnesses" wants at least the weight of contemporary evidence. An authority, however, for this particular epitaph can be traced back to 1690, when Alexander Shields published his martyrology.^[60] "The said Claverhouse," he wrote, "together with the Earl of Dumbarton and Lieut.-General Douglas, caused Peter Gillies, John Bryce, Thomas Young (who

was taken by the Laird of Lee), William Fiddisone, and John Buiening to be put to death upon a gibbet, without legal trial or sentence, suffering them neither to have a Bible nor to pray before they died."^[61] Defoe has evidently followed Shields;^[62] but Walker, though he quotes the aforesaid epitaph, does not himself implicate Claverhouse.

Wodrow does not appear to have heard any of these stories. He names only Gillies and Bryce, quoting from the indictment, which does not specify the other sufferers, to show that the men were tried before General Drummond and a tribunal of fifteen soldiers on May 5th, and hanged on the following day. We have already seen that a few days previously Claverhouse had sent a prisoner for trial to this same General Drummond, because he had himself at that time no commission to try prisoners. Unless, therefore, we are ready to suppose that officers were in the habit of sitting on a jury with their own troopers, or to believe that within three days a change had taken place in Claverhouse's position of which there is no record either in his own letters or in any other existing document, we must accept Wodrow's narrative as the true one, and exonerate Claverhouse from all responsibility for the deaths of Gillies and his unfortunate fellow-sufferers.

Two cases yet remain of the five cited by Macaulay. With one of these—the case of the three men shot near Glasgow for refusing to pray for the King—no writer has ever pretended to implicate Claverhouse personally; but with the other he is directly concerned. Andrew Hislop was the son of a poor widow in whose house a proscribed Covenanter had lately died. This was discovered by one Johnstone of Westerhall, an apostate Presbyterian, and, like most of his class, particularly bitter against his former associates. He turned the woman with her younger children into the fields, pulled down her house, and dragged the eldest son before Claverhouse, then marching through that part of the country. So Macaulay tells the story, following for once the "Cloud of Witnesses" rather than Wodrow. According to the latter, Claverhouse found Hislop wandering about the fields, and carried him before Westerhall, "without any design, as appeared, to murder him." Westerhall voted for instant death, while Claverhouse pleaded for the lad, and only yielded at last on the other's insistence, saying: "The blood of this poor man be upon you, Westerhall. I am free of it." He thereupon ordered the captain of a Highland company, then brigaded with his own men, to provide a firing-party; but the Highlanders angrily refused, and the troopers

had to do the work. Both versions, it will be seen, agree in representing Claverhouse as inclined to mercy but overborne by Westerhall. The question remains, how was it that the former, a masterful man and not easy to be silenced when he was in the right, could not save this poor lad if he had a mind to do so?

The answer is in truth not easy to find. The explanation that Westerhall was at that particular time superior in authority to Claverhouse will hardly serve. It is true that the latter had just then no civil jurisdiction at all, either to condemn or pardon—no commission of justiciary, as he wrote to Queensberry. He had been since the close of the previous year in disgrace at headquarters, in consequence of a quarrel between him and the Treasurer, arising out of some action of Colonel James Douglas, the latter's brother, of which Claverhouse seems to have expressed his disapproval rather too warmly. His name had accordingly been removed from the list of Privy Councillors soon after James's accession, and himself deprived of all his civil powers. His punishment did not indeed last long, nor was it allowed to affect his military rights. An order for his restoration to the Council had been signed on the very day of Hislop's death (though he did not take his seat again till July), but his civil powers had not been renewed. Westerhall was one of those who had in the previous year been empowered by royal commission to try prisoners, and his commission was still running when Claverhouse was disgraced. But on April 20th General Drummond was appointed to the supreme authority in all the southern and western shires, and his appointment was expressly declared to cancel all other civil commissions previously granted. Unless, therefore, some particular reservation had been made in Westerhall's favour, of which there is no existing record, he had no more jurisdiction than Claverhouse, and both were equally guilty of breaking the law. It was, indeed, still open to Claverhouse to act as he had acted with John Brown—to put the abjuration oath, and, on its being refused, to order the recusant to instant execution. There is no mention by any of the Covenanting writers that this oath was offered to Hislop. But unless it was, it is difficult to see how either Westerhall or Claverhouse could have been empowered to kill him. Nor is it likely that the latter, knowing well how many sharp eyes were on the look-out in Edinburgh to catch him tripping, would have ventured on so flagrant a breach of the law. It must also be remembered that neither Wodrow nor

Walker, nor any writer on that side, has charged Claverhouse with exceeding the law. They cry out against the cruelty of the deed, but on its unlawfulness they are silent. We must suppose, therefore, that Hislop's case was the case of John Brown: he had refused the oath, and was therefore liable to death. But we cannot suppose that if Claverhouse had stood firm he could not have saved the lad's life. It is absurd to believe that at the head of his own soldiers, with another captain of the same way of thinking by him, such a man as Claverhouse was not strong enough to carry his own will against one who had not even the powers of an ordinary justice of the peace. We must, therefore, conclude that he was unwilling at that time to run the risk of further disgrace by any charge of unreasonable leniency to rebels. Like Pilate, he was willing to let the prisoner go; but, like Pilate again, he preferred his own convenience, and the prisoner was put to death.

On Defoe's list of victims murdered, as he calls it, by Claverhouse's own hand is the name of Graham of Galloway. The young man, he says, being pursued by the dragoons, had taken refuge in his mother's house; but being driven out thence was overtaken by Claverhouse and shot dead with a pistol, though he offered to surrender and begged hard for his life. Shield so words his version of the story as to make it doubtful whether the shot was fired by Claverhouse himself. In the "Cloud of Witnesses" it is not even made certain that Claverhouse was present. At the close of the year in which this alleged murder was committed Sir John Dalrymple brought his action against Claverhouse. It is not likely that so shrewd a lawyer would have overlooked such a chance as this, a case of murder committed in his own country; for murder it would certainly have been, were Defoe's story true. In 1682 military executions had not been sanctioned by law; and for a soldier to shoot a man offering to surrender would have been as clear a case of murder as was the butchery on Magus Moor. Yet throughout Dalrymple's indictment is no hint of any such offence. Claverhouse is accused of oppression by excessive fines and illegal quartering of troops, of malversation, and so forth; but of taking man's life unlawfully there is no single word.

Another of Defoe's victims is Matthew Mekellwrath. Claverhouse, he says, riding through Camonel in Carrick, saw a man run across the street in front of the soldiers, as though to get out of their way, and instantly ordered him

to be shot, without any examination. In the "Cloud of Witnesses" an epitaph is quoted to show that the man was shot for refusing the abjuration oath.

Next we find four men dragged out of a house at Auchencloy, on Dee-side, where they had met for prayer, and shot before the door, without any examination. Defoe gives the names of the four as John Grier, Robert Fergusson, Archibald Stuart, and Robert Stuart. Shields substitutes for Archibald Stuart the name of James Macmichael. In "The Cloud of Witnesses" only Grier, Robert Stuart, and Fergusson are named. In Wodrow's pages the four men become eight: of these four, as given by Shields (Macmichael, however, being spelt Macmichan), were shot at once: two more, Smith and Hunter, were carried to Kirkcudbright and hanged after a form of trial: two, unnamed, got safe away. "It may be," adds Wodrow, "the rescue of some prisoners at Kirkcudbright by some of the wanderers, a little before this, was the pretext for all this cruelty."

It may indeed have been so, and something more than a rescue of prisoners may have helped. The affair on Dee-side took place December 18th, 1684. On the 11th of the same month (just after Renwick's proclamation of war) a party of men, headed by James Macmichael, murdered Peter Peirson, minister of Carsphairn, at his own door. Wodrow cannot shirk this fact: he finds it detestable, and generally denounced and disowned by the more respectable of the Covenanters; but he also manages to find as many excuses for it as he conveniently can in the provocation given by the victim. Peirson, he says, was "a surly, ill-natured man, and horridly severe." He was of great service to Lagg in ferreting out rebels, used to sit in court with him to advise him of the prisoners' characters, and generally make himself obnoxious to the Covenanters. He was also accused of leaning to popery, and is said on one occasion to have openly defended the doctrine of purgatory; on another he maintained Papists to be much better subjects than Presbyterians—as, indeed, from the Government's point of view they certainly were. How far Peirson deserved this character we cannot surely tell. The fact of his being hated by the Covenanters is not necessarily to his discredit; but we may assume that he was not conciliatory in his speech, that he meddled more in civil matters than became his cloth, and, in short, was probably made much after the same pattern as some of the chosen vessels of the Covenanting tabernacle. He lived alone in his manse, without even a servant, but took care always to have his firearms handy. The

accounts of the murder vary a little in detail. One says that he was killed in a scuffle arising out of his furious and unprovoked treatment of a deputation which waited on him at midnight, to request him to come outside and speak with some friends who meant him no harm—a request which in the circumstances he can hardly be blamed for having received with some degree of suspicion. But the most authentic version represents him as shot dead the instant he opened his door. Macmichael fired the shot, and the man who called Peirson out was Robert Mitchell, nephew to James Mitchell, who was hanged five years previously for an attempt on Sharp's life.^[63]

A week later, on December 18th, a party of Covenanters more than one hundred strong burst into Kirkcudbright ("the most irregular place in the kingdom," Claverhouse used to call it), killed the sentry who challenged them, broke open the gaol, set all the prisoners free, and then marched victoriously off, beating the town drum, with such of their rescues as would go with them, and all the arms they could lay hands on.

It is clear, then, from a comparison of the dates and names, that the men killed at Auchencloy were no innocent folk met together for prayer, but certainly included Peirson's murderer, and probably some of those concerned in the rescue at Kirkcudbright, as the place where they were surprised was but a few miles from that town. Moreover, it appears from another account that, so far from these men having been shot unresistingly, they were part of a larger force which had only been dispersed after a sharp skirmish.^[64]

One more instance, and this part of my business will be done. Defoe names Robert Auchinleck as shot by Claverhouse without examination for not answering his challenge, the man, as was subsequently discovered, being too deaf to hear what was said to him. There is no mention elsewhere of Robert Auchinleck; but Shields includes in his list a man called Auchinleck, of Christian name unknown, who was killed in similar circumstances; and Wodrow gives a different version of the death of one William Auchinleck, both assigning the act to one Captain Douglas, who was marching from Kirkcudbright with a company of foot.^[65]

These instances have been chosen as the most notorious and the most circumstantially recorded of the indictments made against Claverhouse. Of

the traditions that gathered in the following century about his name I have taken no notice, nor of the vague charges brought by writers of still later date on no better authority than those traditions.^[66] It was inevitable that as time wore on these floating legends would be gathered to one common head, and that the most important figure would be selected to bear the sins of all. It is of course possible that many and more damning instances might be added to the foregoing list, of which the record has now perished. But the most that can be done is to take what the counsel for the prosecution have brought forward, and to examine it as strictly as can now be possible.

It must always be difficult to reconsider with absolute impartiality any verdict that has been generally accepted for close upon two hundred years. On the one hand, there is a not unnatural disinclination for the trouble necessary to re-open a case already heard and judged: on the other, is a most natural inclination to take every fresh fact discovered, or every old blunder detected, as of paramount importance. The explorer in strange lands is too apt to take every mole-hill for a mountain. And when the verdict is one that has been endorsed by Macaulay, he must be a bold man indeed who thinks to upset it. Nevertheless, something has, I hope, been done to bear out my belief that Claverhouse has been too harshly judged. No attempt has been made to gloss over or conceal any crime that can be brought fairly home to him. The case of Andrew Hislop (a far blacker case than the more notorious one of John Brown) has been left as it stands, so far as the imperfect evidence enables us now to judge it. If that one case be held enough to substantiate the general verdict, if nothing can be set against it, there is no more to be said—save that, if this be justice, many a better man than Claverhouse must go to the wall.

One thing, at least, should be clear. He was no capricious and unlicensed oppressor of a God-fearing and inoffensive peasantry, but a soldier waging war against a turbulent population carrying arms and willing to use them. I have nowhere tried to soften the bitter tale of folly, misrule, and cruelty which drove those unhappy men into rebellion, nor to heighten by a single touch their responsibility for their own misfortunes. I have not tried to find excuses for the men whose orders Claverhouse obeyed, nor arguments to show that in the circumstances such orders were inevitable. But I have tried to show that in no single instance, of which the record is complete, did he go beyond the letter of his commission, and that in more than one instance

he construed its spirit with a mildness for which he has never yet been given credit.

But nothing will avail to save him in the eyes of those who maintain that the law of human morality is fixed and immutable, and that men of every age and every country can only be judged, and must be judged, by the eternal laws of right and wrong. They, of course, will not allow the excuse that he was a soldier obeying the orders of his superior officers, even should they be disposed to admit that he did no more than that. The orders, they will say, were cruel and unjust: he should have refused to obey them. But is this unswerving standard possible as a gauge of human actions? Who then shall be safe? There are offences which, in Coleridge's happy phrase, are offences against the good manners of human nature itself. The man who committed such offences in the reign of Chedorlaomer was no doubt as guilty as the man who should commit them in the reign of Victoria. But are the offences which can be fairly laid to Claverhouse's account of such a kind? His most able and his bitterest accuser pronounces him to have been "rapacious and profane, of violent temper and obdurate heart." Yet every attempt of his enemies to convict him of extortion or malversation broke signally down. The decorum of his life and conversation was allowed even by the Covenanters; and it is recorded as a notable thing that, however disturbed or thwarted, he was never known to use profane language. The imperturbable calm of his temper is said by one of their own party to have at once exasperated and terrified those who were brought before him far more than the brutal fury of men like Dalziel and Lag.^[67] His heart was indeed hard to those whom he regarded as plotters and murderers, traitors to their King and enemies of the true religion. He was indeed in his own way as much a fanatic as the men whom he was empowered to crush. His devotion to the Crown and to the Protestant faith was a passion as deep and sincere as that which moved the simple peasants of the West to find the gospel of Christ in the horrible compound of blasphemy and treason which too often made up the eloquence of the Conventicles. But his hardness, if not tempered with mercy, was at least guided by more justice than was common among his colleagues. He both advocated and practised the policy of distinguishing between the multitude and their ringleaders. The just punishment of one of the latter might save, he said, many of the former;^[68] and his entreaty for the prisoners whom he found under sentence of death at Dundee proves that

his actions were dictated by no vulgar thirst for blood. When judged by the general manners of the age, the circumstances of the time and his position, I do not believe him to have been cruel by nature or careless of human life. The standard of military morals in vogue two hundred years ago cannot be weighed by that in vogue to-day. The humanity of one generation is not the humanity of the next. Wellington was certainly not a cruel man, and he certainly was a most strict disciplinarian. Yet it is well known that many things were done during the Peninsular campaign which no general now would dare to pass unpunished, which no soldier now would even dare to do; and it is quite possible that eighty years hence our descendants will read with horror of the deeds done by their grandsires among the rocky passes of Afghanistan or on the burning sands of Egypt. I do not claim for Claverhouse that he was gentle, merciful, or humane beyond his time, though I believe him to have had as large a share of those qualities as any of his contemporaries would have displayed in similar circumstances. But I do claim for him that his faults were the faults not of the man but of his age; and I maintain that his age cannot in such matters be tried by the standard of this.

FOOTNOTES:

[49] I have been much indebted in this chapter to an anonymous pamphlet entitled "A Note to the Pictorial History of Scotland, on Claverhouse," apparently printed at Maidstone; but when, or on whose authority, I have been unable to discover. It was sent to me by an equally nameless benefactor.

[50] Napier, iii. Appendix 3, and his "Case for the Crown": Blackwood's Magazine, December 1863. On the other side see Barton, vii. 255: Macmillan's Magazine, December 1862; and a pamphlet by the Rev. Archibald Stewart, "History Vindicated in the case of the Wigtown Martyrs," 2nd ed. 1869.

[51] According to "The Cloud of Witnesses," first published in 1714, the epitaph ran as follows:

"Murdered for owning Christ supreme
Head of his Church, and no more crime
But her not owning Prelacy,
And not abjuring Presbytery.
Within the sea, tied to a stake,
She suffered for Christ Jesus' sake."

The stone on which these lines were inscribed covered, according to the same authority, "the body of Margaret Wilson, who was drowned in the water of the

Blednock upon the 11th of May, 1684 [5], by the Laird of Lagg."

[52] In Colonel Fergusson's most entertaining chapter of family history, "The Laird of Lagg," he mentions an old lady, still alive in 1834, who remembered her grandfather's account of the execution, which he declared he had himself witnessed: "There were cluds o' folk on the sands that day in clusters here and there, praying for the women as they were put down."

[53] Charles Kingsley, for example, wrote in "Alton Locke" of "the Scottish Saint Margaret whom Claverhouse and his men bound to a stake."

[54] Wodrow, iv. 244.

[55] Claverhouse to Queensberry, May 3rd, 1685. Napier, i. 141; and iii. 457.

[56] "John Inglis, captain of a troop of dragoons, lying in garrison at Newmills, in the West, a house belonging to the Earl of Loudon, having taken some of these fanatics prisoners, and though he had power to execute them, yet keeping them alive, some of their desperate comrades breaks in upon the garrison and rescues them, to their great shame; for which Inglis was degraded, and his place was given to Mr. George Winrahame, a bigot Papist." Fountainhall, quoted by Napier, iii. 457. This Winrahame may be the Winram who had to do with the Wigtown Martyrs. According to "The Cloud of Witnesses,"

"The actors of this cruel crime
Was Lagg, Strachan, Winram, and Grahame."

A letter more or less in a name was of no account in the cacography of those times.

[57] "The new reign was not to remain long undisturbed; before the end of April there was the apprehension of a great civil war, and in May the news came that it had begun both in England and Scotland." These are Burton's words (vii. 258), and no one can accuse Burton of undue partiality to James or his government. See also Aytoun's Appendix to his "Lays of the Scottish Cavaliers," which, however, was written before the publication of Napier's book had proved Claverhouse's responsibility for the death of John Brown.

[58] Wodrow, iv. 148-9. He prints the declaration in full from a copy in Renwick's own handwriting. The following extracts will give some idea of it: "We have disowned the authority of Charles Stuart (not authority as God's institution, either among Christians or heathens) and all authority depending upon him, for reasons given elsewhere (disclaiming all such things as infer a magistratical relation betwixt him and us); and also we have declared war against him, and his accomplices such as lay out themselves to promote his wicked and hellish designs.... We do hereby declare unto all that whosoever stretcheth forth their hands against us ... by shedding our blood actually, either by authoritative commanding, such as bloody counsellors ... especially that so-called justiciary, generals of forces, adjutants, captains, lieutenants, and all in civil and military power, who make it their work to embrue their hands in our blood, or by obeying such commands, such as bloody militia men, malicious troopers, soldiers, and dragoons; likewise such gentlemen and commons who, through wickedness and ill-will, ride and run with the foresaid persons ... we say

all and every one of such shall be reputed by us enemies to God and the covenanted work of reformation, and punished as such, according to our power and the degree of their offence.... Let not any think that (our God assisting us) we will be so slack-handed in time coming to put matters in execution as heretofore we have been, seeing we are bound faithfully and valiantly to maintain our covenants and the cause of Christ."

[59] For example, in the earliest edition of the pamphlet containing his version of this affair ("The Life of Peden") an "old singular Christian woman named Elizabeth Menzies" is mentioned as the first neighbour who came to condole with Mrs. Brown. In later editions Elizabeth Menzies becomes Jean Brown. The wife also is sometimes Isabel and sometimes Marion. Walker's "Biographia Presbyteriana" is a collection of tracts published by him at different times, of which this "Life of Peden" is the earliest and the best.

[60] "A Short Memorial of the Sufferings of the Presbyterians."

[61] This Buining is called Bruning in "The Cloud of Witnesses," and may be the Brownen of Claverhouse's letter, that is to say, the nephew of John Brown.

[62] "It seems somebody had maliciously told this Graham they were of the Whigs who used the field meetings, upon which, without any trial or other sentence than his own command, his soldiers fetched them all to Mauchline, a village where his headquarters were, and hanged them immediately, not suffering them to enter into any house at their coming, nor at the entreaty of the poor men would suffer one to lend them a Bible, who it seems offered it, nor allow them a moment to pray to God." Defoe's "Memoirs of the Church of Scotland" were first published in 1717, a few years before Wodrow's History. Elsewhere in the same work he states that Claverhouse had "among the rest of his cruelties barbarously murdered several of the persecuted people with his own hands," also that "this man is said to have killed above a hundred men in this kind of cold blood cruelty." But Defoe's qualifications for a historian of those times are, to say the least, uncertain. He mentions Cameron and Cargill as alive and busy in 1684, four years after one had died fighting at Aird's Moss, and the other on the scaffold at Edinburgh.

[63] Wodrow, iv. 197; Napier, i. 89. I have called this the most authentic version because it professes to have come from the murderers themselves. It is to be found in a letter to Wodrow (printed by Napier) now in the Advocates' Library at Edinburgh. The date is 1715, and the writer, who only signs his initials, J.C., calls Wodrow "cousin." "I give you the account," he writes, "from the best information it's possible to be got, viz., from Robert Dun, in Woodheade of Carsphairn, and John Clark, then in that parish, now in Glenmont, in the parish of Strathone, anent the curate's death of Carsphairn, which they had from the actors' own mouths." Wodrow adds a little touch of his own—"Mr. Peirson with fury came out upon them with arms"—and is silent on the fact of Mitchell's presence.

[64] Fountainhall's "Historical Notices," and a letter to Queensberry from Sir Robert Dalzell and others, quoted by Napier, ii. 427-8.

[65] Wodrow, iv. 184.

[66] For example, the story told of Claverhouse sparing a man's life for the sport his capture had afforded, but ordering his ears to be shorn off. This may be found in a book called "Gleanings among the Mountains, or Traditions of the Covenanters," published at Edinburgh, in 1846, by the Rev. Robert Simpson, of Sanquhar. The same gentleman is responsible for an earlier volume, "The Times of Claverhouse," in which the Covenanters are described as a class of "quiet and orderly men," maintaining the standard of their gospel in "the most peaceful and inoffensive way." In neither volume is any authority offered for these stories: even the evidence of time and place is rarely vouchsafed.

[67] Walker's "Biographia Presbyteriana:" Lochiel's Memoirs.

[68] See *ante*, p. 92: also Napier, ii. 360, for a letter to the Lord Chancellor, June 9th, 1683. "I am as sorry to see a man die, even a Whig, as any of themselves. But when one dies justly, for his own faults, and may save a hundred to fall in the like, I have no scruple."

CHAPTER VIII.

Both in Scotland and England events were now moving fast to their inevitable conclusion, but of Claverhouse's part in public affairs there is for the next three years little record. Only two of his letters have survived between May, 1685, and October, 1688, when the disastrous march into England began. From one of these it is clear that his restoration to favour at Whitehall had not improved his position at Edinburgh. Gratitude was not then a common virtue among public men. Claverhouse had done for his colleagues all that he had promised. The recollection of their debt to him, and the unlikelihood of their being able to increase it, did not serve to endear to them this successful soldier of fortune, who had indeed helped them to their ambition, but who had thereby shown a dangerous capacity for helping himself. At the head of these malcontents was, of course, Queensberry, though, as the King had shown himself determined not to lose the services of his brilliant captain, it was necessary for the Treasurer to give his jealousy a guarded form. He complained to Dumbarton (then commanding the forces in Scotland) that Claverhouse had misused some of his tenants, though in what manner is not clear. There is a letter from Claverhouse expressing in respectful terms his regret at Queensberry's annoyance, which he declares to have been founded on misapprehension of the facts.

"I am convinced (he writes) your Grace is ill-informed; for, after you have read what I wrote to you two days ago on that subject, I daresay I may refer myself to your own censure. That I had no desire to make great search there, anybody may judge. I came not from Ayr till after eleven in the forenoon, and went to Balagen with forty heritors again night. The Sanquhar is just in the road; and I used these men I met accidentally on the road better than ever I used any in these circumstances. And I may safely say that, as I shall answer to God, if they had been living on my ground I could not have forborne drawing my sword and knocking them down. However, I am glad I have received my Lord Dumbarton's orders anent your Grace's tenants, which I

shall most punctually obey; though, I may say, they were safe as any in Scotland before."^[69]

The previous letter here referred to has been lost; but it is probable that the complaint originated in Claverhouse's summons to these heritors, or small proprietors, to take arms in the King's service, as they were bound to do. Men will mostly follow their master's lead. The Treasurer's tenants knew well, we may be sure, how little love their master bore for the imperious soldier, and were no doubt somewhat saucy in their remonstrances; and sauciness Claverhouse would not brook from any man alive, whatever his quality.

But Queensberry and his crew had to nurse their grudge in secret. Much as the knowledge may have chafed them, they knew well that Claverhouse was the one man on whom they could depend for wise counsel and prompt action in emergency. A few weeks before this matter of the tenants he had received an urgent despatch from Edinburgh, signed by "his affectionate friends and servants" of the Council, authorising him to take what steps he thought best for disposing the troops. Argyle was on the sea, and the Campbells were mustering fast to their chief's call. Measures had already been taken in the northern shires. Athole had been appointed Lord-Lieutenant of Argyleshire, and held Inverary with a large force of his Highlanders. The Gordons, under their new-made Duke, were guarding the sea-board of Invernessshire. Glasgow was occupied by a strong body of militia. Ships of war watched the Firth of Clyde. To keep the Western Lowlands and the Border quiet was Claverhouse's charge. It is unnecessary to remind my readers what followed. Within little more than a month from his landing in Scotland Argyle stood upon the scaffold in Edinburgh; and a fortnight later Monmouth closed his short unhappy life on Tower Hill.

In this same despatch Claverhouse was told that the King had raised him to be a brigadier of both horse and foot, that James Douglas had received the same promotion, and that the latter's commission bore priority of date. He wisely took no notice of this slight,—for, comparing the weight of his services to the Government with the services of Douglas, a slight it undoubtedly was, and was meant to be. He knew that it did not come from the King, and he was much too prudent and too proud to let the others see that he was annoyed by a stupid insult he was powerless to resent. But there

exists a letter from Secretary Murray to Queensberry which makes the business very clear. It is worth quoting as significant of the petty intrigues in which men of rank and position were not then ashamed to indulge.

"The King ordered two commissions to be drawn, for your brother and Claverhouse to be brigadiers. We were ordered to see how such commissions had been [drawn?] here, and in Earl Middleton's office we found the extract of one granted to Lord Churchill, another to Colonel Worden, the one for horse, the other for foot. So Lord Melfort told me the King had ordered him to draw one for your brother for the foot and Claverhouse for the horse. I told him that could not be; for by that means Claverhouse would command your brother. To be short, we were very hot on the matter. He said he knew no reason why Colonel Douglas should have the precedency, unless that he was your brother. I told him that was enough, but that there was a greater, and that was, that he was an officer of more experience and conduct, and that was the King's design of appointing brigadiers at this time. He said Claverhouse had served the King longer in Scotland. I told him that was yet wider from the purpose, for there were in the army that had served many years longer than Claverhouse, and of higher quality, and without disparagement to any, gallant in their personal courage. By this time I flung from him, and went straight to the King and represented the case. He followed, and came to us. But the King changed his mind and ordered him to draw the commissions both for horse and foot, and your brother's two days' date before the other; by which his command is clear before the other. I saw the commissions signed this afternoon, and they are sent herewith by Lord Charles Murray. Now, I beseech Your Grace, say nothing of this to any; nay, not now to your brother. For Lord Melfort said to Sir Andrew Forrester, that he was sure there would be a new storm on him. I could not, nor is [it] fit this should have been kept from you; but you will find it best for a while to know or take little notice, for it gives him but ground of talking, and serves no other end."^[70]

But these jealous fellows were not to have it all their own way. In the autumn of the same year Claverhouse was summoned to London with Balcarres to be heard on a complaint he had in his turn to make against Queensberry. Early in the spring he had been peremptorily ordered to discharge a bond he had given to the Treasury for fines due from delinquents in Galloway. He answered that his brother (then Deputy-Sheriff of that shire) was collecting the fines, and requested more time for payment. On being told that he might take five or six days, he replied that, considering the difficulty of collection and the distances to be travelled, they might as well give him none. "Then," answered Queensberry, "you shall have none."^[71] Claverhouse had many times applied for leave to be heard in his own defence; but Murray had hitherto persuaded the King to answer that no audience could be granted to him until he had made his peace with the Treasurer and been restored to his seat at the Council. But the name of Queensberry was not now the power it had been at Whitehall. It is difficult to believe that he was much more concerned with religion than Lauderdale; but he was, at any rate by profession, a staunch Protestant, and there were those among his colleagues ready to take every advantage of this passport to James's disfavour. It was determined to hear what Claverhouse had to say for himself. He was summoned to London, graciously received by the King, and pleaded his cause so effectually that the Treasurer was ordered to refund the money.

Claverhouse and Balcarres returned to Edinburgh on December 24th. With them came the Chancellor Perth and his brother, John Drummond, the new Lord Melfort. The brothers were in James's best books, for they had recently professed themselves converted to the Roman Catholic faith by the convincing logic of the papers found in Charles's strong-box and made public by the King.^[72] But they were not so popular in Edinburgh. The new year opened with something very like a No Popery riot. Lady Perth was insulted on her way home from mass by a baker's boy. The Privy Council ordered the lad to be whipped through the Canongate, but the 'prentices rose to the rescue of their comrade. The guard was called out: there was firing, and some citizens fell. There was disaffection, too, among the troops: one soldier was arrested for refusing to fire on a Protestant: another was shot for threatening to run his sword through a Papist. In the Council Perth moved that one Canaires, minister at Selkirk, should be arraigned for preaching

against the Pope; but he found no man on his side except Claverhouse, who, though Protestant to the backbone, had no mind to see his King insulted under the cloak of religion. James's famous scheme of Universal Toleration was soon found to be what every sensible man had foreseen—a scheme of toleration for his own religion and of persecution for all others.

But the history of the next three years, with its wretched tale of violence and folly, of oppressions that broke the hearts of the loyal, and concessions that only moved the scorn of the mutinous, may be read elsewhere. The last appearance of Claverhouse on the scene is at the Council in February, 1686, where he supports Perth in his motion to bring the indiscreet minister to book, till he appears again in his proper character as a soldier commanding the cavalry of the Scottish contingent on its march south to join the army of England. We know, however, that in that same year, 1686, he was promoted to be Major-General, and in March, 1688, was made Provost of Dundee. We must now pass to the memorable autumn of the latter year.

In September, 1688, a despatch in James's own hand was sent down to the Council at Edinburgh announcing the imminent invasion of England by the Prince of Orange. Perth, still Chancellor and a Papist, was told to do nothing without consulting Balcarres and Tarbat. Their advice was unquestionably the best that could have been given for James and the worst for England; for, had it been followed, instead of the short Highland campaign of the following year, that began at Killiecrankie and ended at Dunkeld, there would in all probability have been civil war throughout the kingdom. They advised that the regular troops under Douglas and Claverhouse, now between three and four thousand strong, should be augmented by a force of twelve thousand raised from the Highland clans and the militia, and that these troops should be distributed along the Border and through the northern shires of England. Preparations were at once begun to this effect. The chiefs of the great clans were ordered to hold their claymores ready: the castles of Edinburgh and Stirling were munitioned for war: the militia was called out in every county, and volunteers enrolled in every town. In the midst of the bustle arrived a second despatch from James, ordering the regular troops to march at once for England to join the army under Feversham. This foolish order was Melfort's doing, urged by his secretary, Stewart of Goodtrees, who, after having been concerned in all the most notorious plots of the last twenty years, and actually condemned to

death for his share in Argyle's rebellion, had now blossomed into an Under-Secretary of State. Remonstrance was useless. "The order," wrote Balcarres, "was positive and short—advised by Mr. James Stewart at a supper, and wrote upon the back of a plate, and an express immediately despatched therewith."

And so "with a sorrowful heart," he goes on to remind the exiled King, "they began their march—three thousand effective young men—vigorous, well-disciplined and clothed, and, to a man, hearty in your cause, and willing, out of principle as well as duty, to hazard their lives for the support of the Government as then established both in Church and State."^[73] The loyalty of some of these fine fellows was, however, destined soon to suffer a change in the disturbing atmosphere of England.

The full strength of the Scottish contingent was three thousand seven hundred and sixty-three men. Douglas was in command, with Claverhouse under him at the head of the cavalry, which mustered eight hundred and forty-one sabres, including his own regiment, Livingstone's troop of Life Guards, and Dunmore's dragoons, a regiment which, as the Scots Greys, has since earned a reputation second to none in the British Army. The infantry was made up of Douglas's own regiment of Foot Guards, now the Scots Guards; Buchan's regiment, now the Twenty-first of the Line, or, to give them their latest title, the Royal Scots Fusiliers; and Wauchope's regiment:—two thousand nine hundred and twenty-two men in all.^[74] They left Scotland in the beginning of October, the foot marching by way of Chester, the horse by way of York, on London. Early in November they reached the capital, where they lay for a few days: Claverhouse, with his own regiment and the Horse Guards, being quartered in Westminster, the dragoons in Southwark, and Douglas, with his Foot Guards, in Holborn. On the tenth of the month they marched for Salisbury, where the King's army was now gathered. During the march Claverhouse received the last and most signal proof of favour James was to give him. On November 12th he had been created Viscount of Dundee.

In the royal camp all was confusion and doubt. William was at Axminster, and not a single enemy was in his rear. Many of the great English houses had already joined him, and each hour brought news to Salisbury of fresh disaffection in every part of the kingdom. James was at first anxious to

fight, but Feversham warned him that, though the men were steady, few of his officers could be depended on. Before leaving London the King had called his chief captains together and offered passes to all who were desirous to leave him for the Prince of Orange, "to spare them," he said, "the shame of deserting their lawful sovereign." All were profuse in professions of loyalty, and among them were Churchill, Grafton, and the butcher Kirke. Churchill, we know, continued these professions up to the eleventh hour. On the evening of the 24th James held a council of war, in which Churchill's voice was loudest for battle. That night he left Salisbury for Axminster, and Grafton went with him. Some of the Scottish officers stood firm, but not all. Dumbarton offered to lead his regiment alone against the enemy. Dundee urged James to do one of three things: to fight the Prince, to demand from him in person his business in England, or to retire into Scotland with his faithful troops. But the King still hesitated, and while he hesitated the moment passed. Kirke, who commanded the advance guard at Warminster, flatly refused to obey the orders sent him from Salisbury, and a rumour spread that he had gone over to William with all his men. The King broke up the camp and began his retreat to London; and before he had got farther on his way than Andover, Ormonde and Prince George had joined the deserters, taking with them young Drumlanrig. Douglas did not himself go over; but one of his battalions did, without any attempt on his part to stop them. He had sounded Dundee on the expediency of making terms for themselves with William; but as he had done so under an oath of secrecy, Dundee felt himself bound in honour to keep silence, and we may suppose made it a part of the bargain that Douglas should stay where he was.

James left no orders behind him, and after his retreat the movements of his army are somewhat confused. Dundee marched his cavalry to Reading, where he was joined by Dumbarton. Thence they were ordered to Uxbridge to consult with Feversham on the chances of a battle. But hardly had they got there when the latter received orders to disband the army, and heard at the same time of the King's flight from London. The Scottish troops clamoured for Dundee to lead them back to their country. He marched them to Watford, and while there, it is said, received a letter from William, who had now advanced to Hungerford, bidding him stay where he was and none should harm him.^[75] According to Balcarres, Dundee made at once for

London on the news of the King's flight, and was still there on his return. But the fact is that few of these contemporary writers descend to dates, and it is almost impossible therefore to track any one man's movements through those troubled days. It is, however, certain that a meeting of the Scottish Council was summoned in London by Hamilton at some period between James's first flight and his return, and that Dundee attended it. That Hamilton meditated declaring for William is certain, and that he would have taken all his colleagues with him, except Dundee and Balcarres, is probable; but the King's sudden return to Whitehall postponed matters for a time.

James reached London from Rochester on the afternoon of Sunday, December 16th. William was then at Windsor, and James expressed a wish to meet him in London, offering St. James's Palace for his quarters. William sent an answer that he could not come to London while there were any troops there not under his command. On the 17th a council was held at Windsor, with Halifax in the chair, to determine what should be done with James. William himself would not be present. It was decided that James must, at any rate, leave London, and the decision was brought to him that night as he lay asleep in bed. No resistance was possible, had any been intended. The Dutch had occupied Chelsea and Kensington early in the afternoon; and when Halifax, Shrewsbury, and Delamere arrived with their message from Windsor, three battalions of foot, with some troops of horse, were bivouacked in St. James's Park, and Dutch sentinels were posted at Whitehall.

Early on the morning of the 17th Dundee and Balcarres had waited on the King. None were with him but some gentlemen of his bedchamber. Balcarres told him that he had orders from his colleagues to promise that, if the King would give the word, an army of twenty thousand men should be ready within four-and-twenty hours. "My lord," replied James, "I know you to be my friend, sincere and honourable: the men who sent you are not so, and I expect nothing from them." It was a fine morning, and he said he should like a walk. Balcarres and Dundee attended him into the Mall. When they had got there the King asked them, how came they still to be with him when all the world had forsaken him for the Prince of Orange? Both answered that their fidelity to so good a master would be ever the same, and that they had nothing to do with the Prince of Orange. "Will you two," then asked the King, "say you have still attachment to me?" "Sir," was the

answer, "we do." "Will you give me your hands upon it as men of honour?" They did so. "Well," said the King, "I see you are the men I always took you to be; you shall know all my intentions. I can no longer remain here but as a cypher, or to be a prisoner to the Prince of Orange, and you know there is but a small distance between the prisons and the graves of kings. Therefore I go for France immediately; when there you shall have my instructions—you, Lord Balcarres, shall have a commission to manage my civil affairs, and you, Lord Dundee, to command my troops in Scotland."

They then parted. On the next morning, the morning of the 18th, in dark and rainy weather, the royal barge was ready at Whitehall stairs, under an escort of boats filled with Dutch soldiers. Halifax, with his colleagues from Windsor, attended the King to the water-side. Dumbarton, Arran, and a few others followed him down the river, and stayed by him during the few painful days he lingered at Rochester. At dawn of the 23rd James left England for ever.

Dundee stayed on in London. His regiment had been disbanded, and the rest of the Scottish forces, after a spirited but futile attempt to take matters into their own hands, had settled quietly down under their new colonels, some of the most doubtful ones being sent out of harm's way to Holland. Dunmore had thrown up his command, and his dragoons were now in the charge of Sir Thomas Livingstone. Schomberg was placed, to their intense disgust, at the head of Dumbarton's infantry, once James's favourite regiment. Some of his old troopers, however, still kept by the captain whom they had known as Claverhouse.

Hamilton and his party pressed William to exempt from the general amnesty certain members of the Scottish Council whom they named as particular and unscrupulous instruments of James's tyranny, and unsafe to be let go at large. But the Prince with his usual good sense refused to drive any man into opposition: the past even of the most guilty should, he said, be forgotten till he was forced to remember it. Against Dundee and Balcarres he had been especially warned. He remembered both well: Balcarres had married a lady of his family, and Dundee had fought by his side. He asked them both to enter his service. They refused, and Balcarres, plainly avowing the commission entrusted to him by James, asked if, in such circumstances, he could honourably take service with another. "I cannot say that you can,"

was the answer, "but take care that you fall not within the law, for otherwise I shall be forced against my will to let the law overtake you." Dundee was told that if he would live quietly at home, no allegiance should be exacted from him and no harm done to him. He answered that he would live quietly, if he were not forced to live otherwise. Early in February the two friends left London for Edinburgh.^[76]

FOOTNOTES:

^[69] Claverhouse to Queensberry, June 16th, 1685.

^[70] Napier, iii. 464: this Murray was Alexander Stuart, Earl of Murray, descendant and heir of the famous Regent. He declared himself a convert to the Church of Rome at the same time as Perth and Melfort.

^[71] Napier, iii. 435: quoted from Fountainhall.

^[72] Burnet, ii. 341.

^[73] The memoirs of Colin Lindsay, third Earl of Balcarres, were presented to James at Saint Germain's in 1690. The edition I have used is that printed for the Bannatyne Club in 1841 by the late Lord Crawford, from a transcript made by James, the son of the writer, and great-grandfather of Lord Crawford. The editions previously printed in 1715 and 1754, and in Walter Scott's edition of Somers's Tracts published in 1814, contain many passages not to be found in the first transcript, and declared, by its latest editor, to reflect the opinions and sentiments of the copyist rather than those of the original author.

^[74] Cannon's "Historical Records of the British Army:" Napier, iii. 475-76. Claverhouse's own regiment was disbanded early in the following year. The first colonel of the Greys, then officially known as "The Royal Regiment of Scots Dragoons," was Dalziel, Lord Charles Murray (afterwards created Earl of Dunmore) serving as captain under him. Dalziel died in 1685, and was succeeded in the command by Dunmore. Napier gives the muster-roll of Claverhouse's regiment for May, 1685. It consisted of six troops, of which the colonel, as the custom then was, commanded the first in person, the other captains being Lords Drumlanrig, Ross, Airlie, Balcarres, and William Douglas; hardly the men, perhaps, to sanction the pranks of Macaulay's Apollyons and Beelzebubs. Napier also quotes an amusing passage in a letter from Athole to Queensberry, which, as he says, may recall memories of a certain historic injunction of later times, "to take care of Dowb." Athole had been superseded in his command of the Life Guards by Montrose, and when the latter fell sick, made interest with Queensberry to be reinstated. "As you will oblige me," the passage runs, "pray remember Geordie Murray [who held a commission in the regiment], but not in wrath."

^[75] Creighton.

[76] It is not clear that Dundee had an audience of William. Macaulay says in one place that he was not ungraciously received at Saint James's, and in another that he employed the mediations of Burnet. Both statements are of course compatible with each other. The latter rests on Burnet's own authority; but for the former I can find none in any of the writers from whom Macaulay has taken his narrative of these days. Dalrymple's words are, "Dundee refused without ceremony," which may mean anything. It is, I think, not improbable that William employed Burnet to sound Dundee, and that the good bishop, among whose qualities tact was not pre-eminent, managing the matter clumsily, met with an unceremonious refusal for his pains. The point, however, is of no importance. It is clear enough that William, would have been glad to see both men in his service, and that they both declined to enter it. As Macaulay has called Dundee's conduct disingenuous, apparently on Burnet's authority, it may be well to give the bishop's own words. "He [Dundee] had employed me to carry messages from him to the King, to know what security he might expect if he should go and live in Scotland without owning his government. The King said, if he would live peaceably, and at home, he would protect him: to this he answered, that, unless he was forced to it, he would live quietly." "History of My Own Time," iii. 29. Macaulay's paraphrase is as follows. "Dundee seems to have been less ingenuous. He employed the mediation of Burnet, opened a negotiation with Saint James's, declared himself willing to acquiesce in the new order of things, obtained from William a promise of protection, and promised in return to live peaceably. Such credit was given to his professions, that he was suffered to travel down to Scotland under the escort of a troop of cavalry." "History of England," iv. 281. I do not think the text quite bears out the commentary; and indeed elsewhere in the chapter Macaulay seems inclined to allow more credit to these professions. The "escort" under which Dundee was "suffered to travel" consisted of his own troopers, who had followed him from Watford to London, and stayed with him to the end.

CHAPTER IX.

All eyes were now turned to Scotland. England had practically accepted William, and although the terms of acceptance were still in some quarters kept open to question, there was no longer fear that the final answer would have to be given by the sword. In Scotland the case was different. Many of the great nobles and other dignitaries had indeed professed themselves in favour of William, but political morality, a custom nowhere in those days very rigidly observed, may be said to have been honoured by Scottish statesmen almost wholly in the breach. No man trusted his neighbour, and his neighbour was perfectly aware of the fact. It was impossible to say what an hour might not bring forth; and in this flux of things no man could guarantee that the Whigs of to-day would not be the Jacobites of to-morrow. Hamilton was the recognised leader of the Whigs, Athole of the Jacobites. Both were great and powerful noblemen. The influence of Hamilton was supreme in the Western Lowlands: only Mac Callum More could muster to his standard a larger gathering than the lord of Blair, and the glory of Mac Callum More was now in eclipse. Yet Hamilton had been one of James' Privy Councillors, and had not declared for William till the Dutch guards were at Whitehall. His son Arran and his brother Dumbarton were both on the other side: Arran had accompanied James to Rochester, and Dumbarton had refused to hold his commission under the Prince of Orange. Athole had more than once coquetted with the Whigs, and his present Jacobitism was shrewdly suspected to be due to the coolness with which his advances had been received: his son Lord Murray, who had married a daughter of Hamilton, had declared for William. These great noblemen had indeed the satisfaction of feeling that, however the die might fall, their titles and estates were at least secured. But the wisdom of their family arrangements did not increase their reputation with their parties. The Duke of Gordon held the castle of Edinburgh for James; and, though the Duke was a weak creature, his position was strong. The bulk of the common people were undoubtedly Whigs: the bishops, and the clergy generally, were, if not exactly Jacobites, undoubtedly Tories.

There were religious troubles of course to swell the political ones. When the news of James's flight reached Edinburgh, Perth had been imprudently induced to disband the militia, and the Covenanters had been quick to take advantage of the imprudence. The Episcopal clergymen were rabbled throughout all the western shires. Their houses were sacked, and themselves and their families insulted and sometimes beaten: the churches were locked, and the keys carried off in triumph by the pious zealots. In Glasgow the Cathedral was attacked, and the congregation pelted through the streets. In Edinburgh Holyrood Palace was carried by storm: the Catholic chapel, which James had built and adorned with great splendour, was gutted, and the printing-press, employed to publish tracts in favour of the Catholic religion, was broken up. Perth fled for his life, but was overtaken at sea, carried back and lodged in Stirling Castle, followed by the threats and curses of the mob. Such was the temper of the Scottish nation when the Convention of Estates, summoned by William, met at Edinburgh on March 14th, 1689.

The Act depriving the Presbyterians of the franchise had been annulled, and the elections had gone strongly in favour of the Whigs. Hamilton had been chosen President by a majority of forty votes over Athole, whereupon twenty ardent Jacobites went straightway over to the other side. The next thing to be done was to get rid of Gordon. It was impossible, they said, for a free Parliament to deliberate under the shadow of hostile guns. Two of his friends, the Earls of Lothian and Tweeddale, were accordingly sent to the Duke with a message from the Convention, offering him favourable terms of surrender. He asked a night for consideration; but during the night he was also visited by Dundee and Balcarres. They showed him the commissions entrusted to them by James, and told him that if things did not go better for their party they had resolved to exercise their power of summoning a new Convention to Stirling. At his request Dundee also gave him a paper guaranteeing his action in holding the castle as most necessary to the cause. On the following day, when the earls returned, Gordon told them he had decided not to surrender his trust except upon terms too extravagant to be seriously considered. He was accordingly summoned in form by the heralds: guards were posted round the castle, and all communications between it and the town declared treasonable. The Duke replied by a largess of money to the heralds to drink King James's health, telling them that they

should in common decency have turned the King's coats they wore on their backs before they came to declare the King's subjects traitors.

Meanwhile a messenger had arrived with a sealed despatch for the Estates from James. It seemed strange both to Dundee and Balcarres that the message had not been to them, or at least accompanied by a letter informing them of its purport; but they had no suspicion of its contents, and willingly agreed to the terms on which the Whigs consented to hear it read. These terms were, that the Convention was a legal and free meeting, and would accept no order to dissolve until it had secured the liberty and religion of Scotland. The vote was passed, and the letter was read, to the consternation of the Jacobites and the delight of the Whigs. Of all the foolish acts committed by James the despatch of this letter was, in the circumstances, the most foolish. Not a word did it contain of any intention to respect the religion or the liberty of men whom it still professed to address as subjects. Pardon was promised to all who should return to their allegiance within a fortnight: to all others punishment was threatened in this world, and damnation in the next. Nothing was wanting to heighten the imprudence. The letter was in the handwriting of Melfort, who was equally odious to both parties; and it had been preceded by one from William expressed in terms as wise and moderate as the others were headstrong and foolish. But the feeling of the more temperate Jacobites will best be shown in the account Balcarres himself gave to his master of the effect produced by this fatal epistle. "When the messenger was announced," he wrote,

"His coming was joyful to us, expecting a letter from your Majesty to the Convention, in terms suitable to the bad situation of your affairs in England, and as had been advised by your friends before we left London; and so assured were they of their advices being followed, that they had encouraged all the loyal party, and engaged many to come to the Convention, in hopes such full satisfaction would be given in matters of religion and liberty, that even most of those who had declared against you would return to their duty. But, as in place of such a letter as was expected, or letters to particular persons, as was advised, came a letter from your Majesty to the Convention, without any copy to show your friends, in terms absolutely different from those we had agreed upon, and sent to your Majesty by Mr. Lindsay from

London. Upon other occasions such a letter might have passed, if there had been power to have backed it, or force to make good its reception; but after the Parliament of England had refused to read a letter from your Majesty because of the Earl of Melfort's countersigning it [and considering] that England had made the Prince of Orange their King, and that it was known you had none to sustain your cause but those who advised letters of another strain, it was a fault of your advisers hardly to be pardoned.... Crane was brought in and the letter read, with the same order and respect observed upon such occasions to our Kings; but no sooner was it twice read and known to be Earl Melfort's hand and style, but the house was in a tumult—your enemies in joy and your friends in confusion. Glad were your enemies to find nothing so much as promised of what we had asserted should be done for their satisfaction, [they] having much feared many of their party would have forsaken them if your Majesty's letter had been written in the terms we advised from London. Mr. Crane could give no account why the advice of your friends was not followed, but Mr. Lindsay made no secret of it after he came back from St. Germain's, but informed us that, after he had delivered to [the] Earl of Melfort the letters and advices of your friends at London to your Majesty, his Lordship kept him retired, and he was not suffered to attend you—fearing that what he had written to your Majesty relating to his Lordship might spoil his project of going to Ireland with you. We had observed at London the great aversion men of all professions had at his being employed, and we knew he was in no better esteem in his own country, which made us entreat your Majesty to leave him in France, and some, upon his own account, advised his not coming over, knowing the danger he might be in; but his Lordship either suppressed our letters or gave our advices another turn than was intended, by which all our hopes of succeeding in the Convention vanished, nor was ever seen so great an alteration as was observed at the next meeting after your letter was read, which made all your friends resolve to leave Edinburgh and to call a Convention of Estates at Stirling, as your Majesty had given the Archbishop of St.

Andrews, the Viscount of Dundee, and myself the power to do this by a warrant sent by Mr. Brown from Ireland."

Dundee was anxious to be gone. He saw that the game was up in the Convention, and there were other reasons. For many days past troops of strange, fierce-looking men, carrying arms but half-concealed beneath their plaids, had been flocking into Edinburgh. These were the men of the hill-sides and moorlands of the West, the wild Western Whigs, who feared and hated the name of Claverhouse more than anything on earth. Their leader was William Cleland, a survivor from the fields of Drumclog and Bothwell, a brave and able young man, of good education and humane above his fellows, but who, it was well known, was burning to have vengeance upon Dundee. Some of these men had been heard to mutter that the tables were turned now, and "bloody Clavers" should play the persecutor no more. Word was brought to Dundee that a plot was on foot to assassinate him and Sir George Mackenzie, the most hated of all James's lawyers. Whether the rumour were true or not, it was at least too probable to be disregarded. Dundee laid the matter before Hamilton, offered to produce his witnesses, and demanded that these armed strangers be ordered to leave the town. Hamilton (who was, in fact, responsible for their presence) answered that the Convention had more important matters to think of, that the city could not be left defenceless to Gordon and his rebellious garrison, and, it is said, twitted Dundee with imaginary fears unbecoming a brave man.

A meeting of the Jacobites was held. It was decided to call a fresh Convention at Stirling. Mar, who held the castle there, professed himself staunch, and Athole promised to have a force of his Highlanders in readiness. This was on Saturday, March 16th: it was determined to leave Edinburgh on the following Monday.

When Monday came Athole proposed to wait another day. As his co-operation was of the greatest importance, his proposal was accepted. But Dundee would wait no longer. In vain Balcarres told him that his haste would ruin all their plans. He answered that he would take no action without the agreement of the rest, but in Edinburgh he would stay no longer. He had made an appointment for that day with some friends outside the walls, and he could not break it. His troopers had been in readiness since an early hour, and Dundee returning to his lodgings gave signal to mount. The

streets were thronged with scowling faces, but they shrank to right and left as those stern riders came clattering down the Canongate. A friend called from the crowd to know whither they went. Dundee raised his hat from his head and answered: "Wherever the spirit of Montrose shall direct me." When clear of the walls he led his men to the left up the Leith Wynd and along the bank of the North Loch, the ground now occupied by the busy and handsome thoroughfare known as Prince's Street. The road to Stirling winds beneath the Castle rock, and as the cavalcade came on, their leader saw the Duke on the ramparts, making signals to him for an interview. Dundee dismounted, and scrambled up the steep face of the rock. What passed between them is not clearly known. Balcarres says Dundee told the Duke of the design for Stirling, and once more prayed him to stand firm. But it seems clear that Dundee had by that time abandoned all hopes of a fresh Convention, and it is doubtful whether he had any definite plan in his mind. Dalrymple's report of the conversation seems more likely to be the true one. According to him Dundee pressed the Duke to come north with him, leaving the castle to the charge of the Lieutenant-Governor, Winram, a man who had made himself too odious to the people to leave room for any doubt of his fidelity to James. But these bold ventures were not to the Duke's taste: his courage was of that sort which shows best behind stone walls: and his answer was ingeniously framed to conceal his timidity under a show of discipline. "A soldier," he said, "cannot in honour quit the post that is assigned to him."

Meanwhile the city was in an uproar. A number of people had gathered round the foot of the rock to stare at the strange sight. The watchers from the city magnified this idle crowd into a hostile force. A messenger came in haste to the Convention with the news that Dundee was at the gates with an army, and that the Duke of Gordon was preparing to fire on the town.

Hamilton, who, while affairs were still in the balance, had behaved with unexpected moderation, now gave loose to his temper. The time had come, he said, for all good friends of order to see to their safety when enemies to their liberties and religion were taking arms. There was danger within as well as without. The traitors must be kept close; but true men had nothing to fear, for thousands were ready to start up in their defence at the stamp of his foot. He then ordered the room to be locked, and the keys to be laid on the table. The drums beat to arms: the town-guard, and such force of militia as

was still in the city, fell in; while from garrets and cellars the Westland men came thronging into the streets, with weapons in their hands, and in their faces fury and fear of their terrible enemy. After a time, as the news came that Dundee had ridden off northward and that all seemed quiet in the castle, the tumult subsided. The doors of the Parliament House were opened, and the members came out. Hamilton and his party were greeted with loud cheers: threats and execrations no less loud assailed the few and downcast Jacobites. From that memorable day the friends of William had nothing more to fear in the capital of Scotland. For a while, indeed, some show of opposition was still maintained, faintly stimulated by the arrival of Queensberry from London. But he had come too late. His power was no longer what it had been; nor were his professions of loyalty regarded by men like Balcarres as above all suspicion. For Queensberry had been wise with the wisdom of Hamilton and Athole. The great House of Douglas was prudently divided against itself, and come what might it should not fall. And Athole now, after with great show of bravery urging Gordon to fire on the town, had grown somewhat less than lukewarm, while Mar, the Governor of Stirling Castle, put an end for ever to any thoughts of a fresh Convention in that city by boldly declaring for William. The hopes and the hearts of the Jacobites had gone northward with Dundee; and in truth there was not at this moment a brave company of either.

Dundee did not draw rein in Stirling. He galloped through the town, across the bridge, and on by Dunblane, where he stayed the night, to his own home at Dudhope, where his lady was then waiting her confinement. The only man of his own quality who had ridden with him from Edinburgh was George Livingstone, Lord Linlithgow's son, whose troop of Life Guards had been taken from him in the general re-arrangement of regiments that had followed the fiasco of Salisbury; and he had left his companion on the road to make for Lord Strathmore's house at Glamis. For a week of unwonted quiet, the last he was to know on earth, Dundee rested at Dudhope. Then his enemies found him. On the morning of the 26th Hamilton's messengers appeared before his gates, summoning him to lay down his arms and return to his duty at the Convention, on pain of being proclaimed traitor and outlaw. Dundee replied by a letter which, as it has been styled both disrespectful and disingenuous, it is worth while to print in full.

"Dudhope, March 27th, 1689.

"May it please your Grace:—The coming of an herald and trumpeter to summon a man to lay down arms that is living in peace at home, seems to me a very extraordinary thing, and, I suppose, will do so to all that hear of it. While I attended the Convention at Edinburgh I complained often of many people being in arms without authority, which was notoriously known to be true; even the wild hill-men; and no summons to lay down arms under the pain of treason being given them, I thought it unsafe for me to remain longer among them. And because a few of my friends did me the favour to convey me out of the reach of these murderers, and that my Lord Livingstone and several other officers took occasion to come away at the same time, this must be called being in arms. We did not exceed the number allowed by the Meeting of Estates. My Lord Livingstone and I might have had each of us ten; and four or five officers that were in company might have had a certain number allowed them; which being, it will be found we exceeded not. I am sure it is far short of the number my Lord Lorn was seen to march with. And though I had gone away with some more than ordinary, who can blame me when designs of murdering me was made appear? Besides, it is known to everybody that, before we came within sixteen miles of this, my Lord Livingstone went off to his brother, my Lord Strathmore's, house; and most of the officers and several of the company went to their respective homes or relations. And, if any of them did me the favour to come along with me, must that be called being in arms? Sure, when your Grace represents this to the Meeting of the States, they will discharge such a groundless pursuit, and think my appearance before them unnecessary. Besides, though it were necessary for me to go and attend the meeting, I cannot come with freedom and safety, because I am informed there are men-of-war and foreign troops in the passage; and till I know what they are and what are their orders, the Meeting cannot blame me for not coming. Then, my Lord, seeing the summons has proceeded on a groundless story, I hope the Meeting of States will think it

unreasonable I should leave my wife in the condition she is in. If there be anybody that, notwithstanding of all that is said, thinks I ought to appear, I beg the favour of a delay till my wife is brought to bed; and in the meantime I will either give security or parole not to disturb the peace. Seeing this pursuit is so groundless, and so reasonable things offered, and the Meeting composed of prudent men and men of honour, and your Grace presiding in it, I have no reason to fear further trouble.

"I am, may it please your Grace, your most humble servant,

"DUNDEE.

"I beg your Grace will cause this read to the Meeting, because it is all the defence I have made. I sent another to your Grace from Dunblane with the reasons of my leaving Edinburgh. I know not if it be come to your hands."

The letter was read to the Convention on the following day, and on Saturday, March 30th, John Graham, Viscount of Dundee, was proclaimed traitor with all the usual ceremonies. Thrice was his name called within the Parliament House, and thrice outside its doors, and thrice with sound of trumpet at the market-cross of the good town of Edinburgh.

About the same time happened a still more untoward thing. James was now in Ireland. He had learned how matters had gone in Scotland, and conceived that the moment for action had come. A commission was accordingly despatched to Dundee, constituting him Lieutenant-General and Commander-in-Chief in Scotland, together with a letter in James's own hand, informing him that five thousand foot and three hundred horse would presently be at his disposal. There were letters also from Melfort both to Dundee and Balcarres. Either by the folly or the knavery of the messenger the papers fell into the hands of Hamilton, who read them to the Convention. As usual, Melfort's letters were in the most foolish and violent language. "You will ask no doubt," he wrote to Dundee, "how we shall be able to pay our armies; but can you ask such a question while our enemies, the rebels, have estates to be forfeited? We will begin with the great and end with the small ones." To Balcarres he wrote in the same strain. "The estates of the rebels will recompense us. You know there were several lords whom

we marked out, when you and I were together, who deserved no better fate. When we get the power, we will make these men hewers of wood and drawers of water." No man was mentioned by name, so that each man was at liberty to take these threats for himself. "You hear," cried Hamilton, "you hear, my lords and gentlemen, our sentence pronounced. We must take our choice, to die, or to defend ourselves." There was a terrible uproar, the new Whig recruits being among the loudest in their exposition of the dangers to which their love for their religion and their country was likely to expose them. Leven was ordered with two hundred of his new regiment to arrest both Dundee and Balcarres.^[77] The latter was taken easily enough, and clapped into the Tolbooth. But Dundee got wind of his danger, and was off before the soldiers could reach Dudhope. He went northward still, to Glen Ogilvy, his wife's jointure-house, in the parish of Glamis, not far from the old historic castle of Macbeth; and thither Leven did not think it prudent to pursue him.

FOOTNOTES:

^[77] During the first alarm raised by Dundee's departure the Convention had passed an order to raise and arm a regiment of eight hundred men, and had given the command to Leven. It is said that the men were found within two hours. See "An Account of the Proceedings of the Estates in Scotland," London, 1689.

CHAPTER X.

Dundee had ridden out of Edinburgh with no clear plan of action before him. Balcarres afterwards declared that his friend had no intention of making for the Highlands till he learned that warrants were out for his apprehension. Yet it is probable that the idea of a Highland campaign had already begun to take shape in Dundee's mind before Mackay's advance forced him over the Grampians. His orders were, in the event of the Estates declaring for William, to keep quiet till the arrival of a regular force from Ireland should enable him to take the field with some chance of success. And, indeed, he had at that time no alternative. It was clear to him that the game was lost in the Lowlands, but it was not yet clear to him that anything was to be gained in the Highlands. The example of his famous kinsman might indeed serve to fire both his imagination and his ambition; but it could hardly serve to make him hopeful of succeeding with the weapons which had failed Montrose. A few thousand claymores would no doubt prove a useful supplement to the small body of troops James might be able to spare from Ireland; but even a mind so ardent and sanguine as Dundee's might well have shrank from facing the chances of war with no other resources than a handful of troopers and a rabble of half-armed, half-naked, and wholly undisciplined savages. And in truth experience had shown that these fierce and jealous spirits were little less dangerous as allies than as enemies. Every clan had its hereditary feud, and no one could say that on the day of battle the claymores might not be drawn against each other instead of against the common foe. Branches even of the same stock did not conceive themselves inevitably bound by the tie of blood, though it was a claim never forgotten when it was convenient to make or allow it. Sometimes a few of the smaller clans would make common cause against the oppressions of a more powerful, or the cattle of a wealthier neighbour; but it was rarely that friendship went beyond the conditions of an armed neutrality. Though the feudal system had long prevailed in many parts of the Highlands, it had never superseded the older patriarchal system. The chief of the clan might pay homage to a great lord like Argyle or Athole; but in the clan he was king, and his word was law. Moreover, brave as the

Highlanders undoubtedly were, they were not a warlike race. They would rise to the signal of the fiery cross, without questioning the cause; and they would on occasion fight for their own hand, for revenge or plunder. But the long service of a regular war was little to their taste. Of military science and military discipline they knew nothing. To win the battle with the rush of the first onset, and when the battle was won to make off to their homes with all the plunder they could lay hands on,—this was their notion of warfare, and it was a notion which the chiefs were too ignorant or too prudent to interfere with. What chance could there be of inducing such spirits as these to combine in one great confederacy, and to undertake a long and desperate struggle for the sake of a king of whom the most part had never heard, and of a cause which they could not understand?

But Dundee had learned something at Dunblane which had given him fresh views. During the few hours he had passed there he had talked much with a Highland gentleman, Alexander Drummond of Bahaldy, son-in-law to Sir Ewan Cameron of Lochiel, the great chief of the clan Cameron. Drummond told him that Lochiel had been busy all the winter among his neighbours, that they were now ripe for war, and were only waiting a leader and some succours of regular troops and ammunition; that James had been communicated with, and had approved their plan in a letter written with his own hand to Lochiel; and that an early day had been appointed for a rendezvous of the clans in Lochaber, the headquarters of the Camerons.

It is now generally acknowledged that on this occasion, however it may have been in the next century, the action of the Highland chiefs was not inspired by devotion to the House of Stuart. Lochiel himself may indeed have been moved by some personal consideration for the exiled King. He had fought bravely under Montrose for Charles the First, and under Middleton for Charles the Second. From the latter King he had received more than one letter full of those flattering assurances Charles knew so well how to make. By James he had been graciously welcomed at Whitehall, and had received the honour of knighthood from the royal hand. He was brave, wise, generous, and faithful, and, even in a less rude society than that in which his lot was cast, his manners would have been called agreeable and his education certainly not contemptible. But even Lochiel's loyalty was not suffered to run counter to his interests. In Lochaber the name of James was as nothing compared with the name of Evan Dhu, and the law of the King

of England gave place to the law of the great Chief of the Camerons. As for the rest, the dispute between Whigs and Jacobites was no more to them than the dispute between the Guelphs and Ghibellines had been to their ancestors. They cared not the value of a single sheep whether James or William sat on the throne of Great Britain, so long as neither interfered with them. No later than the previous year the authority of James had been insulted and his soldiers beaten by one of these independent lordlings—Colin Macdonald of Keppoch, familiarly known as Coll of the Cows, for his skill in tracking his neighbour's cattle over the wildest mountains to the most secret coverts.^[78]

But for what loyalty to the House of Stuart was powerless to effect a motive was found in the hatred to the House of Argyle. Nearly all the chiefs of the Western Highlands were vassals to Mac Callum More, the head of the great clan of Campbell. The numerous branches of the Macdonalds, who had once been lords of the Hebrides and all the mountain districts of Argyleshire and Invernessshire, the Camerons, the Macnaghtens, the Macleans, the Stuarts of Appin, all these paid tribute (it would be probably more correct to say owed tribute) to the Marquis of Argyle, and all were ready to welcome any chance of freedom from that odious bondage. The early loyalty of Lochiel had probably been as much inspired by the fact that he was fighting against an Argyle as for a Stuart, as it is possible had been the loyalty of Montrose himself. In 1685 he had cheerfully summoned his clan to repel the invasion of another chief of that hated House; and now the Revolution had brought back from exile yet another to exercise the old tyranny. This was enough to make the Revolution a hateful thing in the eyes of Lochiel and his neighbours. But it was also believed that James had conceived the idea of buying up from the great Highland nobles their feudal rights over the clans, and had only been prevented from carrying his idea into effect by the Revolution. In the minds of these Western chiefs, then, William was the oppressor and James the deliverer. Throughout the winter they had watched eagerly for news from the South. At length they learned that the Estates had declared for William; that their prime enemy was restored to favour and power; and that Dundee, whose exploits against the party of which for three generations an Argyle had been the acknowledged head were well known to them, was an outlaw and a fugitive. In him they at once recognised the leader for whom they waited. Drummond was accordingly sent to invite

him to their councils, and to promise that a sufficient escort should be ready at the proper time to convey him to the appointed meeting-place.

Meanwhile it had become necessary for Dundee to look to his own safety. A more dangerous enemy than Leven was now in the field against him. As soon as William had learned the decision of the Estates he had despatched a body of troops into Scotland under General Mackay. Hugh Mackay, of Scourie, was himself of a Highland stock. Like Dundee, he had learned the art of war first in France, and afterwards in the Low Countries, where he had risen to the command of the Scots Brigade, as those regiments were called which upwards of a century before the new Protestant enthusiasm of England had raised to support Holland against the tyranny of Spain. He was a good man, a brave if not a dashing soldier, a prudent tactician, and well skilled in all the machinery of war.

Mackay at first contented himself with sending Livingstone and his dragoons after Dundee, while he turned his attention to Gordon, who was still maintaining some show of resistance in the castle. But Livingstone was too late. He found the nest warm, but the bird had flown. Dundee had gone northwards over the Grampians into the Gordons' country, where the Earl of Dunfermline, the Duke's brother-in-law, at once joined him with a most welcome addition to his little band of troopers. Mackay foresaw that the Highlands were to be the real scene of operations, and that no danger need be apprehended from the vapouring Gordon. He sent word, therefore, to Livingstone to await him in Dundee, and marched himself for that place with some two hundred of his own brigade and one hundred and twenty of Lord Colchester's dragoons.^[79]

It is as difficult for the reader to follow Dundee through these April days as Mackay found it. In the sounding hexameters of the "Grameis," his movements are indeed described with more labour than lucidity; but at this early stage of the campaign it is not necessary to track him over every mountain and river, and by every town and castle.^[80] It will be enough to say that in an incredibly short space of time he beat up for recruits the greater part of the counties of Aberdeen, Inverness, and Perth, while the bewildered Mackay, whose training and troops were alike unfitted to this sort of campaigning, toiled after him in vain. He also found time for a flying visit to Dudhope, where his wife had been safely delivered of a son.

He can have stayed with her but a day at most; and when he left her, he was to see her face no more.

From Dudhope Dundee crossed the Grampians again for Inverness. Here it had been arranged for him to meet Keppoch and the promised escort of Highlanders. And here, accordingly, he found them; but he also found a state of things which gave him a lively foretaste of the character and conduct of his new allies.

Between the clan of Macdonald and the clan of Mackintosh there had existed for many centuries a deadly feud, the exact origin of which had long been lost in the mists of fable. On the other hand, a good understanding had long existed between the Mackintoshes and the town of Inverness. Though the town in those days consisted only of some five hundred mean buildings surrounded by a crazy wall, the busy little colony of artisans which inhabited it, and the occasional visit of a trading vessel to its port, had invested it among the Highlanders with the reputation of vast wealth. Here was an opportunity for gratifying his love of revenge and his love of plunder which Keppoch was not the man to lose. He advanced through the territory of the Mackintoshes, harrying and burning as he marched, up to the walls of Inverness. For two days he lay before its crazy gates threatening fire and sword, while the burghers mustered to arms within, and the ministers exhorted them from the market-place. Such was the state of affairs Dundee found when he and his troopers rode into the Highland camp on the first day of May.

Keppoch tried to excuse himself. The town, he said, owed him money, and he sought only to recover his own. On the other hand, the magistrates said that he had forced them to promise him four thousand marks. Dundee answered that Keppoch had no warrant from him to be in arms, much less to plunder. But it was not yet safe for him with his handful of horse to use such brave language to the chief at the head of his eight hundred claymores. He therefore temporised. By his advice the magistrates agreed to pay two thousand dollars: half of this sum was raised on the spot with some difficulty: for the other half Dundee gave his bond to Keppoch. He also promised the magistrates that, when James was restored to his throne, the money should be refunded to them. Dundee had saved the town, but for the present he had lost his allies. Keppoch and his thieves, laden with the silver

of Inverness and the cattle of the Mackintoshes, retired in dudgeon to their mountains.

But Dundee was destined to achieve something before he joined the muster at Lochaber. After he had parted from Keppoch he turned westward down the valley of the Ness, by the noble castle of Glengarry, which Cumberland destroyed after Culloden, by Kilcummin, where Fort Augustus now stands, memorable in his eyes as the spot whence Montrose had led the clans to break the power of the Campbells at Inverlochy, and so southwards again through the forest of Badenoch to the Tay. As he was painfully toiling through this vast and rugged recruiting-ground word was brought to him that a regiment of cavalry was being raised in Perth under the auspices of the Laird of Blair, a rich and powerful gentleman who had married into Hamilton's family. He determined on a bold stroke. He was sorely in need of powder, provisions, money, and especially of fresh mounts for his troopers, the long rapid marches, cold weather, and scanty forage having reduced his horses to a very sorry plight. In Perth he might lay hands on all these, and possibly on a few recruits into the bargain. He was in Blair when the messengers found him on May 10th. With his handful of sabres he swooped down on Dunkeld, which he reached just in time to relieve a tax-collector of the dues he had been successfully raising for William. At Dunkeld he rested his men till nightfall, and then rode straight for Perth. At two o'clock in the morning he entered the city, surprised Blair and his lieutenant, Pollock, in their beds, collected forty horses, a store of arms and powder, some provisions, and some of the public money, and was off again with his booty and his prisoners before the startled citizens had fairly realised the weakness of their invaders. He recrossed the Tay, and halted at Scone to refresh himself and his men at the charges of Lord Stormont, an involuntary act of hospitality on the latter's part for which he had some trouble to excuse himself in Edinburgh.^[81]

While in the wilds of Badenoch Dundee had received another message which had interested him much. In the dragoons now under Livingstone's command were several of Dunmore's old officers still well affected to James. Chief among these were William Livingstone,^[82] a relation of the colonel, and that Captain Creighton of whom mention has been already made. While lying in garrison at Dundee Creighton found means to get secretly into Dudhope, and to assure Lady Dundee that he and many of his

comrades were only waiting an opportunity to join her husband. She sent off word of this to the wanderer, who managed to convey an assurance to Creichton of his plans, and of the strength of the reinforcements he expected from Ireland. On their landing, he added, he should expect the dragoons to join him.

This note was received by Creichton from the hands of a ragged Highlander two days after he had marched with a part of his regiment to join Mackay at Inverness. Could he have waited a little longer he would have seen his correspondent in person. On the afternoon of Monday, May 13th, the inhabitants of the town which had given this terrible Claverhouse his title saw to their amazement the crest of the high ground to the north glittering with steel-clad riders. At the same time Lord Rollo, who was camped outside the walls with some new levies of horse, came flying through the gates with the news that Dundee was upon them. The drums beat to arms: the gates were closed; and barricades hastily thrown up in the principal streets, while the citizens crowded on the walls to stare at the audacious foe.

It is possible that Dundee, who was ignorant of Creichton's departure, thought that his appearance might bring the dragoons over to his side at once. But the officer who was then in command kept his troops quiet; and after manœuvring his men up to the very walls of the town Dundee drew off as night fell to Glen Ogilvy.^[83] It is impossible that even he can have conceived the idea of a serious attack on the place; and the story of his actually entering and plundering the town is certainly apocryphal, though his men very probably made free with Rollo's camp.

Meanwhile Mackay at Inverness was busy in his turn among the clans. Lochiel had only sent the cross round among those chiefs who, like him, hated the Campbells. Dundee had gone further afield, but had not been successful. The gratitude of the Mackintoshes was not enough to do more than keep them neutral,—which was perhaps fortunate, for had they joined the muster at Lochaber they would inevitably have been at blows with the Macdonalds before a day had passed. The Macphersons also kept aloof, and the Macleods. Mackay's invitations were received with the same indifference. Some of the Grants, whose chief had suffered under the late Government for his allegiance to Argyle, joined him; and from the northern shires of Ross and Sutherland a few Mackays came to fight for a captain of

their own blood. But the two sources on which the Government had mainly relied for help were both found wanting. The Campbells had suffered so severely from the invasion of Athole in the previous year that Argyle found it impossible to rally them in time to be of service in the present campaign. The Covenanters, though hailing the rule of William as a deliverance from the rule of James, were persuaded by their ministers that it was a sin to take military service, even against the abhorred Dundee, with men whose orthodoxy was, to say the least, not above suspicion. Seaforth, Lovat, Breadalbane, and the other great lords of the east and south Highlands, would not bid their vassals arm for either side. Athole had indeed once more professed allegiance to the new order, but while affairs were still in an uncertain state he would not commit himself to any decisive action. It was clear to Mackay that the name of William was no name to charm with in Scotland, and that the most he could hope to effect was to prevent a general rising of the clans for James. The sagacious Tarbat had already pointed out to him how this might be done. Five thousand pounds, he said, would be ample to satisfy all Argyle's claims upon the chiefs who owed him vassalage. If these claims were satisfied, and the clans assured that under William they would secure the freedom they had hoped for from James, though it might not be possible to persuade them to fight for the former, not a single claymore would follow Dundee to the field for the latter. William was now induced to try the experiment. But by a blunder so extraordinary as to suggest treachery somewhere, the agent entrusted to manage the affair was himself a Campbell. The chiefs naturally refused to listen to such a messenger, and treated all subsequent overtures with a contemptuous refusal or a still more contemptuous silence. It is not certain that any money was actually expended; but if so, it is very certain that not a penny of it went to any Cameron or Macdonald.

Dundee had now reached Lochaber, where he was cordially welcomed by Lochiel, and lodged in a building close to the chief's own house, a rude structure of pine-wood, but in his men's eyes a magnificent palace. The clans had proved true to their tryst. Every Cameron who could wield a broadsword was there. From the wild peaks of Corryarrick and Glen Garry, from the dark passes of Glencoe and the storm-beaten islands of the western seas, the men of Macdonald came trooping in. Sir John of Duart brought a strong gathering of Macleans from Mull, promising that more of the name

were on the road. Young Stewart of Appin had led his little band from the shores of Loch Finnhe. The Macnaghtens were there from the very heart of the great enemy's country, where the hated towers of Inverary cast their shadow on the waters of Loch Fyne. Fraser of Foyers and Grant of Urquhart, disregarding the action of their respective chiefs, each brought a small following of his own vassals.

It is impossible to calculate the exact force which, at any time during his short campaign, Dundee had at his disposal. But the number of claymores which this first muster brought to Lochaber cannot have been less than two thousand. Besides these, there was his little body of cavalry, some fifty sabres in all, partly composed of his own troopers, and partly of Dunfermline's followers. That nobleman and Lord Dunkeld were of the party. Dundee's own brother, too, seems to have been with him, and a member of the Duntroon branch of the Grahams. Certain gentlemen from the Lowlands had also joined him: Sir Alexander James of Coxtone, Sir Archibald Kennedy of Cullean, Hallyburton of Pitcur, Murray of Abercairny, and others.

Still there was no sign from Ireland, and Dundee hesitated to take the field against Mackay with such capricious and irregular allies. He did not doubt the courage of his Highlanders, but he had grave doubts of their obedience. That they would fight bravely when it was their cue to fight, he knew well; but he was much less confident that they would take their cue from him. He had at first conceived the idea of putting them through some course of military training, but Lochiel urged so many and such weighty reasons against it that he gave up the plan. "There is not time," said the sagacious old chief, "for our men to learn your method of warfare. They would merely unlearn their own. This is one which must seem strange to your notions of war; but it is one which they thoroughly understand, and which makes them, when led by such a general as you, a match for the most practised veterans. Think of what they did under Montrose, and be sure that they will show the same courage and win as great victories under you." It, therefore, became more than ever necessary that the promised succours should be no longer delayed. Some regular troops, however few, would serve both as a rallying-point and as an example to the Highlanders. And, indeed, it had been only on the promise of such support that Lochiel had induced the chiefs to arm. Dundee sent letter after letter to Ireland full of cheerful

accounts of the good promise of affairs, but urging the instant despatch of troops, together with a store of money, ammunition, and all the other necessities for an army about to take the field, of which there was, in truth, a most plentiful lack in Lochaber. There were not above fifty pounds of powder in the camp; and though the Highland fashion was to trust more to the cold steel than the bullet, powder was a necessity of war that could not well be altogether dispensed with. Dundee also urged upon Melfort the good effect James' own presence would have upon his Scottish allies. If that could not be managed, he said, at least let him send the Duke of Berwick. There was no petty jealousy in Dundee's character. He would have cheerfully put himself under the command of any man if by so doing he were likely to further the cause he had at heart. But no answer came to these appeals. In one of the last letters Dundee wrote, he reminds Melfort that for three months he had received not a single line from him or from James.

Meanwhile, his tact, his good temper, courtesy, and liberality had won the hearts of his new allies. With the money he had brought with him from the Lowlands, and the supplies his wife and some of his friends were able occasionally to send him, he contrived to maintain an establishment that was at least superior to anything which most of his new friends were accustomed to. Every day he entertained some of the chiefs at his table. He made himself acquainted with the faces and names of the principal tacksmen of each clan, and mastered a few words of Gaelic to enable him to address and return salutations. In the field he lived no better than the meanest of his men, sharing their coarse food and hard lodging, and often marching on foot by their side over the roughest country and in the wildest weather. His powers of endurance extorted the wonder even of those sturdy mountaineers who had been inured from childhood to the extremes of hunger and fatigue. More than a century after his death it was still told with admiration how once, after chasing Mackay from dawn to sunset of a summer's day over the ruggedest part of the Athole country, he had spent the night in writing, only resting his head occasionally on his hands to snatch a few moments of sleep. Among the Camerons he was always spoken of as the General, and honoured next to Lochiel himself. At the same time, he was careful to maintain his authority and to exact the respect due to his position. He knew well that among those lawless spirits he who would be obeyed must be feared. On one occasion he administered a public

rebuke to the arch-thief, Keppoch, who had found time for another raid on the Mackintoshes. In the presence of all the chiefs Dundee told the offender that he would sooner serve in the ranks of a disciplined regiment than command men who were no better than common robbers; that he would countenance such outrages no more, nor any longer keep in his army those who disgraced the King's cause by their private quarrels. Keppoch, who would infallibly have struck his dirk into any other man who had used such language to him, attempted some lame excuses, muttered an apology, and ended by promising for the future neither he nor any of his men would stir a foot save at the General's command. There is no stronger proof of Dundee's genius and capacity for affairs than the singular influence he was able in a few short weeks to gain over men who could not speak his language and who hated his race. When on the dark day of Culloden the wavering clans looked in vain to their Prince, an old chief, who had heard his father talk of Ian Dhu Cean (Black John, the Warrior), exclaimed in a passion of rage and grief, "Oh, for an hour of Dundee!"

But loth as he was to engage Mackay with the Highlanders alone, Dundee knew that he could not hope to keep them long together inactive. Provisions were running short. If they could not harry James's enemies, they would make free with their own. Dundee was particularly anxious to give no cause of offence to those clans whose neutrality he hoped to be able to turn into friendship. Already a serious prospect of disunion had threatened the little army. A party of the Camerons had made a raid on the Grants, in which a Macdonald of Glengarry had been killed. The man had become affiliated to the Grants, and had refused to join the muster of his own tribe. He had therefore forfeited all the right of clanship. Yet Glengarry, as much perhaps from policy as from any overpowering sense of kinship, demanded vengeance; and it needed all the combined tact of Dundee and Lochiel to prevent him from drawing out his men to attack the Camerons. When, therefore, Dundee learned that Mackay had left Inverness to join some reinforcements from Edinburgh, he determined on action.

The troops Mackay expected to find in Badenoch were six hundred men of his own Scots Brigade under Colonel Ramsay. Ruthven Castle on the Spey was the place of meeting, and May 26th the time. But Ramsay had been detained in Edinburgh by an alarm of an invasion from France, and it was not till the 27th that he entered the Athole country. Here he learned that

Dundee was on the march to meet him. The population did not seem friendly: he could get no news of Mackay; and on the whole he judged it prudent to retire to Perth. That he might do this with more speed he blew up his ammunition train, to prevent it falling into Dundee's hands. Mackay, who, as soon as he learned that Ramsay was fairly on the road, had marched with all speed from Inverness, was too late to save Ruthven Castle. It had been surrendered by the governor, Captain Forbes, on the 29th, and reduced to a heap of ruins.

This was the beginning of a series of marches and counter-marches on the part of the two generals, which lasted far into June, without any advantage on either side. On one occasion a party of the Macleans of Lochbuy, marching to join Dundee in Badenoch, came to blows with some of Livingstone's dragoons; and there were other skirmishes, of no material result, at none of which was either general present in person. More than once Dundee was in striking distance of Mackay; but he never found himself in a position to engage with sufficient assurance of victory. A defeat he dared not risk; and even victory, unless complete enough to need no second blow, had its dangers. An army which considered the safe storage of his booty as the first duty of a successful soldier could not safely be trusted to make good the result of a doubtful battle. And in fact he found his forces each day diminishing as food became more scarce in those barren wilds, or as some lucky raid necessitated a departure for home with the prize. At length, wisely determining to sanction what he could not prevent, and feeling that even his iron frame and dauntless spirit were in need of rest, Dundee dismissed the clans for the present, on their giving a promise to join him again when he should require them. Keeping only some two hundred of the Macleans with him, he returned to his old quarters, on the pressing invitation of Lochiel, who swore to him that while there was a cow in Lochaber neither he nor his men should want. Mackay did not attempt to follow him. At such a game of hide-and-seek he saw that his men were no match for the active light-marching Highlanders. He accordingly put garrisons into certain fortified parts of Invernessshire and Perthshire, sent the rest into quarters, and himself repaired to Edinburgh.

From the middle of June to the end of July the war therefore languished. But Dundee was not idle. The arts of diplomacy were as familiar to him as the arts of war. He still maintained an active correspondence with the

neutral chiefs, and kept Melfort well informed of all he had done and proposed to do for his master's service. I shall conclude this chapter with an extract from the last despatch he sent to Ireland. It is long; but it gives so graphic an account of his proceedings since the muster at Lochaber, of the state of the country, and the relative positions and prospects of the two parties, that its length may be excused. It also shows, what one would not perhaps have otherwise surmised, that the writer had some little touch of humour. The letter is dated from Moy, in Lochaber, June 27th, 1689. I omit the first part, which seems to refer to some complaints Melfort had made of his having been ill-spoken of by Dundee.

"My Lord, I have given the King, in general, account of things here; but to you I will be more particular. As to myself, I have sent you it at large. You may by it understand a little of the state of the country.^[84] You will see there, when I had a sure advantage I endeavoured to profit on it; but on the other hand, shunned to hazard anything for fear of a ruffle. For the least of that would have discouraged all. I thought if I could gain time, and keep up a figure of a party without loss, it was my best till we got assistance, which the enemy got from England every day. I have told the King I had neither commission, money, nor ammunition. My brother-in-law and my wife found ways to get credit.^[85] For my own nobody durst pay to a traitor. I was extremely surprised when I saw Mr. Drummond, the advocate, in Highland habit, come up to Lochaber to me, and gave account that the Queen had sent 2,000*l.* sterling to London, to be paid to me for the King's service, and that two more was a-coming. I did not know the Queen had known anything of our affairs. I received a very obliging letter from her with Mr. Crane, but I know no way to make a return. However, when the money comes, I shall keep count of it and employ it right. But I am feared it will be hard to bring it from Edinburgh.

"When we came first out I had but fifty pounds of powder. More I could not get. All the great towns and seaports were in rebellion, and had seized the powder, and would sell none. But I had one advantage—the Highlanders will not fire above once, and then take to the broadsword.

"But I wonder, above all things, that in three months I never heard from you, seeing by Mr. Hay I had so earnestly recommended it to you, and told of this way by Inverlochy as sure. If you could not have sent expresses, we thought you would at least have hastened the dispatch of those we sent. McSwyne has now been away near two months, and we know not if the coast be clear or not. However, I have ventured to advise Mr. Hay to return straight, and not go further in the country. He came not here until the 22nd, and they surrendered on the 13th.^[86] It was not Mr. Hay's fault he was so long of coming, for there has been two English men-of-war and the Glasgow frigates amongst the islands till of late. For the rest of the letters I undertook to get them delivered. Most of the persons to whom they are directed are either put in bond, or in prisons, or gone out of the kingdom. The Advocate is gone to England, a very honest man, firm beyond belief,^[87] and Athole is gone too, who did not know what to do. Earl Hume, who is very frank, is taken prisoner to Edinburgh, but will be let out on security. Earl Breadalbane keeps close in a strong house he has, and pretends the gout. Earl Errol stays at home. So does Aberdeen. Earl Marischal is at Edinburgh, but does not meddle. Earl Lauderdale is right, and at home. The Bishops? I know not where they are! They are now the Kirk invisible. I will be forced to open the letter, and send copies attested to them, and keep the original till I can find out our Primate. The poor ministers are sorely oppressed over all. They generally stand right. Duke Queensberry was present at the Cross when their new mock king was proclaimed, and, I hear, voted for him, though not for the throne vacant. His brother, the Lieutenant-General, some say is made an earl. He is come down to Edinburgh, and is gone up again. He is the old man, and has abused [deceived] me strangely. For he swore to me to make amends. Tarbat is a great villain. Besides what he has done at Edinburgh, he has endeavoured to seduce Lochiel by offers of money which is under his hand. He is now gone up to secure his faction (which is melting), the two Dalrymples and others, against Skelmorly, Polwart, Cardross, Ross, and others, now joined with that

worthy prince, Duke Hamilton. Marquis Douglas is now a great knave, as well as beast, as is Glencairn, Morton, and Eglinton. And even Cassilis is gone astray, misled by Gibby.^[88] Panmure keeps right and at home. So does Strathmore, Southesk, and Kinnaird. Old Airlie is at Edinburgh under caution. So is Balcarres and Dunmore. Stormont is declared fugitive for not appearing. All these will break out, and many more, when the King lands, or any from him. Most of the gentry on this side the Forth, and many on the other, will do so too. But they suffer mightily in the meantime, and will be forced to submit if there be not relief sent very soon. The Duke of Gordon, they say, wanted nothing for holding out but hopes of relief. Earl of Dunfermline stays constantly with me, and so does Dunkeld, Pitcur, and many other gentlemen, who really deserve well, for they suffer great hardships. When the troops land, there must be blank commissions sent for horse and foot for them, and others that will join. There must be a Commission of Justiciary, to judge all but landed men. For there should be examples made of some who cannot be judged by a council of war. They take our people, and hang them up, by their new sheriffs, when they find them straggling.^[89]

"My Lord, I have given my opinion to the King concerning the landing. I would first have a good party sent over to Inverlochy; about five or six thousand, as you have convenience of boats; of which as many horse as conveniently can. About six or eight hundred would do well, but rather more. For had I had horse, for all that yet appeared I would not have feared them. Inverlochy is safe landing, far from the enemy, and one may choose, from thence, to go to Moray by Inverness, or to Angus by Athole, or to Perth by Glencoe, and all tolerable ways. The only ill is the passage is long by sea, and inconvenient because of the island; but in this season that is not to be feared. So soon as the boats return, let them ferry over as many more foot as they think fit to the point of Kintyre, which will soon be done; and then the King has all the boats for his own landing. I should march towards Kintyre, and meet, at the neck of TARBET, the foot, and so march

to raise the country, and then towards the passes of Forth to meet the King, where I doubt not but we would be numerous.

"I have done all I can to make them believe the King will land altogether in the west, on purpose to draw their troops from the north, that we may easier raise the country if the landing be here. I have said so, and written it to everybody; and particularly I sent some proclamations to my Lady Errol, and wrote to her to that purpose, which was intercepted and carried to Edinburgh, and my Lady taken prisoner. I believe it has taken the effect I designed; for the forces are marched out of Kintyre, and I am just now informed Major-General Mackay is gone from Inverness by Moray, towards Edinburgh. I know not what troops he has taken with him as yet; but it is thought he will take the horse and dragoons (except a few) and most of the standing forces; which, if he do, it will be a rare occasion for landing here, and for raising the country. Then, when they hear of that, they will draw this way, which will again favour the King's landing. Some think Ely a convenient place for landing, because you have choice of what side, and the enemy cannot be on both. Others think the nearer Galloway the better, because the rebels will have far to march before they can trouble you. Others think Kirkcudbright or thereabouts, because of that sea for ships, and that it is near England. Nobody expects any landing here now, because it is thought you will alter the design, it having been discovered. And to friends and all I give out I do not expect any.

"So I am extremely of opinion this would be an extreme proper place, unless you be so strong that you need not care where to land. The truth is, I do not admire their mettle. The landing of troops will confound them terribly. I had almost forgot to tell you that the Prince of Orange, as they say, has written to his Scotch Council, telling them he will not have his troops any more harassed following me through the hills, but orders them to draw to the West, where, he says, a great army is to land; and, at the same time, gives them accounts that eight sail of men-of-war is coming from Brest, with fifteen thousand men on board. He knows not whether they are designed for England or Ireland.

I beg you will send an express before, whatever you do, that I may know how to take my measures; and if the express that comes knows nothing, I am sure it shall not be discovered for me. I have told Mr. Hay nothing of this proposal, nor no man. If there come any party this way, I beg you send me ammunition, and three or four thousand arms of different sorts—some horse, some foot.

"I have just now received a confirmation of Mackay's going south, and that he takes with him all the horse and dragoons, and all the standing foot. By which I conclude, certainly, they are preparing against the landing in the west. I entreat to hear from you as soon as possible; and am, in the old manner, most sincerely, for all Carleton can say, my lord, your most humble and faithful servant,

"DUNDEE."

It appears by a postscript added on the following day, that before Dundee's messenger left Lochaber letters had arrived from Melfort. They seem to have been again full of complaints of the hard things said about him, and of the undeserved dislike with which all classes in Scotland seemed to regard him. But of help there was no more than the usual vague promises, and glowing accounts of apocryphal successes in Ireland. Dundee congratulated the Secretary on their master's good fortune, diplomatically fenced with the question of unpopularity, and reiterated his appeal for succour.

"For the number" [he wrote], "I must leave [that] to the conveniency you have. The only inconveniency of the delay is, that the honest suffer extremely in the low country in the time, and I dare not go down for want of horse; and, in part, for fear of plundering all, and so making enemies, having no pay. I wonder you send no ammunition, were it but four or five barrels. For we have not twenty pounds."

FOOTNOTES:

[78] The passage in which Macaulay has explained the condition and sentiment of the Highlanders at this time, will be familiar to every reader. What may be less familiar is a pamphlet entitled "Remarks on Colonel Stewart's Sketches of the Highlanders," published at Edinburgh in 1823, the year after Stewart's book.

[79] Now the Third Dragoon Guards.

[80] In Napier's third volume will be found many translations in prose from this poem, from which I have taken a few touches.

[81] Napier (iii. 552, note) quotes the following minute in the records of the Estates:—"13th May, 1689: A missive letter from the Viscount of Stormont to the President was read, bearing that the Viscount Dundee had forced his dinner from him at his house of Scone, on Saturday last, and therefore desiring that his intercommuning with him, being involuntary, might be excused." He was cited, however as a delinquent, together with his father-in-law, Scott of Scotstarvet and his uncle, Sir John Murray of Drumcairn (a Lord of Session), who had also to assist at the involuntary banquet. Throughout his short campaign Dundee was careful never to take a penny from the pocket of any private person. He considered, he said, that he was justified in appropriating the King's money to the King's use.

[82] Creighton calls him Lord Kilsyth, but he had not then succeeded to the title. He is the same who afterwards married Lady Dundee.

[83] It is doubtful who this officer was. Mackay, in his memoirs, says it was William Livingstone, calling him either a coward or a traitor for not showing fight. If Livingstone it was, he may not have felt sure enough of the men who were left with him to join Dundee in so open a manner, and to fight was not his cue. But another account puts one Captain Balfour in command. The whole account of the affair is even more confused than are most of Dundee's exploits. But that he did make a demonstration of some sort against the town is proved by the Minutes of the Estates.

[84] None of his previous despatches from the Highlands are in existence.

[85] Robert Young of Auldbar had married Dundee's youngest sister, Anne.

[86] The Duke of Gordon surrendered the Castle of Edinburgh on June 13th, after a resistance which towards the end assumed the character almost of a burlesque.

[87] Sir George Mackenzie.

[88] Gilbert Burnet, the bishop. His wife was a sister of Lord Cassilis.

[89] On Dundee's retreat from Badenoch, some of his men who had straggled for plunder had been caught and hung by Gordon of Edenglassie, Sheriff of Banff.

CHAPTER XI.

Mackay had now decided on a new plan of campaign. He would apply to the service of war a device employed by the Highlanders in the chase, and put in practice against them their own tactics of the tinchel.^[90] A chain of fortified posts was to be established among the Grampians, and at various commanding points in Invernessshire. On the west a strong garrison was to be placed in the castle of Inverlochy, the northernmost point of Argyle's country overlooking the stronghold of the Camerons. A small fleet of armed frigates drawing a light draft was to cruise off the western coasts, and to watch those dangerous islands whence issued the long war-galleys of the Macdonalds and the Macleans. Stores and transport enough to keep a considerable force in the field for one month was to be collected; and a skilled body of pioneers, equipped with all the tools necessary for road-making, was to accompany the column.

Having already sketched out this plan in a letter to Hamilton, Mackay was in hopes to find on his arrival in Edinburgh that measures had been begun to put it into operation. He was grievously disappointed. He found nothing but quarrels and intrigues in the Parliament House and out of it. Each man was too intent on out-manœuvring his neighbour in the great struggle for place, to spare a thought for a foe who was happily separated from them by a vast barrier of mountains and many hundreds of miles of barren moorland, deep waters, and dense forests. He saw that his plan for subduing the warriors of the Highlands must wait till the Lowland politicians were at leisure to listen to him; yet he determined to return to his duty, and to do his best with such means as he could find or make for himself. It was possible that Argyle might now have sufficiently repaired his affairs to be able to render some assistance from the West; and there was an ally in Perthshire who might, if he would, prove of even more value than Argyle.^[91]

Lord Murray, Athole's eldest son, had, unlike his father, made up his mind early in the Revolution and kept to it. But it happened that there was one now in possession of Blair Castle who had also chosen his side with equal resolution. Athole had slunk off to England, leaving his castle and his

vassals to the charge of his agent, Stewart of Ballechin. Ballechin was a sturdy Jacobite; and though he had not yet dared to arm the Athole men for James, he had managed on more than one occasion to do timely service to Dundee. Blair was one of the most important posts in the proposed line of garrisons. It commanded on one side the only road by which troops could march from the low country of Perth into the Highlands, and on the other the passes leading to the Spey and the Dee. Whoever held Blair practically held the key of the Highlands. Mackay therefore urged Murray, who was then in Edinburgh, to get rid of this unjust steward and make sure of so valuable a stronghold for the Government. Murray promised to do what he could. He did not profess to be very sanguine of persuading the men of Athole to fight for William; but for the castle, he could not suppose that Ballechin would dare to shut the gates of his own father's house against him. "Keep the Athole men from joining Dundee," said Mackay, "and that is all I ask, or can expect from your father's son." He pressed Murray to start at once for Blair, promising to follow as soon as he could collect the necessary force of troops and stores.

It was tedious work preparing for a campaign in Edinburgh, where, nobody feeling himself in immediate danger, nobody was concerned to guard against it. Mackay was detained longer than he had expected, and before he could take the field bad news had come down from Perthshire. Ballechin was strongly entrenched in Blair, and resolute not to budge an inch. The Athole men had gathered readily enough to their young lord's summons; but when they found he had summoned them to fight for King William they had gone off in a body shouting for King James.^[92] And there was yet worse news. The fiery cross was speeding once more through the Western Highlands. There could be no doubt that Ballechin was acting under orders from Dundee. A few men had stayed with Murray, and with these he proposed to watch the castle and the pass till Mackay should come. But the clans were mustering fast. Dundee himself was said to be in the neighbourhood. Unless troops could be brought up at once, Blair would be irretrievably lost, and the key of the Highlands in the hands of Dundee.

Dundee was in the neighbourhood. He was at Struan, close to Blair, whence he wrote more than one letter to Murray, using every argument he could think likely to influence the interests or the prejudices of Athole's son. Professing to be convinced that Murray was really for James, though

doubtful about the time for declaring himself, he declared that he had only sent help to Ballechin to keep the rebels at bay till Murray was able to act as his principles and education would naturally suggest. The King, he said, had seen the mistakes into which Melfort had hurried him. He had now given his word to secure the Protestant religion as by law established, to allow full liberty of conscience to all dissenters, and to grant a general pardon for all except those who had been actively engaged in dethroning him. What more might be necessary to satisfy the people, Dundee begged Murray to let him know. The King was particularly anxious for advice on these points, and ready to go all reasonable lengths; and Murray, he well knew, would advise nothing unreasonable. No more was to be feared from Melfort, who had promised to forgive all old quarrels, and even to resign his office rather than force himself upon those who were unwilling to receive him. Finally (keeping to the last the most powerful argument he could devise), he declared that it was now in Murray's power to "have the honour of the whole turn of the King's affairs." Murray would make no answer, refused to see Dundee's messengers, and sent all his letters on to Mackay.^[93]

Dundee knew the importance of Blair as well as Mackay. As soon as he heard from Ballechin of Murray's action, he threw a garrison into the castle, and sent signal to the clans to join him at once. The time was short: too short even to muster all the outlying Camerons. Some days must elapse before he could expect to see round him such a force as he had commanded two months earlier, and every hour was precious. Lochiel urged him to march at once for Blair with such forces as were at hand, promising to follow with the rest. But Dundee was loth to advance without Lochiel. He relied much on the old chief's sagacity and experience, on his knowledge of the Highland character, and his tact in managing it: without his counsel and support he did not feel even now certain of his quarrelsome captains. He prayed Lochiel, therefore, to come with him, leaving his son to bring on the late musters.

As they marched through Badenoch they were joined by the long-promised succours from Ireland—three hundred ragged Irish recruits, half starved, badly armed, and entirely ignorant of war. Their leader was an officer named Cannon, who bore a commission from James giving him rank next to Dundee, a position which neither his abilities nor his experience entitled him to hold in such an army. Some stores of powder and food had been sent

with them; but the vessels containing them had, through Cannon's negligence, been taken in the Hebrides by English cruisers. Dundee had neither powder nor food to spare. There had been no time to collect provisions; and for many days past his officers had eaten no bread and drunk nothing but water. The great promises of help on which the Highlanders had so confidently relied, on the assurance of which they had taken the field, and for which their general had repeatedly given his own word, had shrunk to this—three hundred empty mouths to feed, and three hundred useless hands to arm.^[94]

And now word came that Mackay was approaching. He had marched by way of Stirling to Perth, at which place he had appointed his muster. At Stirling he had found six troops of dragoons, which he had ordered to follow him to Perth. On July 26th he was at Dunkeld, where he received word from Murray of Dundee's arrival at Blair, but not the dragoons he was expecting from Stirling. His own cavalry consisted of but two troops, chiefly composed of new levies. He dared no longer trust Livingstone's dragoons in the face of the enemy. Half of the officers he had been obliged to send under guard to Edinburgh as traitors: the rest of the regiment was out of harm's way in quarters at Inverness. The horses of Colchester's men were in such a plight after their marches among the Grampians that they could not carry a saddle. Mackay knew well how important cavalry was to the work before him. A mounted soldier was the one antagonist a Highlander feared; and his fear was much the same superstitious awe that a century and a half earlier the hordes of Montezuma had felt for the armoured horsemen of Cortez. But the messages from Murray were urgent, and he dared not delay. At break of day on Saturday, the 27th, he marched out from Dunkeld for the glen of Killiecrankie.

His force, according to his own calculation, was between three and four thousand strong; but barely one half of these were seasoned troops. There was the Scots Brigade, indeed, of three regiments, his own, Balfour's, and Ramsay's. But before despatching them to Scotland William had ordered them to be carefully weeded of all Dutch soldiers, that the patriotism of the natives might be offended by no hint of a foreign invasion; and the gaps thus made had been hastily filled up in Edinburgh. Besides this brigade were three other regiments of infantry: the one lately raised by Lord Leven (now the Twenty-fifth of the Line, and still recognizing its origin in its title

of The Borderers), Hastings' (now the Thirteenth of the Line), and Lord Kenmure's.^[95] Of these, Hastings' was manned chiefly by Englishmen, and seems to have been the only one of the three that had had any real experience of war. One troop of horse was commanded by Lord Belhaven: the other should have been commanded by Lord Annandale, whose name it bore, but Mackay could persuade neither him nor Lord Ross to take the field. Some feeling of compunction may have kept the latter from drawing his sword against an old comrade in arms; but Lord Annandale had always been fonder of wrangling than fighting. Mackay makes no mention of any artillery; but it appears that he had a few small field-pieces of the kind known as Sandy's Stoups from the name of their inventor.^[96]

It is only possible to guess at Dundee's numbers. When he broke up his army early in June he seems to have had about three thousand claymores under him. The second muster was, we know, much smaller than the first; and though it was slightly increased on the march, and while he waited at Blair, the whole force he led at Killiecrankie cannot have much exceeded two thousand men. Over and above the claymores he had not four hundred. The Irish were three hundred, and his cavalry mustered about fifty sabres. Highland tradition puts the claymores at nineteen hundred; and this is probably much about the truth. Artillery, of course, he had none.

As soon as it was known that Mackay was at the mouth of the pass, Dundee called a council of war. Three courses, he told his officers, were before them: to harass Mackay's advance with frequent skirmishes, avoiding a general engagement till the reinforcements a few days would certainly bring had made the numbers more equal: to attack him in the pass; or to wait till he had reached the level ground above it. His own officers, and the Lowland gentlemen generally, were in favour of the first plan. Some of the chiefs were in favour of the second. Dundee listened courteously to all, and then turned to the old chief of the Camerons who had not yet spoken. What, he asked, did Lochiel advise? Lochiel had no doubt. They must fight and fight at once, were the enemy three to one. Their men were in heart: they would have all the advantage of the ground: let Mackay get fairly through the pass that the Highlanders might see their foes, and then charge home. He had no fear for the result; but he would answer for nothing were the claymores to be kept back now the Saxons were fairly at their feet.

Those who watched Dundee saw his eye brighten. He answered that he agreed with every word Lochiel had spoken. Delay would bring reinforcements to Mackay as well as to them, and Mackay's reinforcements would almost certainly include more cavalry. To fight them in the pass was useless. In that narrow way the weight of the Highland onset would be lost. The claymores would not have room for their work, and half the column would escape. They must fight on open ground and on fair terms, as Montrose would have fought.^[97]

There was no more opposition. The word for battle went through the clans, and was hailed with universal delight. Then Lochiel spoke again. He had always, he said, promised implicit obedience to Dundee, and he had kept his promise; but for once he should command. "It is the voice of your Council," he went on, "and their orders are that you do not engage personally. Your Lordship's business is to have an eye on all parts, and to issue out your commands as you shall think proper. It is ours to execute them with promptitude and courage. On you depends the fate not only of this little brave army, but also of our King and country." He finished by threatening that neither he nor any of his clan should draw sword that day unless his request were granted. Dundee answered that he knew his life to be at that moment of some importance, but he could not on that day of all days refuse to hazard it. The Highlanders would never again obey in council a general whom they thought afraid to lead them in war. Hereafter he would do as Lochiel advised, but he must charge at the head of his men in their first battle. "Give me," he concluded, "one *Shear-Darg* (harvest-day's work) for the King, my master, that I may show the brave clans that I can hazard my life in that service as freely as the meanest of them."^[98]

Mackay had reached the mouth of the pass at ten in the morning. Here he found Murray and his little band, who had not judged it prudent to remain longer in the neighbourhood of Blair. Two hundred picked men were accordingly sent forward to reconnoitre under Colonel Lauder; and at noon, the ground having been reported clear in front, the whole column advanced.

The pass of Killiecrankie is now almost as familiar to the Southron as to the Highlander. It forms the highest and narrowest part of a magnificent wooded defile in which the waters of the Tummel flowing eastward from Loch Rannoch meet the waters of the Garry as it plunges down from the

Grampians. Along one of the best roads in the kingdom, or by the swift and comfortable service of the Highland railway, the traveller ascends by easy gradations from Pitlochrie, through the beautiful grounds of Faskally to the little village and station of Killiecrankie, where a guide earns an unlaborious livelihood by conducting the panting Saxon over the famous battle-field and to various commanding points of the defile. How the scene must have looked in those days, and what thoughts it must have suggested to men either ignorant of war or accustomed to pursue it in civilised countries, has been described by Macaulay in a passage which it were superfluous to quote and impertinent to paraphrase. Near sixty years later, when some Hessian troops were marching to the relief of Blair Castle, then besieged by the forces of Prince Charles, the stolid Germans turned from the desperate sight and, vowing that they had reached the limits of the world, marched resolutely back to Perth. The only road that then led through this Valley of the Shadow of Death was a rugged path, so narrow that not more than three men could walk abreast, winding along the edge of a precipitous cliff at the foot of which thundered the black waters of the Garry. Balfour's regiment led the van of this perilous march: the baggage was in the centre, guarded by Mackay's own battalion: Annandale's horse and Hastings' foot brought up the rear.

For about the last mile and a half the pass runs due north and south; but at the summit the river bends westward, and the mountains sweep back to the right. As the head of the column emerged into open air it found itself on a small table-land, flanked on the left by the Garry, and on the right by a tier of low hills sparsely dotted with dwarf trees and underwood. Above these hills to the north and east rose the lofty chain of the Grampians crowned by the towering peaks of Ben Glloe and Ben Vrackie. In front the valley gradually opened out towards Blair Castle, about three miles distant, and along this valley Mackay naturally looked for the Highland advance. He sent some pioneers forward to entrench his position, and as each regiment came up on to the level ground, he formed it in line three deep. Balfour's regiment thus made the left wing resting on the Garry, while Hastings was on the right where the ground began to slope upwards to the hills. Next to Balfour stood Ramsay's men, and then Kenmure's, Leven's, and the general's own regiment. The guns were in the centre, and the two troops of horse in the rear of the guns.

In the meantime Dundee had not been idle. Sending a few men straight down the valley, he led his main body across the Tilt, which joins the Garry just below the castle, round at the back of the hills till he had reached the English right. Mackay was in front with his skirmishers, watching what he supposed to be the approach of Dundee's van, when word was brought to him that the enemy were occupying the hills on the right in force. Mackay saw his danger at a glance. The Highlanders would be down like one of their own rivers in flood on his right flank, and roll the whole line up into the Garry. On one of the hills overlooking his position stood what is now known as Urrard House, but was then called by its proper name of Renrorie.

[99] Immediately below this stretched a piece of ground large and level enough in Mackay's judgment for his army to receive, though not to give, the attack. He made no change in his line, but wheeling it as it stood upon the right wing, he marched it up the slope on to this new ground in the face of the enemy.^[100] His position was now better than it had been; but it was bad enough. The river was in his rear, and behind the river the inhospitable mountains. His only way of escape, should the day go against him, lay through that terrible pass up which, with no enemy to harass him, he had just climbed with infinite toil. He could hardly hope to make good his retreat down such a road with a victorious army maddening in his rear. In the preliminary game of tactics he had been completely out-manœuvred by his old comrade.

The clans were now forming for battle. The Macleans of Duart held the post of honour on the right wing. Next to the Macleans stood Cannon with his Irish. Then came the men of Clanranald, the men of Glengarry, and the Camerons. The left wing was composed of the Macdonalds of Sleat and some more Macleans. In the centre was the cavalry, commanded not as hitherto by the gallant Dunfermline, but by a gentleman bearing the illustrious name of Wallace. He had crossed from Ireland with Cannon; but nothing is heard of him till apparently on the very morning of the day he produced a commission from James superseding the Earl of Dunfermline in favour of Sir William Wallace of Craigie. What would otherwise appear one of those inexplicable freaks by which James ever delighted to confound his affairs at their crisis, is amply explained by the fact that the new captain was the brother of Melfort's second wife. Fortunately Dunfermline was too good a soldier and too loyal a gentleman to resent the slight. As Mackay's

line was much longer than his, Dundee was compelled to widen the spaces between the clans for fear of being outflanked, which left for his centre only this little cluster of sabres. Lochiel's eldest son, John, was with his father, but Allan, the second, held a commission in Mackay's own regiment. As the general saw each clan take up its ground, he turned to young Cameron and said, pointing to the standard of Lochiel, "There is your father with his wild savages; how would you like to be with him?" "It signifies little what I would like," was the spirited answer; "but I recommend you to be prepared, or perhaps my father and his wild savages may be nearer to you before night than you would like!"^[101]

Each general spoke a few words to his men. Dundee reminded his captains that they were assembled that day to fight in the best of causes, in the cause of their King, their religion and their country, against rebels and usurpers. He urged them to behave like true Scotchmen, and to redeem their country from the disgrace cast on it by the treachery and cowardice of others. He asked nothing of them but what they should see him do before them all. Those who fell would fall honourably like true and brave soldiers: those who lived and conquered would have the reward of a gracious King and the praise of all good men. Let them charge home then, in the name of King James and the Church of Scotland. Mackay urged the same honourable duty on his battalions; but he added one very practical consideration which suggests that he was not so confident of the issue as he afterwards professes to have been, and which was perhaps not very wisely offered. They must fight, he said, for they could not fly. The enemy was much quicker afoot than they, and there were the Athole men waiting to pounce on all runaways. Such thoughts would hardly furnish the best tonic to a doubtful spirit. Nevertheless the troops answered cheerfully that they would stand by their general to the last; which, adds the brave old fellow ruefully in his despatch, "most of them belied shortly after."^[102]

A dropping fire of musketry had for some time been maintained between the two lines, and on the English left there had been some closer skirmishing between Lauder's sharpshooters and the Macleans. Mackay was anxious to engage before the sun set. He doubted how his raw troops would stand a night-attack from a foe to whom night and day were one: still more did he fear what might happen in the darkness during the confusion of a retreat down that awful pass. But he could not attack, and Dundee would

not, till his moment came. The darkness the other feared would be all in his favour. A very short time he knew would be enough to decide the issue of the battle. Should that issue be favourable to King James, as he felt confident it would be, he had determined that before the next morning dawned there should be no army left to King William in the Highlands.

The sun set, and the moment he had chosen came. The Southrons saw Dundee, who had now changed his scarlet coat for one of less conspicuous colour, ride along the line, and as he passed each clan they saw plaids and brogues flung off. They heard the shout with which the word to advance was hailed; but the cheer they sent back did not carry with it the conviction of victory. Lochiel turned to his Camerons with a smile. "Courage!" he said, "the day is our own. I am the oldest commander in this army; and I tell you that feeble noise is the cry of men who are doomed to fall by our hands this night." Then the old warrior flung off his shoes with the rest of them, and took his place at the head of his men. Dundee rode to the front of his cavalry. The pipes sounded, and the clans came down the hill.

They advanced slowly at first, without firing a shot, while Mackay's right poured a hot volley into their ranks, and the leathern cannon discharged their harmless thunder from the centre. A gentleman of the Grants, who was fighting that day among the Macdonalds, was knocked over by a spent ball which struck his target. "Sure, the Boddachs are in earnest now!" he said, as he leaped to his feet with a laugh. It was not till they had reached the level ground that the Highlanders delivered their fire. One volley they poured in, and then, flinging their muskets away, bounded forward sword in hand with a terrific yell. The soldiers had not time to fix their bayonets in the smoking muzzles of their muskets before the claymores were among them and the battle was over.^[103] On the left wing scarcely a trigger was pulled: the men broke and ran like sheep. The famous Scots Brigade, in fact, set the example of flight. Their officers behaved like brave soldiers. Balfour, abandoned by his men, defended himself for a time against overwhelming odds, till he was cut down by a young clergyman, Robert Stewart, a grandson of Ballechin. Eight officers of Mackay's own regiment were killed, including his brother, the colonel; and many of Ramsay's. In vain was the cavalry ordered to charge. In vain did Belhaven like a gallant gentleman gallop to the front. In vain did Mackay place himself at their head, and, calling on them to follow him, spur into the thick of the flashing

claymores. Before his horse they fell back right and left in such a way as to justify his boast to Melville that with fifty stout troopers he could have changed the day even then; but one of his own servants alone followed him. A few of the dragoons discharged their carbines at random. Then all turned and spurred off among the crowd of footmen to the mouth of the pass. Some of the fugitives tried to cross the Garry, and were either drowned in its swift waters, or cut down as they scrambled drenched and unarmed through its fords. Down the pass to Pitlochrie the rout went. The men of Athole, no longer doubtful of the issue, pounced from their lair upon the easy prey; and even women lent their hands to the butchery.^[104]

Well might Mackay bitterly complain, "There was no regiment or troop with me but behaved like the vilest cowards in nature except Hastings and my Lord Leven's."^[105] For on the right matters had fared rather better with the Lowlanders. Many of Leven's Borderers had stood firm and Hastings' Englishmen; and where the Southrons stood firm the Highlanders wavered. But they were too few for Mackay to have any hopes of retrieving the fortune of the day. The Highlanders were now busy with the baggage, which offered a more tempting and less troublesome prize than the struggling mass of fugitives. Mackay therefore collected the few men he could get together, and led them across the Garry by a ford above the field of battle over the mountains towards Stirling. On his march he overtook some more of his runaways whom Ramsay was leading in the same direction. Mackay did all it was possible for a brave man to do to encourage his men and keep them together. But many were too frightened to heed his words, or even the pistol with which he threatened to shoot the first man he saw leaving his ranks. The news of his defeat had spread with marvellous rapidity: the whole country was up: every glen and mountain sent out its reapers to the rich harvest. And where enemies did not exist, the fears of these poor wretches found them. Every drover with his herd, every shepherd with his flock, was magnified into a fresh array of the terrible Highlanders. On the evening of Monday, the 29th, Mackay reached Stirling with barely one-fifth of the force with which he had marched out of the town a week earlier.

The Highland loss was calculated at nine hundred men. The Macdonalds and Camerons were the principal sufferers, their position on the left and left-centre having brought them in contact with the battalions who had kept

their ground. Glengarry's brother was among the killed, with Macdonald of Largo, and no less than five cousins of Macdonald of the Isles. Among the Lowlanders fell Hallyburton of Pitcur, and Gilbert Ramsay, Dundee's favourite officer, who had dreamed overnight of the victory and of his death. But though the battle had been won for James, he had suffered a greater loss than William. A fresh army could replace Mackay's broken battalions; but no one could replace Dundee, and Dundee was dead.

He had ridden at the head of his cavalry straight on Mackay's centre. But for some unexplained reason his troopers had not followed him close; whether their new captain did not like the guns, or had misunderstood his orders, is not clear. Dunfermline, seeing his general's plumed hat waving above the smoke, had spurred out of the ranks with sixteen gentlemen, and with these sabres the guns were taken and silenced. Dundee, seeing that all went well on the right wing, turned to the left where the Macdonalds were wavering before the firmer front of Hastings' Englishmen. As he galloped across the field to bring them to the charge, a shot struck him in the right side immediately below his breastplate. For a few strides further he clung swaying to his saddle, and then sank from his horse into the arms of a soldier named Johnstone. Like Wolfe on the heights of Abraham, he asked how the day went. "Well for the King," said the man, "but I am sorry for your Lordship." And like Wolfe, Dundee answered, "It is the less matter for me, seeing the day goes well for my master." As his officers returned from the pursuit they found him on the field, and it is said, though one would be glad to disbelieve it, stripped by the very men whom he had led to victory. By his side was found a bundle of papers. Among them was a letter from Melfort, bidding him be sure that both he and James would feel themselves bound by no promise of toleration circumstances had induced them to make. Well might Balcarres, who knew his friend's disposition better than Melfort, tell James how such foolish and disingenuous dealing had grieved Dundee and all who wished honestly to the cause.^[106]

Dundee's body, wrapped in a plaid, was carried to the castle, and a few days later buried in the old church of Blair. In 1852 some bones, believed to be his, were removed from Blair to the Church of Saint Drostan in the parish of Old Deer, in Aberdeenshire; and eleven years later a window of stained glass was placed in the same church, bearing, on a brass plate in the window-sill, this inscription: "Sacred to the memory of John Graham of

Claverhouse, Viscount Dundee, who died in the arms of victory, and whose battle-cry was 'King James and the Church of Scotland!'"

As no stone was ever known to mark his first grave; there is, of course, ample room for the incredulous to smile over this late tribute to his memory. But in truth the shadow of doubt broods over him in death as in life. It is certain only that he received his death-wound on the field of battle, and in the moment of victory. What else fell with him there was well expressed by William. When the news from Killiecrankie came down, the King was urged at once to send a large army into the Highlands. "It is needless," he answered, "the war ended with Dundee's life."

FOOTNOTES:

[90] See the sixth canto of "The Lady of the Lake."

"We'll quell the savage mountaineer,
As their tinchel cows the game."

The tinchel was the name given to the circle of hunters which, gradually narrowing, hemmed the deer into a small space, where they could be easily slaughtered.

[91] Mackay complains bitterly in his Memoirs of "the unconcerned method of the Government in matters which touch them nearest as to their general safety, each being for his particular, and fixed upon his private projects, so as neither to see nor be concerned for anything else."

[92] "When in front of Blair Castle their real destination was disclosed to them by Lord Tullibardine [the heir of Athole did not assume this style till 1695]. Instantly they rushed from their ranks, ran to the adjoining stream of Banovy, and, filling their bonnets with water, drank to the health of King James; and then, with colours flying and pipes playing, 'fifteen hundred of the men of Athole, as reputable for arms as any in the kingdom' [Mackay's words], put themselves under the command of the Laird of Ballechin and marched off to join Lord Dundee." Stewart's "Sketches of the Highlanders of Scotland," i. 67. But this is not strictly true. They joined neither Ballechin nor Dundee, but went off on their own account to the mountains to watch the issue of events.

[93] Probably Dundee wrote more confidently than he felt. He owned that Murray might "have more to do to believe" Melfort's assurance than James's; but, in fact, there was too good reason to disbelieve both. From the first letter written from Struan it appears that the despatch from James which had fallen into Hamilton's hands was much more temperate and conciliatory than the earlier one brought to the Convention by Crane. Dundee had not seen this despatch; and it is possible that he described it rather as his own good sense

urged him to believe it must have been, than as it really was. The letters to himself, which he summarises for Murray's benefit, must have been those acknowledged in the postscript to Melfort of June 28th. It is, as we shall presently see, certain that about this time James was induced to assume, as he had before assumed when it was too late, the virtue of toleration. How much of these promises Dundee really believed, it is impossible to say. The history of our own time has shown, and is every day showing, that neither wisdom nor experience will always avail to prevent a man from believing that which it is his interest to believe.

[94] Memoirs of Balcarres and of Lochiel.

[95] I have given the modern style of these regiments as they were before the last freak of the War Office. What they may be now, I do not know; nor is the knowledge important, for the style I have used will probably be most familiar to my readers. "My Uncle Toby," it will be remembered, was of Leven's regiment. There exists a letter from Schomberg to Lord Leven, especially commending to the latter's care a gentleman of the name of Le Fevre. See the "Leven and Melville Papers."

[96] Mackay says in his Memoirs that he left Edinburgh with two troops of horse, and four of dragoons. It is certain that only the former were engaged at Killiecrankie. But the general's narrative is throughout extremely confused, and sometimes barely intelligible. Perhaps the larger force was that he had counted on having; or the four troops of dragoons may have been those he ordered to follow from Stirling.

Alexander Hamilton, who commanded the artillery in the Covenanter's army with which Leslie and Montrose made the famous passage of the Tyne in 1640. From Burton's description of them they can hardly have been very dangerous, at least to the enemy. "They seem to have been made of tin for the bore, with a coating of leather, all secured by tight cordage. A horse could carry two of them, and it was their merit to stand a few discharges before they came to pieces." "History of Scotland," vi. 302.

[97] It is said that one of Dundee's arguments against attacking in the pass was, that it did not become brave soldiers to engage a foe at disadvantage, an argument which I should imagine Dundee was much too sensible a man to employ to Highlanders. Had his force been sufficient for him to close up the mouth of the pass after the Lowlanders had entered, it is hard to imagine he would have lost the chance of catching Mackay in such a trap. But his force was too small to divide: while the nature of the ground would of course have told as much against those who made as against those who met a charge, besides inevitably offending the jealous point of honour which forbade one clan to take precedence of another. It may be, too, that Dundee was not very well served by his scouts. Mackay certainly seems to have got well on his way through the pass before the other knew that he had entered it. See the "Life of Mackay," and the "Rebellions in Scotland."

[98] Memoirs of Lochiel.

[99] For long afterwards the battle was known among the Highlanders as the battle of Renrorie.

[100] Mackay's Memoirs: "a quart de conversion" is his own phrase for this change of front.

[101] "Sketches of the Highlanders."

[102] Among the Nairne Papers is what purports to be a copy of Dundee's speech. It has been contemptuously rejected by some writers as a manifest forgery, on the ground that no Highlander would have understood a word of it. But there were Dundee's own officers and men to be addressed; and, moreover, his language would have been perfectly intelligible to some, at least, of the chiefs, who would have conveyed its purpose to their men. It was still the fashion for a general to harangue his troops before leading them into action, and it was a fashion particularly in vogue among the Highlanders. I see no reason, therefore, to doubt the general authenticity of this speech. Exactly as it stands in the Nairne Papers probably Dundee did not deliver it; the style being somewhat more grandiloquent than he was in the habit of employing. But its general purpose, which I have endeavoured to give in a paraphrase, seems to be very much what such a man would have said at such a moment. The authority for Mackay's speech will be found in his own despatch to Lord Melville after the battle.

[103] It was the disastrous experience of this day that led Mackay to devise a plan of fixing the bayonet to the musket so that each could be used, as now, without interfering with the other.

[104] "History of the Rebellions in Scotland." Even the men who had stood by Lord Murray joined in the slaughter. He did his best to keep them quiet, but was forced to own afterwards to Mackay that he had not been very successful. "It cannot be helped," he wrote, "of almost all country people, who are ready to pillage and plunder whenever they have occasion." See the Bannatyne edition of Dundee's Letters, &c.

[105] Mackay's opinion was that "the English commonalty were to be preferred in matter of courage to the Scots."

[106] One tradition, for a long while current among the Lowlands, declares him to have been shot by one of his own men in the pay of William Livingstone, who afterwards married Lady Dundee; Livingstone having been for some weeks a close prisoner in Edinburgh with the other disaffected officers of his regiment. Lady Dundee, the story goes on to say, was aware of his intentions, and on the following New Year's day sent "the supposed assassin a white night-cap, a pair of white gloves, and a rope, being a sort of suit of canonicals for the gallows, either to signify that she esteemed him worthy of that fate, or that she thought the state of his mind might be such as to make him fit to hang himself." Another tradition makes Dundee fall by a shot fired from the window of Urrard House, in which a party of Mackay's men had lodged themselves. He was watering his horse at the time at a pond called the Goose-Dub, where the Laird of Urrard's geese were wont to disport themselves. This story is evidently part of the old nurse's prophecy mentioned on page 3. For these and many other anecdotes of the battle, see the "History of the Rebellions in Scotland." I have taken my account of Dundee's death from the memoirs of Balcarres and Lochiel, and from the depositions, printed by Napier, of certain witnesses examined afterwards at

Edinburgh, among them being an officer of Kenmure's regiment, who was carried prisoner into the castle after the battle and heard Johnstone's story. As for the letter said to have been written by Dundee to James after the battle, and now among the Nairne Papers, there is more to be said for it than some have allowed. Macaulay, alluding to it as dated the day after the battle, calls it as impudent a forgery as Fingal. But in fact it bears no date at all: the handwriting is declared on the best authority to be beyond question contemporary; and there is no absolute proof that Dundee did not live long enough at least to dictate an account of his victory to James. It is tolerably certain that he would have done so had his strength permitted him. But in a letter written from Dublin in the following November by James to Ballechin, there is no mention of any letter from Dundee, and his death is there alluded to as having occurred at the beginning of the action. This, of course, is not conclusive; James's actual words are, "the loss you had ... at your entrance into action," which need not imply instant death. On the whole, however, the balance of evidence seems to me to prove that Dundee died where he fell, and that the letter is not genuine, though certainly no forgery of Macpherson's. Those who are still curious on a point which is, after all, of no very great importance, will find it amply discussed in a note to the edition of Dundee's letters published for the Bannatyne Club, and in an appendix to Napier's third volume. A stone still marks the spot where Dundee is said to have fallen, and was seen by Captain Burt less than fifty years after the battle.

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Transcriber's Notes

VARIANT SPELLINGS

Page vi: John Mackay is of Rockfield (p. vi); and Rockfields (p. 16 and index, under Mackay). Amended Rockfield to Rockfields.

Page vi.: Variant spelling of Scourie and Scowrie retained, however, as the author could well have spelled it Scowrie (though online historical sources suggest Hugh Mackay was born at Scourie).

Page 133: Hyslop has been in all other instances spelt Hislop; corrected.

Page 159: "bloody Clavers" matches book: retained.

Variant spelling of doggerel/doggrel (one instance of each) retained.

VARIANT CAPITALISATIONS

Inconsistent capitalisation of Council-Board and Council-board (one instance of each) retained.

Capitalisation of Churchman (p. 9) and Legislature (p. 9) retained

The Killing Time variously capitalised as killing-time, Killing-time, Killing-Time and Killing Time (one of each). Two of these are enclosed in quote marks and one is in the index. Retained.

Popery and popery/popish and Popish variant capitalisations retained (read properly in context).

VARIANT SPELLINGS IN QUOTED LETTERS

While the author notes that Claverhouse could not spell correctly (for example p. 6), the only misspellings that appear in the reproduced letters are proper names: there are no other spelling errors. It would appear that the transcriber was correcting the common English without correcting the proper names. Subsequently the following misspelled proper names have been corrected:

Page 108: Mauchlin corrected to Mauchline.

Page 138: Sanquar corrected to Sanquhar (spelt correctly in a previous letter, p. 108).

Page 188: Variant spelling of Locheil, elsewhere Lochiel, corrected. In the same letter there is a reference to Queenberry (otherwise Queensberry), ditto corrected.

Page 190: Kircudbright corrected to Kirkcudbright (spelt correctly in at least 3 previous letters, see pp. 54, 93 and 94).

HYPHENS

One instance of each headquarters, head-*quarters and head-quarters. Settled on headquarters as the more common spelling.

PUNCTUATION

Page 69: "; amended to ;", which is the standard punctuation arrangement in the book.

Page 188: "strangely, For" amended to "strangely. For".

Page 192: Editorial comment in quoted letter (that) is in parentheses and not square brackets as has been used elsewhere in book. Amended to square brackets.

MISCELLANEOUS

Table of Contents created for this version of the text (none present in the original book).

Page 117: "...I caused shoot him dead;" checks out against original book. Left as is.

Index: Page reference for Whigs, origin of name fixed to page 23 (footnote 8); no note on page 82 (original reference in book).

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